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Chapter II—The Loyalty Review Board

PART 210—THE OPERATIONS OF THE LOYALTY REVIEW BOARD

APPENDIX A—LIST OF ORGANIZATIONS DESIGNATED BY THE ATTORNEY GENERAL PURSUANT TO EXECUTIVE ORDER NO. 9835

The following material is added at the end of Appendix A:

In a letter dated October 30, 1950, the Attorney General transmitted to the Loyalty Review Board a consolidated list of all the organizations which have been designated by him as coming within the purview of Executive Order 9835 according to the classification of section 3, Part III of the Executive order. The consolidated list reads as follows:

Totalitarian:
- Black Dragon Society.
- Central Japanese Association (Beikoku Chuo Nipponjin Kai).
- Central Japanese Association of Southern California.
- Dai Nippon Butoku Kai (Military Virtue Society of Japan or Military Art Society of Japan).
- Heimuska Kai, also known as Nokubei Heieki Gimusha Kai, Zaibei Nihonjin, Heiyaku Gimusha Kai, and Zaibei Heimusha Kai (Japanese Residing in America Military Conscripts Association).
- Hinode Kai (Imperial Japanese Reservists).
- Hinomaru Kai (Rising Sun Flag Society—a group of Japanese War Veterans).
- Hokubei Zaigo Shoke Dan (North American Reserve Officers Association).
- Japanese Association of America.
- Japanese Overseas Central Society (Kaigai Dobo Chuo Kai).
- Japanese Overseas Convention, Tokyo, Japan, 1940.
- Japanese Protective Association (Recruiting Organization).
- Jikyoku Iin Kai (Current Affairs Association).
- Kibei Seinen Kai (Association of U. S. Citizens of Japanese Ancestry who have returned to America after studying in Japan).
- Nanka Teikoku Gunyudan (Imperial Military Friends Group or Southern California War Veterans).
- Nichibei Kogyo Kaisha (The Great Fujii Theatre).
- Northwest Japanese Association.
- Peace Movement of Ethiopia.
- Sakura Kai Patriotic Society, or Cherry Association—composed of veterans of Russo-Japanese War).
- Shinto Temples.
- Sokoku Kai (Fatherland Society).
- Suiko Sha (Reserve Officers Association Los Angeles).

Fascist:
- American Nationalist Party.
- American National Labor Party.
- American National Socialist League.
- American National Socialist Party.
- American Patriots, Inc.
- Ausland-Organization der NSDAP, Overseas Branch of Nazi Party.
- Association of German Nationals (Reichsdeutsche Vereinigung).
- Central Organization of the German-American National Alliance (Deutsche-Amerikanische Einheitsfront).
- Citizens Protective League.
- Committee for Nationalist Action.
- Dante Alighieri Society.
- Federation of Italian War Veterans in the U. S. A., Inc. (Associazione Nazionale Combattenti Italiani, Federazione degli Stati Uniti d'America).
- Friends of the New Germany (Freunde des Neuen Deutschlands).
- German-American Bund (Amerikadeutscher Volksbund).
- German-American Republican League.
- German-American Vocational League (Deutsche-Amerikanische Berufsgemeinschaft).
- Kyffhaeuser, also known as Kyffhaeuser League (Kyffhaeuser Bund), Kyffhaeuser Fellowship (Kyffhaeuser Kameradschaft).
- Kyffhaeuser War Relief (Kyffhaeuser Kreigshilfswerk).
- Lictor Society (Italian Black Shirts).
- Mario Morgantini Circle.
- National Blue Star Mothers of America.
- Nationalist Action League.

Communist:
- Abraham Lincoln Brigade.
- Abraham Lincoln School, Chicago, Ill.
- Action Committee to Free Spain Now.
- American Association for Reconstruction in Yugoslavia, Inc.
- American Branch of the Federation of Greek Maritime Unions.
- American Committee for European Workers' Relief.
- American Committee for Protection of Foreign Born.
- American Committee for Spanish Freedom.
- American Committee for Yugoslav Relief, Inc.
- American Council for a Democratic Greece, formerly known as the Green American Council; Greek American Committee for National Unity.
- American Council on Soviet Relations.
- American Croatian Congress.
- American Jewish Labor Council.
- American League Against War and Fascism.
- American League for Peace and Democracy.
- American Peace Mobilization.
- American Polish Labor Council.
- American Rescue Ship Mission (a project of the United American Spanish Aid Committee).
- American Russian Institute, New York.

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- American Russian Institute of Southern California, Los Angeles.
- American Slav Congress.
- American Youth Congress.
- American Youth for Democracy.
- Armenian Progressive League of America.
- Boston School for Marxist Studies, Boston, Massachusetts.
- California Labor School, Inc., 216 Market Street, San Francisco, California.
- Central Council of American Women of Croatian Descent, aka Central Council of American Croatian Women, National Council of Croatian Women.
- Citizens Committee to Free Earl Browder.
- Citizens Committee for Harry Bridges.
- Civil Rights Congress and its affiliated organizations, including:
  - Civil Rights Congress for Texas.
  - Veterans Against Discrimination of Civil Rights Congress of New York.
- Comite Coordinador Pro Republica Espanola.
- Committee for a Democratic Far Eastern Policy.
- Commonwealth College, Mena, Arkansas.
- Communist Party, U. S. A., its subdivisions, subsidiaries and affiliates, including:
  - Citizens Committee of the Upper West Side (New York City).
  - Committee to Aid the Fighting South.
  - Daily Worker Press Club.
  - Dennis Defense Committee.
  - Labor Research Association, Inc.
  - Southern Negro Youth Congress.
  - United May Day Committee.
  - United Negro and Allied Veterans of America.
  - Yiddisher Kultur Farband.

Communist—Continued
- Communist Political Association, its subdivisions, subsidiaries and affiliates, including:
  - Florida Press and Educational League.
  - Peoples Educational and Press Association of Texas.
  - Virginia League for Peoples Education.
- Connecticut State Youth Conference.
- Congress of American Revolutionary Writers.
- Congress of American Women.
- Council on African Affairs.
- Council for Pan-American Democracy.
- Detroit Youth Assembly.
- Emergency Conference to Save Spanish Refugees (founding body of the North American Spanish Aid Committee).
- Friends of the Soviet Union.
- George Washington Carver School, New York City.
- Hawaii Civil Liberties Committee.
- Hollywood Writers Mobilization for Defense.
- Hungarian-American Council for Democracy.
- Independent Socialist League.
- International Labor Defense.
- International Workers Order, its subdivisions, subsidiaries and affiliates, including:
  - American-Russian Fraternal Society.
  - Carpatho-Russian Peoples Society.
  - Cervantes Fraternal Society.
  - Croatian Benevolent Fraternity.
  - Finnish-American Mutual Aid Society.
  - Garibaldi American Fraternal Society.
  - Hellenic-American Brotherhood.
  - Hungarian Brotherhood.
  - Jewish Peoples Fraternal Order.
  - People's Radio Foundation, Inc.
  - Polonia Society of the IWO.
  - Romanian-American Fraternal Society.
  - Serbian-American Fraternal Society.
  - Slovak Workers Society.
  - Ukrainian-American Fraternal Union.
- Jefferson School of Social Science, New York City.
- Jewish Peoples Committee.
- Joint Anti-Fascist Refugee Committee.
- Joseph Weydemeyer School of Social Science, St. Louis, Mo.
- Labor Youth League.
- League of American Writers.
- Macedonian-American People's League.
- Michigan Civil Rights Federation.
- Michigan School of Social Science.
- National Committee for the Defense of Political Prisoners.
- National Committee to Win the Peace.
- National Conference on American Policy in China and the Far East (a Conference called by the Committee for a Democratic Far Eastern Policy).
- National Council of Americans of Croatian Descent.
- National Council of American-Soviet Friendship.
- National Federation for Constitutional Liberties.
- National Negro Congress.
- Nature Friends of America (since 1935).
- Negro Labor Victory Committee.
- New Committee for Publications.
- North American Committee to Aid Spanish Democracy.
- North American Spanish Aid Committee.
- Ohio School of Social Sciences.
- Oklahoma Committee to Defend Political Prisoners.
- Pacific Northwest Labor School, Seattle, Washington.
- Partido del Pueblo of Panama (operating in the Canal Zone).
- Peoples Educational Association (Incorporated under name Los Angeles Educational Association, Inc.) aka Peoples Educational Center, Peoples University, People's School.
- People's Institute of Applied Religion.

Communist—Continued
- Philadelphia School of Social Science and Art.
- Photo League (New York City).
- Progressive German-Americans, aka Progressive German-Americans of Chicago.
- Proletarian Party of America.
- Revolutionary Workers League.
- Samuel Adams School, Boston, Massachusetts.
- Schappes Defense Committee.
- Schneiderman-Darcy Defense Committee.
- School of Jewish Studies, New York City.
- Seattle Labor School, Seattle, Washington.
- Serbian Vidovdan Council.
- Slovenian-American National Council.
- Socialist Workers Party, including American Committee for European Workers' Relief.
- Socialist Youth League.
- Tom Paine School of Social Science, Philadelphia, Pa.
- Tom Paine School of Westchester, New York.
- Union of American Croatians.
- United American Spanish Aid Committee.
- United Committee of South Slavic Americans.
- United Harlem Tenants and Consumers Organization.
- Veterans of the Abraham Lincoln Brigade.
- Walt Whitman School of Social Science, Newark, N. J.
- Washington Bookshop Association.
- Washington Committee for Democratic Action.
- Washington Commonwealth Federation.
- Wisconsin Conference on Social Legislation.
- Workers Alliance.
- Workers Party, including Socialist Youth League.
- Young Communist League.

Subversive:
- Communist Party, U. S. A., its subdivisions, subsidiaries and affiliates.
- Communist Political Association, its subdivisions, subsidiaries and affiliates, including:
  - Florida Press and Educational League.
  - Peoples Educational and Press Association of Texas.
  - Virginia League for Peoples Education.
- German-American Bund.
- Independent Socialist League.
- Partido del Pueblo of Panama (operating in the Canal Zone).
- Socialist Workers Party.
- Workers Party.
- Young Communist League.

Organizations which have "adopted a policy of advocating or approving the commission of acts of force and violence to deny others their rights under the Constitution of the United States":
- American Christian Nationalist Party.
- Associated Klans of America.
- Association of Georgia Klans.
- Columbians.
- Knights of the White Camellia.
- Ku Klux Klan.
- Original Southern Klans, Incorporated.
- Protestant War Veterans of the United States, Inc.
- Silver Shirt Legion of America.

Organizations which "seek to alter the form of government of the United States by unconstitutional means":
- Communist Party, U. S. A., its subdivisions, subsidiaries and affiliates.
- Communist Political Association, its subdivisions, subsidiaries and affiliates, including:
  - Florida Press and Educational League.
  - Peoples Educational and Press Association of Texas.
  - Virginia League for Peoples Education.
- Independent Socialist League.
- Industrial Workers of the World.
- Nationalist Party of Puerto Rico.
- Partido del Pueblo of Panama (operating in the Canal Zone).

Organizations which "seek to alter the form of government of the United States by unconstitutional means"—Continued
Socialist Workers Party.
Workers Party.
Young Communist League.

(Part III, E. O. 9835, Mar. 21, 1947, 12 F. R. 1935; 3 CFR, 1947 Supp.)

LOYALTY REVIEW BOARD,
UNITED STATES CIVIL SERVICE COMMISSION,
WILBUR LAROE, Jr.,
Vice Chairman.

[F. R. Doc. 50-10796; Filed, Nov. 28, 1950; 8:50 a. m.]

TITLE 6—AGRICULTURAL CREDIT

Chapter III—Farmers Home Administration, Department of Agriculture

Subchapter A—Farm Housing Loans and Grants

PART 301—BASIC REGULATIONS

CREDIT RESTRICTIONS

Subpart A of Part 301 in Title 6, Code of Federal Regulations (14 F. R. 6544), is amended to add § 301.3 as follows:

§ 301.3 *Temporary credit restrictions*—(a) *General.* Requirements issued pursuant to the Defense Production Act of 1950 necessitate establishment of new Farm Housing credit restrictions. Farm Housing loans were approved on or after October 18, 1950, or for which applications were received on or after October 12, 1950, must comply with the applicable requirements of this section. The credit restrictions established by this section apply only to Farm Housing funds advanced for dwelling construction, do not apply to amounts loaned for other purposes, and do not apply to any case in which the amount of Farm Housing funds to be used for dwelling construction is $2,500 or less. The credit restrictions established by this section apply to Farm Housing loans made in the United States and all territories and possessions, except Alaska.

(b) *Definitions.* As used in this section the terms listed below have the following meanings:

(1) *Dwelling construction.* The term dwelling construction includes all new construction, repair, or improvement planned for any dwelling in connection with a Farm Housing loan, including all sanitary facilities such as septic tanks or privies.

(2) *Cost of dwelling construction.* The cost of dwelling construction is the Engineer's estimate of the cost of the new construction, repair, alteration, or improvement planned for the dwelling, including the value of all materials and labor. The Engineer will determine the cost on the basis of current costs considering the cost of all material and labor to be utilized in the proposed dwelling construction.

(3) *Transaction price.* Transaction price is the Engineer's estimate of the cost of the proposed dwelling construction, and in case the construction is a new dwelling, plus 5 percent of such cost as an allowance for the building site. The 5 percent allowance for the building site will not be included in the transaction price of dwelling repair, alteration, or improvement.

(c) *Maximum dwelling loan.* The maximum amount of Farm Housing funds that may be loaned to a qualified borrower for dwelling construction purposes is a specified percentage of the "transaction price", depending upon the "transaction price" group within which the planned dwelling improvements fall and whether or not the applicant has veteran's preference.

(1) *Determination of maximum dwelling loan for applicant without veteran's preference.* The maximum amount that may be loaned for dwelling construction purposes to an applicant without veteran's preference is set forth in the following table:

Transaction Price of Dwelling and Maximum Dwelling Loan

More than $2,500 but not more than $5,000: 90 percent of transaction price.
More than $5,000 but not more than $9,000: $4,500 plus 65 percent of excess over $5,000.
More than $9,000 but not more than $15,000: $7,100 plus 60 percent of excess over $9,000.
More than $15,000 but not more than $20,000: $10,700 plus 20 percent of excess over $15,000.
Over $20,000: $11,700 plus 10 percent of excess over $20,000 but not less than 50 percent of transaction price.

(2) *Determination of maximum dwelling loan for applicant with veteran's preference.* The maximum amount that may be loaned for dwelling construction purposes to an applicant with veteran's preference is set forth in the following table:

Transaction Price of Dwelling and Maximum Dwelling Loan

More than $2,500 but not more than $5,000: 95 percent of transaction price.
More than $5,000 but not more than $6,000: $4,750 plus 95 percent of excess over $5,000.
More than $6,000 but not more than $9,000: $5,750 plus 75 percent of excess over $6,000.
More than $9,000 but not more than $12,000: $8,000 plus 70 percent of excess over $9,000.
More than $12,000 but not more than $15,000: $10,100 plus 45 percent of excess over $12,000.
More than $15,000 but not more than $20,000: $11,450 plus 25 percent of excess over $15,000.
More than $20,000 but not more than $24,250: $12,700 plus 15 percent of excess over $20,000.
Over $24,250: 55 percent of transaction price.

(d) *Maximum amortization period.* The maximum amortization periods established by this section apply to each Farm Housing loan which includes more than $2,500 for dwelling construction purposes.

(1) The maximum period over which a Farm Housing loan which includes more than $7,000 for dwelling construction purposes may be amortized is 20 years.

(2) The maximum period over which a Farm Housing loan which includes more than $2,500 but not more than $7,000 for dwelling construction purposes may be amortized is 25 years.

(e) *Waiver of credit restrictions.* The Administrator of the Farmers Home Administration may waive the credit restrictions established by this section when it is necessary to make further advances to protect the Government's security for outstanding loans.

(f) This section is promulgated in compliance with a determination by the Housing and Home Finance Administrator, acting pursuant to E. O. 10161, September 9, 1950, 15 F. R. 6105, that such promulgation is necessary to carry out the purposes of Title VI of the Defense Production Act of 1950 (Pub. Law 774, 81st Cong.). It shall be applicable notwithstanding any other provisions of this subchapter, and shall terminate upon the termination of E. O. 10161, unless earlier terminated by proper authority.

(Sec. 510, 63 Stat. 438; 42 U. S. C. 1480. E. O. 10161, Sept. 9, 1950, 15 F. R. 6105. Interprets or applies sec. 605, Pub. Law 774, 81st Cong.)

Effective as of October 12, 1950.

[SEAL] CHARLES F. BRANNAN,
Secretary of Agriculture.

Approved: November 22, 1950.

RAYMOND M. FOLEY,
Housing and Home Finance Administrator.

[F. R. Doc. 50-10817; Filed, Nov. 28, 1950; 8:54 a. m.]

Subchapter B—Farm Ownership Loans

PART 311—BASIC REGULATIONS

CREDIT RESTRICTIONS

Subpart A of Part 311 in Title 6, Code of Federal Regulations (13 F. R. 9378), is amended to add § 311.8 as follows:

§ 311.8 *Temporary credit restrictions*—(a) *General.* Requirements issued pursuant to the Defense Production Act of 1950 necessitate establishment of Farm Ownership credit restrictions. Farm Ownership loans, direct or insured, for which applications were received on or after October 12, 1950, must comply with the applicable requirements of this section. The credit restrictions established by this section apply only to Farm Ownership funds advanced for dwelling construction as defined in paragraph (b) (1) of this section, do not apply, except as provided in paragraph (d) of this section, to amounts loaned for other purposes, and do not apply to any case in which the amount of Farm Ownership funds to be used for dwelling construction is $2,500 or less. The credit restrictions established by this section apply to Farm Ownership loans made in the United States and all territories and possessions, except Alaska.

(b) *Definitions.* As used in this section, the terms listed below have the following meanings:

(1) *Dwelling construction.* The term "dwelling construction" includes all new construction, repair, alteration, or improvement planned for any dwelling in connection with a Farm Ownership loan, including all sanitary facilities such as septic tanks or privies.

(2) *Cost of dwelling construction.* The cost of dwelling construction is the Engineer's estimate of the cost of the new construction, repair, alteration, or

improvement planned for the dwelling, including the value of all materials and labor. The Engineer will determine the cost on the basis of current costs considering the cost of all material and labor to be utilized in the proposed dwelling construction.

(3) *Transaction price.* Transaction price is the Engineer's estimate of the cost of the proposed dwelling construction and in case the construction is for a new dwelling plus 5 percent of such cost as an allowance for the building site. The 5 percent allowance for the building site will not be included in the transaction price of dwelling repair, alteration, or improvement.

(4) *Cash cost of dwelling construction.* The amount of cash determined by the Engineer to be necessary to complete planned dwelling construction.

(c) *Maximum dwelling loan.* The maximum amount of Farm Ownership funds that may be loaned to a qualified applicant for dwelling construction purposes is a specified percentage of the transaction price, depending upon the transaction price group within which the planned dwelling improvements fall and whether or not the applicant has veteran's preference.

(1) *Determination of maximum dwelling loan for applicant without veteran's preference.* The maximum amount that may be loaned for dwelling construction purposes to an applicant without veteran's preference is set forth in the following table:

Transaction Price of Dwelling and Maximum Dwelling Loan

More than $2,500 but not more than $5,000: 90 percent of transaction price.

More than $5,000 but not more than $9,000: $4,500 plus 65 percent of excess over $5,000.

More than $9,000 but not more than $15,000: $7,100 plus 60 percent of excess over $9,000.

More than $15,000 but not more than $20,000: $10,700 plus 20 percent of excess over $15,000.

Over $20,000: $11,700 plus 10 percent of excess over $20,000 but not less than 50 percent of transaction price.

(2) *Determination of maximum dwelling loan for applicant with veteran's preference.* The maximum amount that may be loaned for dwelling construction purposes to an applicant with veteran's preference is set forth in the following table:

Transaction Price of Dwelling and Maximum Dwelling Loan

More than $2,500 but not more than $5,000: 95 percent of transaction price.

More than $5,000 but not more than $6,000: $4,750 plus 95 percent of excess over $5,000.

More than $6,000 but not more than $9,000: $5,750 plus 75 percent of excess over $6,000.

More than $9,000 but not more than $12,000: $8,000 plus 70 percent of excess over $9,000.

More than $12,000 but not more than $15,000: $10,100 plus 45 percent of excess over $12,000.

More than $15,000 but not more than $20,000: $11,450 plus 25 percent of excess over $15,000.

More than $20,000 but not more than $24,250: $12,700 plus 15 percent of excess over $20,000.

Over $24,250: 55 percent of transaction price.

(NOTE: The complete schedule issued for all Federal agencies was set out in paragraphs (c) (1) and (2) of this section, even though the upper brackets of transaction price will not apply to the Farm Ownership program.)

(d) *Maximum amortization period.* The maximum amortization period established by this section applies to each Farm Ownership loan which includes more than $2,500 for dwelling construction purposes and to each Farm Ownership loan where the funds to be advanced for dwelling construction purposes exceed 75% of the total loan for all purposes.

(1) When that portion of the Farm Ownership loan to be advanced for dwelling construction purposes is more than $2,500 and not more than $7,000, and if the amount to be advanced for dwelling construction purposes exceeds 75% of the total loan for all purposes, the maximum amortization period of the total loan is 25 years.

(2) When that portion of the Farm Ownership loan to be advanced for dwelling construction purposes is more than $7,000, and if the amount to be advanced for dwelling construction purposes exceeds 75% of the total loan for all purposes, the maximum amortization period of the total loan is 20 years.

(3) Loans which include not more than $2,500 for dwelling construction purposes or loans which include for dwelling construction purposes not more than 75% of the total loan for all purposes may be amortized for not more than 40 years in accordance with present procedure.

(e) *Waiver of credit restrictions.* The Administrator of the Farmers Home Administration may waive the credit restrictions established by this section when it is necessary to make further advances to protect the Government's security for outstanding loans.

(f) This section is promulgated in compliance with a determination by the Housing and Home Finance Administrator, acting pursuant to E. O. 10161, September 9, 1950, 15 F. R. 6105, that such promulgation is necessary to carry out the purposes of Title VI of the Defense Production Act of 1950 (Pub. Law 774, 81st Cong.). It shall be applicable notwithstanding any other provisions of this subchapter, and shall terminate upon the termination of E. O. 10161, unless earlier terminated by proper authority.

(Sec. 41, 60 Stat. 1066; 7 U. S. C. 1015. E. O. 10161, Sept. 9, 1950, 15 F. R. 6105. Interprets or applies sec. 605, Pub. Law 774, 81st Cong.)

Effective as of October 12, 1950.

[SEAL] CHARLES F. BRANNAN,
Secretary of Agriculture.

Approved: November 22, 1950.

RAYMOND M. FOLEY,
Housing and Home Finance Administrator.

[F. R. Doc. 50-10812; Filed, Nov. 28, 1950; 8:53 a. m.]

Subchapter B—Farm Ownership Loans

PART 311—BASIC REGULATIONS

SUBPART B—LOAN LIMITATIONS

AVERAGE VALUES OF FARMS AND INVESTMENT LIMITS; IOWA

For the purposes of title I of the Bankhead-Jones Farm Tenant Act, as amended, average values of efficient family-type farm-management units and investment limits for the counties identified below are determined to be as herein set forth. The average values and investment limits heretofore established for said counties, which appear in the tabulations of average values and investment limits under § 311.30, Chapter III, Title 6 of the Code of Federal Regulations (13 F. R. 9381), are hereby superseded by the average values and investment limits set forth below for said counties.

IOWA

County	Average value	Investment limit
Adair	$15,500	$12,000
Adams	15,000	12,000
Allamakee	14,500	12,000
Audubon	17,500	12,000
Benton	21,000	12,000
Black Hawk	19,500	12,000
Boone	21,000	12,000
Bremer	16,500	12,000
Buchanan	16,000	12,000
Buena Vista	22,500	12,000
Butler	18,000	12,000
Calhoun	24,000	12,000
Carroll	21,000	12,000
Cass	17,500	12,000
Cedar	20,500	12,000
Cerro Gordo	19,500	12,000
Cherokee	22,000	12,000
Chickasaw	14,500	12,000
Clay	22,500	12,000
Clayton	16,000	12,000
Clinton	17,000	12,000
Crawford	18,000	12,000
Dallas	18,500	12,000
Delaware	17,000	12,000
Des Moines	16,000	12,000
Dickinson	19,500	12,000
Dubuque	16,500	12,000
Emmet	20,500	12,000
Fayette	15,500	12,000
Floyd	17,500	12,000
Franklin	21,000	12,000
Fremont	19,500	12,000
Greene	22,000	12,000
Grundy	24,000	12,000
Guthrie	16,000	12,000
Hamilton	23,000	12,000
Hancock	20,500	12,000
Hardin	21,500	12,000
Harrison	16,000	12,000
Henry	16,500	12,000
Howard	14,500	12,000
Humboldt	24,000	12,000
Ida	20,000	12,000
Iowa	18,000	12,000
Jackson	16,000	12,000
Jasper	17,500	12,000
Johnson	18,500	12,000
Jones	17,000	12,000
Keokuk	16,000	12,000
Kossuth	21,000	12,000
Lee	14,000	12,000
Linn	18,000	12,000
Louisa	17,000	12,000
Lucas	12,000	12,000
Lyon	20,500	12,000
Mahaska	17,000	12,000
Marion	14,000	12,000
Marshall	21,000	12,000
Mills	18,500	12,000
Mitchell	17,500	12,000
Monona	17,000	12,000
Montgomery	18,500	12,000
Muscatine	18,500	12,000
O'Brien	24,000	12,000
Osceola	20,000	12,000
Page	17,500	12,000
Palo Alto	21,000	12,000
Plymouth	20,000	12,000
Pocahontas	24,000	12,000
Polk	19,000	12,000
Pottawattamie	19,000	12,000
Poweshiek	18,000	12,000
Ringgold	13,000	12,000

Iowa—Continued

County	Average value	Investment limit
Sac	$22,000	$12,000
Scott	21,000	12,000
Shelby	19,500	12,000
Sioux	21,000	12,000
Story	21,500	12,000
Tama	19,500	12,000
Taylor	14,500	12,000
Union	14,000	12,000
Warren	15,500	12,000
Washington	18,000	12,000
Webster	22,000	12,000
Winnebago	18,500	12,000
Winneshiek	15,500	12,000
Woodbury	16,500	12,000
Worth	18,000	12,000
Wright	23,000	12,000

(Sec. 41, 60 Stat. 1066; 7 U. S. C. 1015. Interprets or applies secs. 3, 44, 60 Stat. 1074, as amended, 1069; 7 U. S. C. and Sup., 1003, 1018)

Issued this 22d day of November 1950.

[SEAL] CHARLES F. BRANNAN,
Secretary of Agriculture.

[F. R. Doc. 50-10783; Filed, Nov. 28, 1950; 8:48 a. m.]

TITLE 7—AGRICULTURE

Subtitle A—Office of the Secretary of Agriculture

[Amdt. 2]

PART 4—WAR FOOD ORDERS (PMA)

ITEMS SUBJECT TO AGRICULTURE-IMPORT ORDER

Pursuant to the authority vested in me by the Agriculture-Import Order (14 F. R. 3701, 4660), Appendix A to the order is hereby revised by deleting the following items therefrom:

Food	Commerce Import Class No.
Fatty acids, not specially provided for, derived from vegetable oils, animal or fish oils, animal fats and greases, not elsewhere specified:	
Cottonseed oil	2260.220
Linseed oil	2260.210
Soybean oil	2260.230
Other, not elsewhere specified	2260.240
Lard (including rendered pork fat)	0036.000
Oleo oil	0036.200
Oleo stearine	0036.300
Palm oil	2243.000
Soap and soap powder	8711.000–8719.900, inclusive
Tallow, beef and mutton, including oleo stock	0036.600
Tallow, beef and mutton (inedible), including oleo stock	0815.600

This revision shall become effective at 12:01 a. m., November 25, 1950.

(E. O. 9280, Dec. 5, 1942, 7 F. R. 10179; 3 CFR, 1943 Cum. Supp., E. O. 9577, June 29, 1945, 10 F. R. 8087; 3 CFR, 1945 Supp.)

Issued this 24th day of November 1950.

[SEAL] FRANK K. WOOLLEY,
Deputy Administrator, Production and Marketing Administration.

[F. R. Doc. 50-10816; Filed, Nov. 28, 1950; 8:54 a. m.]

Chapter I—Production and Marketing Administration (Standards, Inspections, Marketing Practices), Department of Agriculture

Subchapter C—Regulations and Standards Under the Farm Products Inspection Act

PART 53—MEATS, PREPARED MEATS, AND MEAT PRODUCTS (GRADING, CERTIFICATION, AND STANDARDS)

REVISION OF CERTAIN PROVISIONS OF U. S. STANDARDS FOR GRADES OF CARCASS BEEF

On May 12, 1950, and June 3, 1950, notices of rule making were published in the FEDERAL REGISTER (15 F. R. 2845 and 15 F. R. 3487) regarding a proposed revision of §§ 53.102, 53.103, and 53.104 of the United States standards for grades of carcass beef (7 CFR 53.102 to 53.104, inclusive, as amended) under the Agricultural Marketing Act of 1946 (60 Stat. 1087, 7 U. S. C. 1621 et seq.) and the items for Market Inspection of Farm Products and Marketing Farm Products recurring in the annual appropriation acts for the Department of Agriculture.

An oral hearing on the proposed revision was held at Chicago, Illinois, on June 28, 1950, at which interested persons presented their views. Written data concerning the proposed revision were also submitted to the Department. After due consideration of all relevant matters presented, and pursuant to the aforesaid Agricultural Marketing Act of 1946 and the items for Market Inspection of Farm Products and Marketing Farm Products contained in the Department of Agriculture Appropriation Act, 1951, said §§ 53.102, 53.103, and 53.104 of the United States standards for grades of carcass beef are hereby amended as follows:

1. Section 53.102 is amended to read as follows:

§ 53.102 *Application of standards for grades of carcass beef.* (a) (1) Beef is graded on a composite evaluation of three general grade factors—conformation, finish and quality. These factors are concerned with the proportions of the various wholesale cuts in the carcass, the proportions of fat, lean and bone, and the quality of the meat. Carcasses qualifying for any particular grade may vary with respect to their relative development of the three grade factors, and there will be carcasses which qualify for a particular grade, some of whose characteristics may be more nearly typical of another grade. Because it is impractical to describe the nearly limitless numbers of such recognizable combinations of characteristics, the standards for each grade describe only beef which has a relatively similar degree of development of conformation, finish and quality and which is also generally representative of the midpoint of each grade. A few minimum requirements are included in some of the specifications.

(2) As an aid in the correct interpretation of the standards, the Department uses color photographs of carcasses illustrating combinations of characteristics which qualify the carcasses for the lower limits of each grade.

(3) The grade descriptions in §§ 53.104 to 53.106 are defined primarily in terms of carcass beef. However, they are applicable also to wholesale cuts. It is recognized that some of the wholesale cuts produced from a carcass which may be near the limits of a grade may not be of the same grade as that of the carcass from which they were produced. The correct grade for wholesale cuts shall be determined by an evaluation of the degrees of conformation, finish and quality of the wholesale cuts and not the carcass from which they are derived.

(b) Beef includes meat from animals that vary widely with respect to maturity. Some of the grades for carcass beef specified in this subpart differ with respect to the maximum maturity permitted. In those grades in which the greatest range of maturity is permitted two separate requirements for certain of the grade factors have been specified depending upon evidences of the maturity attained by the animals from which it was produced. Advancing maturity is associated with a general decline in thickness of muscling, increased roughness and irregularity in conformation and finish and the gradual ossification of bones and cartilages most easily noted in the split chine bones. Within any specified grade the degree of finish and marbling required increases progressively with advancing maturity.

(c) The standards set forth in § 53.104 provide for the grading and stamping of beef from steers, heifers, and cows according to its characteristics as beef without sex identification. Such beef placed within each respective grade, therefore, shall possess the characteristics specified for that grade, irrespective of the sex of the animal from which it was derived. Beef produced from bulls and stags shall be graded according to its characteristics as bull beef and as stag beef in accordance with the standards set forth in §§ 53.105 and 53.106. When graded and identified according to grade, such beef shall be identified also for class as "Bull" beef or "Stag" beef as the case may be. No designated grade of bull beef or of stag beef is comparable in quality with a similarly designated grade of beef derived from steers, heifers, or cows. Neither is the quality in a designated grade of bull beef comparable with a similarity designated quality of stag beef.

2. Section 53.103 is amended to read as follows:

§ 53.103 *Standard grades for carcass beef.* There are seven grades for beef from steers and heifers, and six grades for beef from cows, bulls, and stags. These are listed in the following schedule of grades.

SCHEDULE—STANDARD MARKET CLASSES AND GRADES FOR DRESSED BEEF

Class	Grade	Class	Grade
Steer, heifer and cow.[1]	Prime. Choice. Good. Commercial. Utility. Cutter. Canner.	Bull and stag.	Choice. Good. Commercial. Utility. Cutter. Canner.

[1] Cow beef is not eligible for Prime grade.

3. Section 53.104 (a), (b), (c), and (d) are amended to read respectively as follows:

§ 53.104 *Specifications for official United States standards for grades of carcass beef (steer, heifer, and cow)*—(a) *Prime.* (1) Prime grade beef carcasses and wholesale cuts are blocky and compact and very thickly fleshed throughout. Loins and ribs are thick and full. The rounds are plump and the plumpness extends well down toward the hocks. The chucks are thick and the necks and shanks short. The fat covering is fairly smooth and uniformly distributed over the exterior surface of the carcass. The interior fat is abundant in the pelvic cavity and over the kidney. The protrusion of fat between the chine bones is liberal and the overflow of fat over the inside of the ribs is abundant and fairly evenly distributed. The intermingling of fat with the lean in evidence between the ribs, called feathering, is extensive. Both the interior and exterior fats are firm, brittle and somewhat waxy, but the interior fat may be slightly wavy or rough. The cut surface of the rib eye muscle is firm and has a smooth, velvety appearance. It has abundant marbling and the marbling is extensive, especially in the heavier carcasses. The color may range from a pale red to a deep blood red but shall be uniform and bright. The chine bones are usually soft and red, terminating in soft, pearly white cartilages.

(2) However, carcasses showing evidences of maximum maturity permitted in the Prime grade may have chine bones which are tinged with white and cartilages on the end of the chine bones which are slightly ossified. Such carcasses must also be symmetrical and uniform in contour and the rib eye muscle must be fine in texture.

(3) Regardless of the extent to which other grade factors may exceed the minimum requirements for the grade, a carcass must have certain evidences of quality to be eligible for the Prime grade. The cut surface of the muscle must be firm, fine in texture and bright in color. Slightly abundant marbling must be evident in the rib eye muscle of carcasses with soft, red chine bones terminating in soft pearly white cartilages. Progressively more marbling is required in carcasses with evidences of more advanced maturity. Carcasses which are only moderately compact and blocky with only moderately plump rounds and moderately thick fleshing may meet the minimum requirements for the Prime grade provided they have finish and evidences of quality equivalent to the midpoint of the Prime grade.

(4) Only beef produced from steers and heifers will qualify for the Prime grade.

(b) *Choice.* (1) Choice grade beef carcasses and wholesale cuts are moderately blocky and compact and moderately thick fleshed throughout. Loins and ribs are moderately thick and full and the rounds are moderately plump. The chucks are moderately thick and the necks and shanks are moderately short. The fat covering of beef within the grade will vary within moderate limits depending on evidences of the maturity attained by the animal from which it was produced. Carcasses whose chine bones are soft and red and terminate in soft, pearly white cartilages may have a slightly thin covering of exterior fat and a moderate quantity of interior fat. In such beef there will be a modest protrusion of fat between the chine bones and moderate overflow fat and feathering. Carcasses whose chine bones are tinged with white and terminate in cartilages in which ossification is plainly evident will usually possess a moderately thick exterior fat covering that extends over nearly the entire surface of the carcass and shall have fairly heavy deposits of interior fat. In such beef there will be a moderate protrusion of fat between the chine bones and moderately abundant overflow fat and feathering. Interior and exterior fats are fairly firm and brittle. Characteristics of the cut surface of the rib eye muscle will vary, depending on evidences of the maturity attained by the animal from which it was produced. In carcasses whose chine bones are soft, and red and terminate in soft, pearly white cartilages, the rib eye muscle has a moderate amount of marbling and is usually slightly soft but fine in texture. In carcasses whose chine bones are tinged with white and terminate in cartilages in which some ossification is evident, the rib eye muscle has moderately abundant marbling and is usually moderately firm and fine in texture. The color of the rib eye muscle usually ranges from a light red to slightly dark red. It is usually uniform and bright in color but may be slightly two-toned or slightly shady.

(2) However, carcasses showing evidences of maximum maturity permitted in the Choice grade may have chine bones which are tinged with white and cartilages on the end of the chine bones which are partially ossified. Such carcasses must also be at least moderately symmetrical and uniform in contour and the rib eye muscle must be fine in texture.

(3) Regardless of the extent to which other grade factors may exceed the minimum requirements for the grade, carcasses whose flesh is moderately soft and slightly watery are not eligible for the Choice grade. The minimum marbling permitted will vary from a small amount in very red-boned, light weight carcasses to a moderate amount in carcasses approaching the maximum maturity permitted. Carcasses which are slightly compact and blocky and with slightly plump rounds and slightly thick fleshing may meet the minimum requirements for the grade provided they have finish and evidences of quality equivalent to the midpoint of the Choice grade.

(4) Beef produced from steers, heifers and young cows may qualify for the Choice grade.

(c) *Good.* (1) Good grade beef carcasses and wholesale cuts are slightly compact and blocky in conformation and the fleshing tends to be slightly thick throughout. Loins and ribs are slightly full and the rounds are only slightly plump. Chucks are slightly thick and full and the neck and fore shanks tend to be slightly long and thin. The fat covering of beef within the grade will vary within moderate limits depending on the evidences of maturity of the cattle from which it was produced. Carcasses whose chine bones are soft and red and terminate in soft, pearly white cartilages have a thin exterior fat covering over loins and ribs and over portions of the rounds and chucks. In such beef there will be only a slight protrusion of fat between the chine bones, only a small overflow of fat over the inside of the ribs and only a small quantity of feathering between the ribs. Carcasses whose chine bones are tinged with white and terminate in cartilages in which some ossification is evident will usually possess a slightly thick exterior fat covering which extends over most of the rounds and chucks. They will have slight protrusions of fat between the chine bones and slightly abundant overflow fat and feathering. The fat may be somewhat soft or slightly oily. Characteristics of the cut surface of the rib eye muscle will vary depending on evidences of maturity attained by the animal from which it was produced. In carcasses whose chine bones are soft and red and terminate in soft, pearly white cartilages the rib eye muscle has a slight amount of marbling and is usually moderately soft but fine in texture. Carcasses whose chine bones are tinged with white and terminate in cartilages in which some ossification is evident will have a modest amount of marbling and the muscle is usually slightly soft and slightly coarse in texture. The muscle will usually vary from a light red to a slightly dark red in color but may be slightly two-toned or slightly shady.

(2) However, carcasses showing evidence of maximum maturity permitted in the Good grade may have chine bones tinged with white and cartilages on the end of the chine bones which are moderately ossified. Such carcasses must also be at least moderately symmetrical and uniform in contour and the rib eye muscle must be at least moderately fine in texture.

(3) Red-boned, light weight carcasses which have traces of marbling may meet the minimum requirements for Good provided they have confirmation equivalent to at least the midpoint of the grade. However, carcasses which show similar evidences of maturity but which are slightly rangy and angular are required to show a slight amount of marbling. Carcasses near the maximum limit for maturity with conformation equivalent to at least the midpoint of this grade may qualify for Good with a small amount of marbling whereas carcasses which show similar evidences of maturity and which are slightly rangy and angular are required to have a modest amount of marbling.

(d) *Commercial.* (1) Beef qualifying for the Commercial grade is quite variable in conformation, finish and quality and in the evidences of maturity attained by the animal from which it was produced. Young, red-boned carcasses are rangy, angular and slightly thin fleshed throughout. Loins and ribs tend to be flat and are slightly thin fleshed. The rounds are moderately flat and tapering. Chucks are slightly flat

and thinly fleshed. Such beef will have only a thin covering of external fat over the loins and ribs, practically no protrusion of fat between the chine bones and very scanty quantities of overflow fat and feathering. The cut surface of the rib eye muscle of such beef is somewhat soft and watery but fine in texture and will have little if any marbling. The fat is moderately soft or oily.

(2) Carcasses that have hard, white chine bones are slightly thick fleshed but rather rough and irregular in contour. Rounds are slightly flat and tapering. Loins are moderately wide but slightly sunken and the hips are rather prominent. Ribs tend to be slightly thick and full. Chucks are slightly thin and plates and briskets are wide and "spready". The neck and shanks are slightly long and thin. Such beef will have a moderately thick exterior fat covering, a moderate protrusion of fat between the chine bones and moderately abundant overflow fat and feathering. The external fat covering of such beef will be considerably thicker over the loins and ribs than over the rounds and chucks and will frequently be patchy or wasty. The fat is usually firm. The cut surface of the rib eye muscle is firm but coarse in texture and the marbling is rather abundant but is also rather coarse and prominent. The lean will usually vary from slightly dark red to dark red in color but may be two-toned or shady.

(3) Young, red-boned, light weight carcasses with conformation equivalent to the midpoint of the grade as described above may be devoid of marbling and qualify for the Commercial grade. However, regardless of the development of other grade factors, older carcasses that have hard, white chine bones must have at least a moderate amount of marbling in the rib eye muscle to qualify for the grade. Carcasses from mature animals with conformation and evidences of quality which only slightly exceed the minimum requirements of the grade are not eligible for the Commercial grade if they are excessively patchy or uneven in distribution of external fat.

(Secs. 1, 205, 60 Stat. 290, as amended, 1090; 7 U. S. C. and Sup., 414, 1624)

The foregoing amendment combines the U. S. Prime and U. S. Choice grades as heretofore constituted for steer and heifer beef into one grade designated as U. S. Prime, redesignates as U. S. Choice, the grade for steer, heifer, and cow beef heretofore known as U. S. Good, and divides the grade for such beef heretofore designated as U. S. Commercial into two grades, U. S. Good and U. S. Commercial. Steer, heifer and cow beef from cattle which have not reached full maturity and which heretofore came within the top half of the U. S. Commercial grade will hereafter be graded U. S. Good. All other steer, heifer, and cow beef heretofore graded U. S. Commercial will continue to have that grade designation.

Other changes in the specifications for Prime, Choice, Good and Commercial Grades of steer, heifer, and cow beef are made to facilitate the interpretation of the specifications and to conform them with color photographs used by the Department of Agriculture for illustrating the minimum requirements of the respective grades. Other minor changes are made for clarity and consistency.

This amendment shall become effective 30 days after its publication in the FEDERAL REGISTER.

Done at Washington, D. C., this 22d day of November 1950.

[SEAL] CHARLES F. BRANNAN,
Secretary of Agriculture.

[F. R. Doc. 50-10788; Filed, Nov. 28, 1950; 8:48 a. m.]

Chapter IX—Production and Marketing Administration (Marketing Agreements and Orders), Department of Agriculture

PART 959—IRISH POTATOES GROWN IN THE COUNTIES OF CROOK, DESCHUTES, JEFFERSON, KLAMATH, AND LAKE IN OREGON, AND MODOC AND SISKIYOU IN CALIFORNIA

LIMITATION OF SHIPMENTS

§ 959.305 *Limitation of shipments*—(a) *Findings* (1) Pursuant to Marketing Agreement No. 114 and Order No. 59, as amended (7 CFR Part 959) regulating the handling of Irish potatoes grown in the counties of Crook, Deschutes, Jefferson, Klamath, and Lake in the State of Oregon, and Modoc and Siskiyou in the State of California, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (48 Stat. 31, as amended; 7 U. S. C. 601 et seq.), and upon the basis of the recommendation and information submitted by the Oregon-California Potato Committee, established under said marketing agreement and order, and other available information, it is hereby found that such limitation of shipments as hereinafter provided will tend to effectuate the declared policy of the act.

(2) It is hereby found that it is impracticable and contrary to the public interest to give preliminary notice, engage in public rulemaking procedure, and postpone the effective date of this section until thirty days after publication thereof in the FEDERAL REGISTER (5 U. S. C. 1001 et seq.) in that (i) shipments of the 1950 crop Irish potatoes grown in the production area have begun and shipping limitations have been in effect since September 16, 1950, (ii) more orderly marketing in the public interest than would otherwise prevail will be promoted by regulating the shipment of potatoes in the manner set forth below on and after the effective date hereinafter set forth, (iii) compliance with this section will not require any preparation on the part of handlers which cannot be completed by the effective date hereof, (iv) a reasonable time is permitted, under the circumstances, for such preparation, (v) the time intervening between the date when adequate information became available to the Oregon-California Potato Committee to make its recommendation and the time when this section must become effective in order to effectuate the declared policy of the act is insufficient, and (vi) information regarding the committee's recommendation has been made available to producers and handlers in the production area.

(b) *Order.* (1) During the period beginning December 4, 1950, and ending June 30, 1951, both dates inclusive, each shipment of potatoes grown in Districts Nos. 2 and 3 shall be limited, except as hereinafter otherwise provided, to potatoes which are U. S. No. 1 or better grade, and which are not less than 2 inches minimum diameter or 4 ounces minimum weight, as such grade and sizes are defined in the U. S. Standards for Potatoes (7 CFR 51.366), including the tolerances set forth therein; and

(2) During the aforesaid period, each shipment of potatoes grown in District No. 1 shall be limited, except as hereinafter otherwise provided, to potatoes which are U. S. No. 2 or better grade, and which are not less than 2 inches minimum diameter or 4 ounces minimum weight, as such grade and sizes are defined in the U. S. Standards for Potatoes (7 CFR 51.366), including the tolerances set forth therein.

(3) During the aforesaid period, any shipment of potatoes of 20 hundredweight or less may be made without limitation.

(4) During the aforesaid period, shipments of potatoes for the following purposes may be made without limitation: (i) For grading or storing in the production area, (ii) for export, (iii) for distribution by the Federal Government, for distribution by relief agencies, or for consumption by charitable institutions, (iv) for manufacture or conversion into starch, glucose, alcohol, and dehydrated livestock feed products, (v) for livestock feed, and (vi) for seed: *Provided*, That each handler making shipments for any of such purposes shall, prior to effecting such shipment, file an application with the committee to do so and have each of such shipments inspected and pay assessments in connection therewith, except that the payment of assessments and the procurement of inspection shall not be required for shipments of potatoes for the purpose of having such potatoes graded or stored in the production area.

(5) The terms used in this section shall have the same meanings as when used in Marketing Agreement No. 114 and Order No. 59, as amended (7 CFR Part 959).

(6) The limitations set forth in this section supersede the limitations issued on September 14, 1950, and published in the FEDERAL REGISTER on September 16, 1950 (15 F. R. 6215), and such prior limitations are hereby terminated and revoked as of the effective date of the limitations set forth in this section.

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. and Sup. 608c)

Done at Washington, D. C., this 24th day of November 1950, to be effective on December 4, 1950.

[SEAL] FLOYD F. HEDLUND,
Acting Director, Fruit and Vegetable Branch, Production and Marketing Administration.

[F. R. Doc. 50-10814; Filed, Nov. 28, 1950; 8:53 a. m.]

[Orange Reg. 347]

PART 966—ORANGES GROWN IN CALIFORNIA OR IN ARIZONA

LIMITATION OF SHIPMENTS

§ 966.493 *Orange Regulation 347*—(a) *Findings.* (1) On November 7, 1950, notice of proposed rule making was published in the FEDERAL REGISTER (15 F. R. 7486) regarding a proposed limitation of the shipment of oranges, grown in the State of California, during the period December 3, 1950, to January 27, 1951, pursuant to Order No. 66, as amended (7 CFR Part 966), regulating the handling of oranges grown in the State of California or in the State of Arizona. This regulatory program is effective pursuant to the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.). After consideration of all relevant matters presented, including the proposals set forth in the aforesaid notice, which were submitted by the Orange Administrative Committee (established pursuant to the amended order), and other available information, it is hereby found that the limitation of shipments of oranges, as hereinafter provided, will tend to effectuate the declared policy of the act.

(2) It is hereby further found that good cause exists for not postponing the effective date of this section until 30 days after publication in the FEDERAL REGISTER (60 Stat. 237; 5 U. S. C. 1001 et seq.) in that: (i) The Orange Administrative Committee held an open meeting on October 26, 1950, to consider recommendations for a regulation, after giving due notice of such meeting, and interested persons were afforded an opportunity to submit their views at this meeting; (ii) information regarding the provisions of the recommended regulation has been disseminated among shippers of oranges grown in the States of California and Arizona, and this section is identical with the recommendation of the committee and the current size regulation (7 CFR 966.478; 15 F. R. 3863) applicable to Valencia oranges grown in Prorate District No. 2; (iii) notice that consideration was being given to the issuance of the regulation recommended by the committee was published in the FEDERAL REGISTER (15 F. R. 7486) and interested persons were again afforded an opportunity to submit their views; (iv) shipments of such Valencia oranges have been subject to regulation by sizes, pursuant to the amended order, since June 18, 1950, and unless the same regulation is continued beyond December 2, 1950, shipments of such oranges would be permitted without regard to the size limitation subsequent to that date; (v) it is necessary, in order to effectuate the declared policy of the act, to make this section effective on the date hereinafter set off so as to provide for the continued regulation of such oranges by sizes; (vi) compliance with this section will not require any special preparation on the part of persons subject thereto which cannot be completed on or before the effective date hereof; and (vii) a reasonable time is permitted, under the circumstances, for such preparation.

(b) *Order.* (1) During the period beginning at 12:01 a. m., P. s. t., December 3, 1950, and ending at 12:01 a. m., P. s. t., January 27, 1951, standard size 288 is fixed as the minimum size of Valencia oranges, grown in Prorate District No. 2, which may be handled.

(2) As used in this section, "handled" has the same meaning as when used in said amended order; and the terms "standard size 288" and "Prorate District No. 2" shall have the same meaning as when used in §§ 966.106 (g) and 966.107 of the rules and regulations (7 CFR 966.103 et seq.) currently in effect.

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. and Sup., 608c)

Done at Washington, D. C., this 24th day of November 1950.

[SEAL] M. W. BAKER,
Acting Director, Fruit and Vegetable Branch, Production and Marketing Administration.

[F. R. Doc. 50-10785; Filed, Nov. 28, 1950; 8:48 a. m.]

PART 993—HANDLING OF DRIED PRUNES PRODUCED IN CALIFORNIA

APPROVAL OF BUDGET OF EXPENSES OF PRUNE ADMINISTRATIVE COMMITTEE FOR 1950–51 CROP YEAR AND FIXING RATE OF ASSESSMENT FOR SUCH YEAR

Notice was published in the November 4, 1950, issue of the FEDERAL REGISTER (15 F. R. 7443) that the Secretary of Agriculture was considering a proposed rule to approve a budget of expenses for the Prune Administrative Committee for the 1950–51 crop year, and fix a rate of assessment for such year, as hereinafter set forth, which were recommended by said committee in accordance with the provisions of Marketing Agreement No. 110 and Order No. 93 (7 CFR, Part 993), regulating the handling of dried prunes produced in California, effective under the Agricultural Marketing Agreement Act of 1937, as amended (48 Stat. 31, as amended; 7 U. S. C. 601 et seq.). In said notice, opportunity was afforded all interested persons to file written data, views, or arguments with respect thereto. No such written data, views or arguments were filed within the period provided therefor.

After consideration of all matters pertaining thereto, including the recommendations of the Prune Administrative Committee, it is hereby found and determined, and it is, therefore, ordered, that the budget of expenses for the Prune Administrative Committee, and the rate of assessment, for the crop year beginning August 1, 1950, shall be as follows:

§ 993.301 *Budget of expenses and rate of assessment*—(a) *Budget of expenses of the Prune Administrative Committee for the 1950–51 crop year.* Expenses in the amount of $91,000 are reasonable and are likely to be incurred by the Prune Administrative Committee for its maintenance and functioning for the crop year beginning August 1, 1950, and ending July 31, 1951.

(b) *Rate of assessment for the 1950–51 crop year.* Each handler shall pay to the Prune Administrative Committee in accordance with the marketing agreement and order, an assessment of 65 cents for each ton of salable tonnage prunes handled by him as the first handler thereof and for each ton of prunes sold to him from surplus tonnage for resale to other than Federal governmental agencies, during the crop year beginning August 1, 1950 and ending July 31, 1951, which assessment rate is hereby fixed as each handler's pro rata share of the aforesaid expenses.

It is hereby found and determined that good cause exists for not postponing the effective time of the order with respect to the aforesaid budget of expenses and rate of assessment for 30 days, or any lesser period, after publication of it in the FEDERAL REGISTER, (60 Stat. 237); 5 U. S. C. 1001 et seq. in that: (1) The rate of assessment hereby fixed is applicable to all dried prunes handled during the current crop year; (2) handlers already have begun to receive deliveries of dried prunes from producers which receipts are, by the terms of the marketing agreement and order subject to the assessments set forth hereinabove; (3) it is essential that the Prune Administrative Committee be enabled to obtain assessment funds promptly to defray expenses of administering the program; and (4) compliance with this section will not require any special preparation on the part of handlers.

(Sec. 5.49 Stat. 753, as amended; 7 U. S. C. and Sup. 608c)

Done at Washington, D. C., this 22d day of November 1950, to become effective upon publication in the FEDERAL REGISTER.

[SEAL] CHARLES F. BRANNAN,
Secretary of Agriculture.

[F. R. Doc. 50-10813; Filed, Nov. 28, 1950; 8:53 a. m.]

PART 994—HANDLING OF PECANS GROWN IN GEORGIA, ALABAMA, FLORIDA, MISSISSIPPI, AND SOUTH CAROLINA

EXPENSES AND RATE OF ASSESSMENT FOR FISCAL PERIOD BEGINNING OCTOBER 1, 1950

§ 994.301 *Expenses and rate of assessment for the fiscal period beginning October 1, 1950*—(a) *Findings.* (1) On November 2, 1950, notice was published in the FEDERAL REGISTER (15 F. R. 7369) regarding proposed expenses, during the fiscal period beginning October 1, 1950, of the Pecan Administrative Committee (established under Marketing Agreement No. 111 and Order No. 94 (7 CFR Part 994), regulating the handling of pecans grown in Georgia, Alabama, Florida, Mississippi, and South Carolina), and the proposed rate of assessment which each handler who first handles unshelled pecans shall pay as his pro rata share thereof. This regulatory program is currently effective pursuant

to the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (48 Stat. 31, as amended; 7 U. S. C. 601 et seq.). After consideration of all relevant matters presented, including the proposals set forth in the aforesaid notice which were submitted by the Pecan Administrative Committee, it is hereby found and determined that the expenses and rate of assessment shall, upon publication in the FEDERAL REGISTER, be as hereinafter set forth.

(2) It is hereby further found and determined that good cause exists for not postponing the determinations with respect to the aforesaid expenses and rate of assessment until 30 days after publication in the FEDERAL REGISTER (60 Stat. 237; 5 U. S. C. 1001 et seq.) in that: The rate of assessment, which is the same as contained in the aforesaid notice, is applicable, pursuant to the said marketing agreement and order, to all assessable unshelled pecans handled during the fiscal period beginning October 1, 1950; substantial quantities of unshelled pecans are presently being handled subject to the grade and size regulation which became effective on October 9, 1950 (15 F. R. 6783); it is essential that the determination regarding the expenses and rate of assessment become effective upon publication hereof in the FEDERAL REGISTER so that the requisite assessments may be collected as soon as practicable to enable the Pecan Administrative Committee to perform its duties and functions as required by the marketing agreement and order; no special preparation on the part of handlers is required to comply with the provisions hereof; and a reasonable time is permitted, under the circumstances, for preparation for such effective date.

(b) *Determination*—(1) *Expenses.* Expenses not to exceed $26,100 are reasonable and likely to be incurred by the Pecan Administrative Committee during the fiscal period beginning October 1, 1950, for its maintenance and functioning and for such purposes as the Secretary may, pursuant to the provisions of the marketing agreement and order, determine to be appropriate.

(2) *Rate of assessment.* The rate of assessment to be paid, in accordance with the applicable provisions of said marketing agreement and order, by each handler who first handles unshelled pecans shall be one-fourth of one cent per pound of assessable unshelled pecans handled by him as the first handler thereof during the fiscal period beginning October 1, 1950.

Terms used in this section shall have the same meaning as when used in said marketing agreement and order.

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. and Sup., 608c)

Done at Washington, D. C., this 22d day of November 1950, to become effective upon publication in the FEDERAL REGISTER.

[SEAL] CHARLES F. BRANNAN,
Secretary of Agriculture.

[F. R. Doc. 50-10787; Filed, Nov. 28, 1950; 8:48 a. m.]

TITLE 9—ANIMALS AND ANIMAL PRODUCTS

Chapter I—Bureau of Animal Industry, Department of Agriculture

[Docket No. AO16-A3]

PART 131—HANDLING OF ANTI-HOG-CHOLERA SERUM AND HOG-CHOLERA VIRUS

ORDER AMENDING ORDER, AS AMENDED

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CLASSIFYING, LISTING AND DELETING WHOLESALERS

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FORM OF PRICE LIST

131.251 Filing of price list.

AUTHORITY: §§ 131.1 to 131.251 issued under 49 Stat. 781-782; 7 U. S. C. 851-855. Statutory provisions interpreted or applied are cited to text.

§ 131.0 *Findings and determinations.* The findings and determinations hereinafter set forth are supplementary and in addition to the findings and determinations previously made in connection with the issuance of the aforesaid order; and all of said previous findings and determinations are hereby ratified and affirmed except insofar as such findings and determinations may be in conflict with the findings and determinations set forth herein.

(a) *Findings upon the basis of the hearing record.* Upon the basis of the evidence introduced at the hearing, and the record thereof, it is hereby found that:

(1) The order, as amended, and as hereby further amended, and all of the terms and conditions thereof will tend to effectuate the declared policy of the act;

(2) The said order, as amended, and as hereby further amended, regulates the handling of anti-hog-cholera serum and hog-cholera virus in the same manner as, and contains only such terms and conditions as are contained in the

said marketing agreement upon which a hearing has been held.

(b) *Determinations.* It is hereby determined that the agreement, amending the marketing agreement, as amended, regulating the handling of anti-hog-cholera serum and hog-cholera virus upon which a public hearing has been held, has been signed by handlers who, during the marketing year 1949, handled not less than 75 per centum of the volume of anti-hog cholera serum and hog-cholera virus which was handled in the current of interstate or foreign commerce, or so as directly to burden, obstruct, or affect interstate or foreign commerce (49 Stat. 781–782; 7 U. S. C. 851–855).

Order relative to handling. It is hereby ordered, that on and after the effective date hereof, the handling of anti-hog cholera serum and hog-cholera virus shall be in conformity to and in compliance with the terms and conditions of the aforesaid order, as amended and as hereby further amended; and the aforesaid order, as amended, is hereby amended to read as follows:

DEFINITIONS

§ 131.1 *"Secretary".* The Secretary of Agriculture of the United States.

§ 131.2 *"Act".* The act to amend the Agricultural Adjustment Act, and for other purposes Public No. 320, approved by the President August 24, 1935. (49 Stat. 750; 7 U. S. C. Chapter 26).

§ 131.3 *"Person".* Individual, partnership, corporation, association, or any other business unit.

§ 131.4 *"Serum" and "virus".* Anti-hog-cholera serum and hog-cholera virus, respectively, products used in the immunization of swine against hog cholera, manufactured and marketed in compliance with standards and regulations, promulgated by the United States Department of Agriculture, and serum and virus manufactured in a similar manner and for an identical purpose under license or authority of any State or otherwise, and marketed in interstate and foreign commerce or so as directly to burden, obstruct, or affect interstate or foreign commerce.

§ 131.5 *"Handler".* Any person who is engaged in the handling of anti-hog-cholera serum and hog-cholera virus in the current of interstate or foreign commerce, or so as directly to burden, obstruct, or affect interstate or foreign commerce.

§ 131.6 *"To handle".* To sell for shipment in, to ship in, or in any way to put into the channels of trade in the current of interstate or foreign commerce, or so as directly to burden, obstruct, or affect interstate or foreign commerce.

§ 131.7 *"To market".* To consign or to sell or in any other manner transfer or convey title to, or any interest in, serum and/or virus in interstate or foreign commerce or so as to directly burden, obstruct, or affect interstate or foreign commerce, or to enter into any contract or arrangement to do or have done any of the said acts.

§ 131.8 *"Wholesaler".* That class of buyers comprising (a) persons or agencies who do not administer serum and virus but are regularly engaged in purchasing and maintaining stocks of serum and virus in sufficient quantities to supply dealer demand, who are properly located and equipped with proper storage and distributing facilities to supply dealer demand, who resell principally to dealers, and who shall have been found by the control agency on submitted evidence acceptable to said control agency to perform in good faith the usual functions of a wholesaler, including, but without limitation, the absorbing of all expenses incidental to the advertising transportation, and selling of serum and virus, after receipt by them, to other trade groups, together with the furnishing of field or veterinary service necessary to determine whether the products sold have served their purpose in specific cases, and (b) persons or agencies who regularly purchase, for delivery within a definite period of time and pay for at sellers' posted prices at time of delivery, serum and virus in specified quantities, adequate, in the opinion of the control agency, to justify such classification.

§ 131.9 *"Dealer".* That class of buyers comprising veterinarians and other persons regularly engaged in administering serum and virus for service charges, drug stores, county farm bureaus, purchasers of serum for use in U. S. licensed stock yards vaccination, and agencies who maintain stocks of serum and virus in sufficient quantities under proper storage and distributive facilities for resale to ultimate consumers (owners of swine).

§ 131.10 *"Manufacturer" or "producer".* Any person who manufactures or produces and is engaged in the handling or distribution of serum and virus in the current of interstate or foreign commerce, or so as directly to burden, obstruct, or affect interstate or foreign commerce.

§ 131.11 *"Distributor".* Any person who does not manufacture serum and/or virus, but is engaged in the handling or distribution of serum and/or virus in the current of interstate or foreign commerce, or so as directly to burden, obstruct, or affect interstate or foreign commerce.

§ 131.12 *"Control agency".* The agency established pursuant to §§ 131.21–131.33.

§ 131.13 *"Books and records".* Any books, papers, records, copies of income tax reports, accounts, correspondence, contracts, documents, memoranda, or other data pertaining to the business of the person in question.

§ 131.14 *"Subsidiary".* Any person, of or over whom or which a handler or an affiliate of a handler has, or several handlers collectively have, either directly or indirectly, actual or legal control, whether by stock ownership or in any other manner.

§ 131.15 *"Affiliate".* Any person and/or subsidiary thereof, who or which has, either directly or indirectly, actual or legal control of or over a handler, whether by stock ownership or in any other manner.

CONTROL AGENCY

§ 131.21 *Membership.* A control agency is hereby established consisting of 12 members, who shall hold office until their successors are selected and qualified.

§ 131.22 *Nominations.* The members and their respective alternates shall be selected by the Secretary annually at least 15 days prior to the termination of the term of office of their respective predecessors. Such selections shall be made by the Secretary from the respective nominees of groups hereinafter designated to make nominations. Nominations shall be made on December 1 of each year in the following manner: The handlers who are manufacturers marketing their products principally through veterinarians, as a group, may nominate by inscribing on a ballot the names of 20 individuals to represent such handlers as members and/or alternates. The handlers who are manufacturers marketing their products principally through other channels, as a group, may nominate by inscribing on a ballot the names of 20 individuals to represent such handlers as members and/or alternates. The handlers who are distributors marketing their products principally through veterinarians, as a group, may nominate by inscribing on a ballot the names of 4 individuals to represent such handlers as members and/or alternates. The handlers who are distributors marketing their products principally through other channels may nominate by inscribing on a ballot the names of 4 individuals to represent such handlers as members and/or alternates.

§ 131.23 *Selection.* Each of the 12 members of the control agency and each of the 12 alternates shall be selected by the Secretary from the individuals in each of the four groups comprising the 48 nominees for membership and/or alternates who receive the highest numbers, successively, of votes cast by handlers entitled to vote for nominees in each group. No 2 individuals from the same partnership, corporation, association, or any other business unit, including agents, affiliates, subsidiaries, and/or representatives thereof, shall be selected for membership in or serve as members of the control agency at the same time. The nominees in each instance shall be nominated by a vote of the handlers who are entitled under the provisions of this order to vote for such nominees. At any election of nominees each handler shall be entitled to cast 1 vote on behalf of himself, agents, partners, affiliates, subsidiaries, and/or representatives for each of the members of the control agency and their respective alternates for whom he is entitled to vote.

§ 131.24 *Term of office.* Members of the control agency and their respective alternates, shall be selected annually for a term of one year beginning the first day of January, and shall serve until their respective successors shall be selected and shall qualify. Any individual selected as a member of the control

agency or an alternate shall qualify by filing a written acceptance of his appointment with the Secretary or his designated representative.

§ 131.25 *Vacancies.* To fill any vacancy occasioned by the removal, resignation, or disqualification of any member of the control agency or an alternate, a successor for his unexpired term shall be selected by the Secretary from nominees selected by the respective group of handlers in whose representation the vacancy has occurred, such nominees to be determined by the selection by the proper group as specified in § 131.22 two nominees for each vacancy to be filled and selected in the manner specified in § 131.23. Such selection of nominees shall be made within 30 days after such vacancy occurs. If a nomination is not made within such 30 days, the Secretary may select an individual to fill such vacancy.

§ 131.26 *Election of officers.* The members of the control agency shall select a chairman from their membership, and all communications from the Secretary may be addressed to the chairman at such address as may from time to time be filed with the Secretary. The agency shall select such other officers and adopt such rules not inconsistent with the provisions of this part for the conduct of its business as it may deem advisable. The agency shall give to the Secretary or his designated agent the same notice of meetings of the control agency as is given to members of the agency and their alternates.

§ 131.27 *Compensation.* A reasonable compensation to be determined by the control agency, to be paid to the Secretrary of the control agency, and the expenses of the members of the control agency while engaged in the business of the control agency, shall be necessary expenses to be incurred by the control agency for its maintenance and functioning under this part.

§ 131.28 *Powers.* The control agency shall have power:

(a) To administer, as hereinafter specifically provided, the terms and provisions of this part;

(b) To make, in accordance with the provisions contained in this part, administrative rules and regulations;

(c) To receive, investigate, and report to the Secretary of Agriculture complaints of violations of this part;

(d) To recommend to the Secretary of Agriculture amendments to this order; and

(e) The control agency, subject to the disapproval of the Secretary, may select an executive committee of not more than 4 members who shall be empowered to act for the control agency in the routine administration of this part, at such times as the control agency is not meeting and cannot be conveniently convened for the purpose. Any and all acts of the executive committee shall be subject to the approval of the control agency, which shall take action with respect to any act of the executive committee at the next meeting of the control agency held immediately following any action by the executive committee.

§ 131.29 *Duties.* It shall be the duty of the control agency:

(a) To act as intermediary between the Secretary and any handler;

(b) To keep minute books and records which will clearly reflect all of its acts and transactions, and such minute books and records shall, at any time, be subject to the examination of the Secretary;

(c) To furnish to the Secretary such available information as he may request;

(d) To appoint such employees as it may deem necessary and to determine the salaries and define the duties of any such employees;

(e) To establish and/or foster any agency for the purpose of securing new or improved markets for the serum and virus industry through marketing research. The expenses of such expansion or improvement of markets through research shall be a necessary expense incurred by the control agency for its maintenance and functioning, and shall be defrayed by it from funds collected pursuant to §§ 131.41 to 131.45; and

(f) To make such disbursements as may be necessary to meet expenses necessarily incurred by the control agency for its maintenance and functioning under the provisions of this part.

§ 131.30. *Procedure.* (a) All decisions of the control agency except where otherwise specifically provided, shall be by a three-fourths (¾) vote of the members who have qualified by filing their written acceptance and who are eligible to vote.

(b) The control agency may provide for voting by its members by mail or telegraph upon due notice to all members, and when any proposition is submitted for voting by such method, one dissenting vote shall prevent its adoption until submitted to a meeting of the control agency.

(c) If a member of the control agency shall be a party in interest to any dispute or complaint, or a representative of such party in interest, he shall, for the purpose of the consideration of such dispute or complaint, be disqualified as a member of the control agency. Such disqualification, however, shall not be deemed to create a vacancy in the control agency.

(d) The alternate for each member of the control agency shall have the power to act in the place and stead of such member in his absence and/or in the event of his removal, resignation, or disqualification until a successor for such member's unexpired term has been selected.

§ 131.31 *Removal or suspension of members.* The members of the control agency (including alternates, successors, or other persons selected by the Secretary), and any agent or employee appointed or employed by the control agency, shall be subject to removal or suspension by the Secretary at any time.

§ 131.32 *Disapproval of decisions by Secretary.* Each and every order, regulation, decision, determination, or other act of the control agency, shall be subject to the continuing right of the Secretary to disapprove of the same at any time, and upon such disapproval, shall be deemed null and void except as to acts done in reliance thereon or in compliance therewith.

§ 131.33 *Funds.* All funds received by the control agency, pursuant to any provision of this part, shall be used solely for the purpose therein specified and shall be accounted for in the following manner:

(a) The Secretary shall require the control agency and its members, or alternates acting as members, to account for all receipts and disbursements.

(b) Upon the removal or expiration of the term of office of any member of the control agency, or of an alternate acting as a member, such member or alternate shall account for all receipts and disbursements, and deliver all property and funds in his hands, together with all books and records in his possession, to his successor in office, and shall execute such assignments and other instruments as may be necessary or appropriate to vest in such successor full title to all of the property, funds, and/or claims vested in such member or alternate pursuant to this part.

(c) Upon the termination or suspension of this part or of any provision thereof, the funds of the control agency shall be disposed of in the manner provided in § 131.88.

ASSESSMENTS

§ 131.41 *Each handler to be assessed.* Subsequent to the year ending December 31, 1936, every handler shall pay the control agency, as provided in §§ 131.42 to 131.46, such handler's pro rata share, as may be approved by the Secretary, of such expenses as the Secretary may find will necessarily be incurred by the control agency during any period specified by the Secretary for the maintenance and functioning of the control agency, as set forth in this part.

§ 131.42 *Division of assessments.* (a) The pro rata share of the expenses of the control agency to be borne by handlers who are wholesalers shall be determined as follows: Multiply the number of wholesalers of record on December 31st of the preceding calendar year by 1/10 of 1 percent and then multiply the result thereof by the total expense of the control agency for the current year. The resulting sum shall be the pro rata share of the expenses of the control agency of handlers who are wholesalers, and shall be assessed as set forth in § 131.43; *Provided,* That the pro rata share so computed shall not exceed thirty-three and one-third percent (33⅓ percent) of the total expense of the control agency. In the event the pro rata share so computed exceeds thirty-three and one-third percent (33⅓ percent), the pro rata share of such handlers shall be adjusted to thirty-three and one-third percent of the total expense of the control agency.

(b) The pro rata share of the expenses of the control agency to be borne by handlers who are manufacturers shall be the balance remaining after deducting the pro rata share of the wholesaler handlers from the total expense of the control agency, and shall be assessed as set forth in § 131.45.

(c) The assessments of all handlers may be adjusted from time to time by the control agency, with approval of the Secretary, in order to provide funds sufficient in amount to cover any later findings of the Secretary of estimated expenses or actual expenses of the control agency during the calendar year.

§ 131.43 *Method of wholesaler handler assessments.* As his pro rata share of the expenses of the control agency to be borne by all wholesaler handlers, each wholesaler handler shall pay to the control agency a sum computed on the basis of the volume of serum marketed by such handler during the preceding calendar year at the following applicable rates:

(a) One million cubic centimeters, or less—$25.00;

(b) Over one million cubic centimeters—at a rate per million, or fraction thereof, to be fixed by the Secretary based upon the ratio between the quantity of serum handled by each wholesaler handler who handles in excess of one million cubic centimeters of serum and the total quantity of serum handled by all wholesaler handlers who handle in excess of one million cubic centimeters of serum.

The pro rata share of all wholesaler handlers shall be obtained by first assessing the first one million (1,000,000) cubic centimeters of serum marketed by each wholesaler handler, and if the sum obtained is not sufficient to cover the total amount of the pro rata share of all wholesaler handlers such additional amounts as are necessary shall be assessed as set forth in paragraph (b) of this section. If the total sum obtained by assessing the first one million cubic centimeters, or less, of serum marketed by each wholesaler is greater than the pro rata share of all wholesaler handlers, the rate of assessment for one million cubic centimeters, or less, shall be adjusted by the Secretary to an amount that will return the sum necessary to cover the pro rata share of all wholesaler handlers. The exact amount of each wholesaler handler's pro rata share shall be computed by the disinterested agency selected under the provisions of § 131.46. Such pro rata share shall be subject to the approval of the Secretary. The pro rata share of each wholesaler handler shall be paid as follows: $25.00 on or before January 15, of each year beginning with the year 1951, and the remaining sum, if any, within fifteen (15) days after being billed therefor. In the event the Secretary adjusts the pro rata share of each wholesaler handler to an amount less than $25.00, the excess paid shall be credited on such handler's pro rata share of the following year's assessment.

§ 131.44 *Fee to accompany application for classification.* On and after January 1, 1951, each application for classification as a wholesaler shall be accompanied by a fee of twenty-five dollars ($25.00). If the application is rejected such fee shall be refunded to the applicant. If the application is approved the fee shall be retained and used for the maintenance and functioning of the control agency as such applicant's pro rata share of expenses of such agency for the year in which the application is approved.

§ 131.45 *Method of manufacturer handler's assessment.* The pro rata share of expenses to be paid by each manufacturer handler shall be based upon such handler's percentage of the total amount of hyperimmune blood which has been collected by such handlers during the preceding calendar year, with respect to each million cubic centimeters (determined by the nearest whole number) of hyperimmune blood collected by such handler during the preceding calendar year, as determined by the reports submitted pursuant to § 131.46. Such payments shall become due in quarterly installments beginning January 1 of each year, and shall be made to the disinterested agency, which shall transmit the total amount received from all handlers to the control agency without disclosing the amount of each payment made by individual handlers. A quarterly report shall be made to the Secretary by such disinterested agency, setting forth the amount of the quarterly payment made by each handler. Any funds derived from assessments or any other source which have not been expended by the control agency at the end of the calendar year shall be carried over by the control agency to be expended during the succeeding calendar year.

§ 131.46 *Reports by handlers.* Within five days after this part becomes effective, and on January 15 of each year thereafter, while this part is effective, each manufacturer handler shall furnish the Secretary, through a disinterested agency, to be selected by the control agency and approved by the Secretary, a report which shall be sworn to and which shall set forth the amount of hyperimmune blood which has been collected by such handler during the preceding calendar year, and each wholesaler handler shall furnish the Secretary, through such disinterested agency, a report which shall be sworn to and which shall set forth the amount of serum marketed by such handler during the preceding calendar year. The control agency shall inform the disinterested agency concerning the total amount of expenses to be paid by handlers who are manufacturers and by handlers who are wholesalers.

FILING OF PRICES AND TERMS OF SALE

§ 131.51 *Handlers to file uniform prices, discounts, and terms of sale.* Each handler shall file with the Secretary and the control agency, within 10 days after the effective date of this part, a separate list of his selling prices in the United States, including terms of sale and discounts to each class of buyers; as defined in this part or under the provisions thereof, other than those specified in § 131.55. All filed prices to dealers and wholesalers shall be on a delivered basis where the amount sold is 3,000 cc or more. Each handler's prices, discounts, and terms of sale shall be uniform for all buyers in each classification of the trade as defined by the control agency pursuant to this part.

§ 131.52 *Modification of price lists.* The price list for each class of buyers filed by a handler may, subject to the limitations set forth in § 131.53, be modified at any time by such handler by filing for any class of buyers a new or amended list of prices, including discounts and terms of sale, which shall only become effective when said new or amended list shall have been on file for three days in any office designated by the control agency: *Provided, however,* That in the event such list is mailed by registered letter or telegraphed to such office, it shall be deemed to have been filed either (a) at the time during usual business hours it is actually delivered in such office, or (b) at the time during usual business hours such communication would have been received, considering the usual time required for the means of communication used, in the absence of delays in transit, whichever time is the earlier.

§ 131.53 *Handlers to make no sales without effective price lists.* Each handler shall make no sales unless he has an effective price list, including discounts and terms of sale as set forth in § 131.51, filed with the control agency, and that after any such price list or amended price list becomes effective, he shall make no sales at prices, discounts, or terms of sale different from those set forth in his latest effective list, and shall file no new or amended price list until his most recently filed price list for any class of buyers becomes effective: *Provided, however,* No handler shall withdraw any filing of a price list prior to the effective date of such price list.

§ 131.54 *Notification of new or amended price lists.* The control agency shall immediately upon receipt of any such new or amended price list, give written notice thereof to each of the handlers and to the Secretary. All price lists shall be made immediately available to the daily and trade press and to the consuming public by employing a means of communication at least as rapid as that used to notify the handlers and the Secretary.

§ 131.55 *Filed prices not applicable to sales outside United States.* The provisions of this part shall not apply to any sales made by any handler for delivery outside the United States.

§ 131.56 *Secretary may suspend and declare ineffective price lists.* If the Secretary has reason to believe, from economic data directly available to him or secured by him under the provisions of the act, that any price list, term of sale or discount, in whole or in part, is inequitable to consumers or handlers by reason of the fact that it may cause immediate injury by impeding the carrying out of this part or the effectuation of the declared policy of the act or by creating an abuse of the privilege of exemptions from the antitrust laws, he may suspend the effectiveness of such price list, term of sale or discount, in whole or in part, pending an investigation which shall be completed as soon as practicable, and he shall report such suspension to the control agency, who shall in turn immediately notify the handler

whose price filing has been suspended. The Secretary may declare a filed price, discount, or term of sale, in whole or in part, to be ineffective if, after an investigation and an opportunity to be heard has been afforded the handler whose price filing is questioned, the Secretary finds from the facts presented during such investigation that such price list, term of sale, or discount, in whole or in part, is inequitable as measured by the standards set up in this section.

§ 131.57 *Classes of buyers.* The control agency, subject to the disapproval of the Secretary, shall upon the basis of a written request supported by economic data sufficiently adequate to warrant a conclusion that such definition is neither unreasonable nor discriminatory, define all classes of buyers not defined in this part, and shall, subject to the disapproval of the Secretary, determine in specific cases whether any person who is a handler or who is about to become a handler comes within any class of buyers herein or hereafter defined, and shall compile, subject to the disapproval of the Secretary, lists of persons comprising each class of buyers, such lists and additions thereto to be filed immediately with the Secretary and distributed to the handlers.

§ 131.58 *Uniform sales invoices.* The control agency, subject to the disapproval of the Secretary, may formulate and adopt uniform sales invoices for handlers. After the adoption of such uniform sales invoices, all sales of serum and/or virus by handlers to all classes of buyers shall be made in accordance with the terms of such invoices, and prices and terms of sale therein shall conform to the seller's filed prices and terms of sale, effective at the time of making sales covered by such invoices.

UNFAIR METHODS OF COMPETITION AND UNFAIR TRADE PRACTICES

§ 131.71 *Secret rebates or sales of other products at less than reasonable market value.* The secret payment or allowance of rebates, refunds, commissions, or unearned discounts, whether in the form of money or otherwise, or secretly extending to certain purchasers special services or privileges, not extended to all purchasers under like terms and conditions, with the intent and with the effect of injuring a competitor, and where the effect may be to substantially lessen competition or tend to create a monopoly or to unreasonably restrain trade, is an unfair trade practice, and is prohibited.

To sell other products at less than reasonable market value thereof, for the purpose or with the effect of influencing sales of serum and/or virus, is prohibited.

§ 131.72 *Enticing employees.* Maliciously enticing away the employees of competitors with the purpose and effect of unduly hampering, injuring, or embarrassing competitors in their businesses is an unfair trade practice, and is prohibited.

§ 131.73 *Defamation of competitors.* The defamation of competitors by falsely imputing to them dishonorable conduct, inability to perform contracts, questionable credit standing, or by other false representation, or the false disparagement of the grade or quality of their serum and/or virus, with the tendency and capacity to mislead or deceive purchasers or prospective purchasers, is an unfair trade practice, and is prohibited.

§ 131.74 *Sale by false means.* The sale or offering for sale of any serum and/or virus by any false means or device which has the tendency and capacity to mislead or deceive customers or prospective customers as to the quantity, quality, or substance of such serum and/or virus is an unfair trade practice, and is prohibited.

§ 131.75 *Shipping serum or virus on consignment.* Shipping serum or virus on consignment, with the intent and with the effect of injuring a competitor, and where the effect may be to substantially lessen competition or tend to create a monopoly or to unreasonably restrain trade, is an unfair trade practice, and is prohibited.

§ 131.76 *False invoicing.* Withholding from or inserting in the invoice statements which make the invoice a false record, wholly or in part, of the transaction represented on the face thereof, is prohibited.

§ 131.77 *Misleading advertising.* The making, causing, or permitting to be made, or publishing of any false, untrue, misleading, or deceptive statement, by way of advertisement or otherwise, concerning the grade, quality, quantity, character, nature, origin, preparation, or use of serum and virus is an unfair trade practice and is prohibited.

§ 131.78 *Distributor handlers advertising as manufacturers.* The use by handlers who are distributors of the words "Serum Company", "Serum Laboratories" or other equivalent words on letterheads, signs, advertising matter, and otherwise where such practice tends to mislead and deceive purchasers and consumers into belief that such distributor is a manufacturer, where in fact he is not, is prohibited.

§ 131.79 *Emergency reserve.* Each manufacturer who is a handler shall have available on May 1 of each year a supply of completed serum equivalent to not less than 40 percent of his previous year's sales.

AMENDMENTS

§ 131.81 *Who may propose.* Amendments to this part may, from time to time, be proposed by handlers subject hereto or by the control agency.

§ 131.82 *Notice and hearing.* After due notice and opportunity for hearing and upon determination by the Secretary that the proposed amendment has been incorporated in the marketing agreement for handlers of anti-hog-cholera serum and hog-cholera virus, executed by the Secretary on the 2d day of December 1936, the Secretary shall amend this part in conformance with such amendment to the said marketing agreement, and such amendment shall become effective at such time as the Secretary may designate.

EFFECTIVE TIME AND TERMINATION

§ 131.86 *Effective time.* This part shall become effective at such time as the Secretary may determine the marketing agreement for handlers of anti-hog-cholera serum and hog-cholera virus, executed by him on the 2d day of December 1936, has been executed by all the handlers of seventy-five (75) percent of the volume of serum and virus handled during the preceding marketing year and may declare above his signature attached hereto, and shall continue in force until terminated in one of the ways specified.

§ 131.87 *Termination; how accomplished and when effective.* (a) The Secretary may at any time terminate this order as to all parties subject thereto by giving at least seven days' notice by means of a press release or in any other manner which the Secretary may determine.

(b) The Secretary shall terminate this order at the end of the then current marketing period (December 31) whenever he finds that such termination is favored by all the handlers of not less than seventy-five (75) percent of the volume of serum and virus handled during the preceding marketing period.

(c) This order shall in any event terminate whenever the provisions of the act authorizing it cease to be in effect.

§ 131.88 *Liquidation.* Upon the termination or suspension of this part or of any provision thereof, the members of the control agency then functioning, or such other persons as the Secretary may from time to time designate, shall, if so ordered by the Secretary, liquidate the business of the control agency under this part, and dispose of all funds and property then in the possession or under the control of the control agency, together with claims for any funds which are unpaid or property not delivered at the time of such termination. The control agency or such other persons as the Secretary may designate (a) shall continue in such capacity until discharged by the Secretary, (b) shall, from time to time, account for all receipts and disbursements and/or deliver all funds and property on hand, together with the books and records of the control agency, to such person or persons as the Secretary shall direct, and (c) shall, upon the request of the Secretary, execute such assignments, or other instruments necessary or appropriate to vest in such person or persons full title to all the funds, property, and/or claims vested in the control agency pursuant to this part. Any funds collected for expenses, pursuant to the provisions of this part, and held by the control agency or such person or persons, over and above the amounts necessary to meet outstanding obligations and the expenses necessarily incurred by the control agency or such person or persons, shall be returned to the contributing handlers in proportion to the contributions of each handler, or shall be expended by the control agency for a purpose not inconsistent with the provisions of this part and in a manner which the handlers shall determine by a three-fourths vote of such handlers. The control agency or such person or persons shall observe the procedure governing the actions of the control agency as established under the provisions of § 131.30. Any person to whom funds,

property, and/or claims have been delivered by the control agency or its members upon direction of the Secretary, as provided in this section, shall be subject to the same obligations and duties with respect to said funds, property, and/or claims as are imposed upon the members of the control agency.

MISCELLANEOUS PROVISIONS

§ 131.91 *Duration of benefits, privileges, and immunities.* The benefits, privileges, and immunities conferred by virtue of this part shall not extend or be construed to extend further than is necessary for the purpose of carrying out the provisions of this part and shall cease upon its termination except with respect to acts done under and during the existence of this part, and benefits, privileges and immunities conferred by this part upon any party subject hereto shall cease upon its termination as to such party, except with respect to acts done under and during the existence of this part.

§ 131.92 *Agents; Secretary may designate.* The Secretary may by designation in writing name any person (not subject to this part), including any officer or employee of the Government or bureau or division of the Department of Agriculture, to act as his agent or representative in connection with any of the provisions of this part.

§ 131.93 *Committees; Secretary may select.* The Secretary may select such committees to meet with or advise the control agency as he deems necessary for the proper functioning of the contral agency under the provisions of this part. One such committee or its representative shall represent the interests of consumers. The expenses for the maintenance and functioning of the advisory committees may be included within the budget submitted to the Secretary for approval, pursuant to § 131.41, and may be met by the control agency from funds paid to it for the maintenance and functioning of the control agency.

§ 131.94 *No derogation or modification of rights of Secretary or of the United States.* Nothing contained in this part is or shall be construed to be in derogation or in modification of the rights of the Secretary or of the United States (a) to exercise any powers granted by the act or otherwise, and/or (b) in accordance with such powers, to act in the premises whenever such action is deemed advisable.

§ 131.95 *Liability of members and employees of control agency.* No member of the control agency nor any employee thereof shall be held responsible individually in any way whatsoever to any handler subject hereto or any other person for errors in judgment, mistakes, or other acts either of commission or omission as such member or employee, except for acts of dishonesty. The contractual obligations of the handlers hereunder are several and not joint, and no handler shall be liable for the default of any other handler.

§ 131.96 *Separability of provisions.* If any provision of this part is declared invalid, or the applicability thereof to any person, circumstance, or thing is held invalid, the validity of the remainder of this part, and/or the applicability thereof to any other person, circumstance, or thing shall not be affected thereby.

RULES AND REGULATIONS OF THE CONTROL AGENCY

NOTE: §§ 131.201 to 131.251 Interpret or apply 49 Stat. 781–782; 7 U. S. C. 851–855.

§ 131.201 *Public information.* Unless otherwise provided in this part, or by specific direction of the Control Agency, all price lists, reports, applications, submittals, requests and communications in connection with this part, and rules and regulations thereunder, shall be addressed to the Control Agency, Office of Executive Secretary, 512 Porter Bldg., Kansas City 2, Missouri.

CLASSIFICATIONS

§ 131.211 *"Wholesaler".* That class of buyers comprising (a) persons or agencies who do not administer serum and virus but are regularly engaged in purchasing and maintaining stocks of serum and virus in sufficient quantities to supply dealer demand, who are properly located and equipped with proper storage and distributing facilities to supply dealer demand, who resell principally to dealers, and who shall have been found by the control agency on submitted evidence acceptable to said control agency to perform in good faith the usual functions of a wholesaler, including, but without limitation, the absorbing of all expenses incidental to the advertising, transportation, and selling of serum and virus, after receipt by them, to other trade groups, together with the furnishing of field or veterinary service necessary to determine whether the products sold have served their purpose in specific cases, and (b) persons or agencies who regularly purchase, for delivery within a definite period of time and pay for at seller's posted prices at time of delivery, serum and virus in specified quantities, adequate in the opinion of the control agency to justify such classification.

§ 131.212 *"Dealer".* That class of buyers comprising veterinarians, and other persons regularly engaged in administering serum and virus for service charges, drug stores, county farm bureaus, purchasers of serum for use in U. S. licensed stock yards vaccination, and agencies who maintain stocks of serum and virus in sufficient quantities under proper storage and distributive facilities for resale to ultimate consumers (owners of swine).

§ 131.213 *"Consumers".* That class of buyers comprising persons or agencies who are owners of swine and who are not otherwise classified pursuant to the provisions of the order or these rules and regulations.

§ 131.214 *"Lay-vaccinator".* A person who is not a licensed veterinarian but who is regularly engaged in administering serum and virus for service charges. Such person is classified as a "dealer".

§ 131.215 *"Other dealers".* Federal, state, county, and municipal institutions that are not otherwise classified pursuant to provisions of the order or these rules and regulations are classified as dealers with respect to purchases of serum and virus for use on swine owned by such institutions.

DEFINITIONS OF TERMS USED IN THIS PART

§ 131.221 *"Meaning of terms".* Terms defined in this part shall, when used in this part, have the same meaning as set forth in the order.

§ 131.222 *"Definite period of time".* The term "within a definite period of time" as used in § 131.8 means the calendar year immediately preceding the date of application for classification as wholesaler.

§ 131.223 *"Specified quantities".* The term "specified quantities, adequate in the opinion of the control agency" as used in § 131.8 means 15,000,000 cubic centimeters of serum and 1,000,000 cubic centimeters of virus.

§ 131.224 *"Time of delivery".* The term "time of delivery" as used in § 131.8, and in this part, means the time when physical possession of the products sold is surrendered by the seller to the buyer or to a carrier for and on behalf of the buyer.

§ 131.225 *"Each handler's prices, discounts and terms of sale".* The term "Each handler's prices, discounts and terms of sale shall be uniform for all buyers in each classification" as used in § 131.51, means that each handler's prices, discounts and terms of sale shall apply equally, in the same manner, and at the same rate to each buyer within the same class.

§ 131.226 *"Price list".* The term "price list", as used in § 131.52 means a list on the form prescribed in § 131.251 containing effective prices, discounts and terms of sale of serum and virus.

§ 131.227 *"Prices".* The term "prices" as used in § 131.51 means the sum or sums of money which the seller asks and receives from the purchaser in exchange for serum or virus.

§ 131.228 *"Discounts".* The term "discounts" as used in § 131.51 means that percentage of the invoice price of serum or virus, or that amount of money which the purchaser may deduct from the invoice price for payment at a time stated prior to the due date of such invoice.

§ 131.229 *"Terms of sale".* The words "terms of sale" as used in § 131.51 mean the time or date at which the invoice price of serum or virus is due and payable.

§ 131.230 *"Regularly engaged".* A person is "regularly engaged in administering serum and virus" within the meaning of § 131.9 if he is customarily and seasonally employed by a body of patrons or customers to administer serum and virus to swine owned by such patrons or customers.

§ 131.231 *"For service charges".* The term "for service charges" as used in § 131.9 means all remuneration received for administering serum and virus to swine, including any profit derived from the sale of serum and virus so administered.

CLASSIFYING, LISTING, AND DELETING WHOLESALERS

§ 131.241 *Listing of handlers.* The control agency shall furnish the Secretary of Agriculture and each handler with a list of all handlers of serum and virus. Such list shall include all producers and all persons who have been classified as wholesalers by the control agency. No person is a wholesaler unless he has been classified as such by the control agency and his name appears on the list of handlers as described in this section.

§ 131.242 *Manner of classifying wholesalers.* Any person not presently so classified who desires to be classified as a wholesaler must apply for such classification on a form prescribed by the control agency and must prove to the satisfaction of the control agency that he performs the functions required by § 131.8, or that he meets the requirements of § 131.8, as further defined by §§ 131.222 and 131.223. The form of such application is as follows:

APPLICATION FOR CLASSIFICATION AS A WHOLESALER OF ANTI-HOG-CHOLERA SERUM AND HOG-CHOLERA VIRUS

CONTROL AGENCY,
Office of Executive Secretary,
512 Porter Building,
Kansas City 2, Missouri.

The undersigned applicant herewith applies for classification as a wholesaler pursuant to the approved Marketing Agreement and Order as amended, regulating the handling of anti-hog-cholera serum and hog-cholera virus. In support of this application, the following information is respectfully submitted:

1. Name and address of applicant:
Firm name_____
Address_____
(Street address) (City)
_____
(Zone number) (State)

2. State whether the applicant is an individual, partnership, corporation, or unincorporated association_____
_____

3. State period of time in which the applicant has been engaged in selling serum and virus_____

4. What percent of the total cubic centimeters of serum and virus handled by the applicant in the preceding calendar year was sold to dealers as defined in § 131.9 of the approved Marketing Agreement and Order as amended?_____
_____
If the applicant has never handled these products, please indicate the percentage which it anticipates selling to dealers during the present calendar year_____

5. Dealers referred to in Question 4 include (please check): Veterinarians _____; County Farm Bureaus _____; Drug Stores _____; Lay-vaccinators _____; U. S. Licensed Stockyards _____; Other agencies maintaining stocks of serum and virus under proper storage for resale to consumers (please list)_____
_____

6. Will the undersigned applicant or any of its officers or employees administer anti-hog-cholera serum and hog-cholera virus?
_____

7. Will the undersigned applicant employ any persons as its agents to administer anti-hog-cholera serum and hog-cholera virus?
_____

8. Is the applicant or any of its officers or employees financially interested, directly or indirectly, in the business of any dealer who buys from it? _____ If so, in what way, and to what extent? _____
_____

9. Will the applicant solicit sales to consumers? _____

10. Will the applicant absorb all expenses incidental to the advertising, transportation and selling of serum and virus to other trade groups? _____

11. Will the applicant furnish field or veterinary service necessary to determine whether the products sold have served their purpose in specific cases? _____

12. Describe applicant's equipment for storage and maintenance of stocks of serum and virus. _____
_____
_____

13. State the approximate number of dealers you expect to solicit and the geographic area in which they are located. _____
_____
_____

14. Name the railroad, bus routes, airlines, and other transportation facilities available in the town or city where the applicant is located and state the principal means to be used in distributing serum and virus to dealers. _____
_____
_____

15. Will the applicant regularly purchase and maintain stocks of serum and virus in sufficient quantities to supply dealer demand? _____
_____
_____

16. Did the applicant purchase for delivery within the calendar year preceding this application fifteen million (15,000,000) cubic centimeters of serum and one million (1,000,000) cubic centimeters of virus? _____
_____

All further information requested by the control agency in consideration of this application will be furnished by the applicant. If this application is approved, the applicant agrees to assume all obligations of a wholesaler, including the payment of assessments which may be levied against it by the Secretary of Agriculture pursuant to the approved Marketing Agreement and Order, as amended.

Applicant (firm name)_____
_____
Official (signature and title)_____
_____

On this _____ day of _____, 19__, before me, _____, a Notary Public, personally appeared _____
_____
who, first being duly sworn, upon oath declares that he is an officer or employee of the aforesaid applicant, and that the information set forth herein is shown in the books and records of said applicant and is true and correct as he verily believes.

_____
Notary Public
My commission expires _____

§ 131.243 *Deletion of wholesaler from list of handlers.* Any person who has been classified as a wholesaler may be deleted from the list of handlers, and lose such classification of wholesaler, if at any time such person (a) requests or authorizes such deletion; (b) sells or transfers to any other person the business of his wholesale establishment; or (c) if the control agency finds, upon the basis of evidence satisfactory to it, that such person is no longer performing the functions of or meeting the requirements of a wholesaler as defined in § 131.8 (a) and (b), and further defined in these rules and regulations.

§ 131.244 *Notice of deletion from list of handlers.* A wholesaler who has not requested or authorized deletion of his name from the list of handlers, or who has not sold the business of his wholesale establishment, shall not be deleted from the list of handlers unless at least ten days prior to the date of such deletion he is notified in writing of the facts or conduct which, in the opinion of the control agency, warrants deletion from the list of handlers. An opportunity shall be afforded such person to appear before the control agency, or otherwise to submit evidence showing justification or cause why the deletion should not be made. The notice may be sent by registered mail or delivered in person by an officer or employee of the control agency at the address appearing on the latest effective price list which such wholesaler filed with the control agency.

FORM OF PRICE LIST

§ 131.251 *Filing of price list.* All price lists shall be filed with the office of the Executive Secretary on the form prescribed herein: *Provided, however,* That handlers filing price lists by telegram shall confirm the telegram by mailing on the same date the properly signed form of price list as prescribed herein, as follows:

No._____

Form No. R. 2. Revised—1947

POSTED PRICES

In accordance with the provisions of the approved Marketing Agreement and Order, as amended, regulating the handling of anti-hog-cholera serum and hog-cholera virus, the undersigned files this price list and respectfully represents to the Secretary of Agriculture, the control agency and all other handlers that, during the period this price list is in effect, all serum and virus sold by the undersigned to buyers in the classes named herein will be at the following prices, discounts and terms of sale at time of delivery, it being understood that the term "time of delivery" means the time when physical possession of the products sold is surrendered by the undersigned to the buyer or to a carrier for and on behalf of the buyer.

Consumers—Owners of swine:
Serum:
Price _____
Terms of sale and discounts _____
Virus:
Price _____
Terms of sale and discounts _____
Dealers:
Serum:
Price _____
Terms of sale and discounts _____
Virus:
Price _____
Terms of sale and discounts _____
Wholesalers:
Serum:
Price _____
Terms of sale and discounts _____
Virus:
Price _____
Terms of sale and discounts_____

Where prices, terms of sale and discounts are omitted from this list with respect to any of the above classes of buyers, undersigned states that he makes no sales to such classes.

Signed_____
By_____
P. O. Address_____

Issued at Washington, D. C., this 22d day of November 1950, to become effective on and after January 1, 1951.

[SEAL] CHARLES F. BRANNAN,
Secretary of Agriculture.

[F. R. Doc. 50-10782; Filed, Nov. 28, 1950; 8:47 a. m.]

TITLE 14—CIVIL AVIATION

Chapter I—Civil Aeronautics Board

[Supp. 3]

PART 40—AIR CARRIER OPERATING CERTIFICATION

[Supp. 8]

PART 41—CERTIFICATION AND OPERATION RULES FOR SCHEDULED AIR CARRIER OPERATIONS OUTSIDE THE CONTINENTAL LIMITS OF THE U. S.

PREFACE PAGES TO OPERATIONS SPECIFICATIONS

Under section 604 of the Civil Aeronautics Act of 1938, as amended, the Administrator is authorized to issue air carrier operating certificates and to prescribe therein such terms, conditions, and limitations as are reasonably necessary to assure safety in air transportation. Preface pages to the operations specifications, which are a part of such air carrier operating certificates, prescribe conditions and limitations applicable to air carriers conducting operations under Part 41 or Parts 40 and 61 of the Civil Air Regulations. The rules appearing hereinafter will advise the applicants for, and the holders of, air carrier operating certificates the form upon which such preface pages shall be prepared and the persons from whom the form may be obtained. These rules conform with the present procedures for the issuance of air carrier operating certificates by the Administrator. They impose no additional burden upon the affected air carriers and therefore may be made effective without delay. Compliance with the notice, procedures, and effective date provisions of section 4 of the Administrative Procedure Act would be unnecessary and therefore is not required. The following rules are hereby adopted:

§ 40.1–1. *Preface pages to operations specifications (CAA rules which apply to § 40.1).* Preface pages to the operations specifications, which are a part of the air carrier operating certificate issued by the Administrator, shall be prepared by the air carrier on a Form ACA–1014. This form is prescribed by the Administrator, and copies of it may be obtained from the Aviation Safety Agent assigned to the air carrier or from a district or regional office of the Civil Aeronautics Administration.

§ 41.1–1 *Preface pages to operations specifications (CAA rules which apply to § 41.1).* Preface pages to the operations specifications, which are a part of the air carrier operating certificate issued by the Administrator, shall be prepared by the air carrier on a Form ACA–1014. This form is prescribed by the Administrator, and copies of it may be obtained from the Aviation Safety Agent assigned to the air carrier or from a district or regional office of the Civil Aeronautics Administration.

(Sec. 205, 52 Stat. 984, as amended; 49 U. S. C. 425. Interpret or apply secs. 601, 604, 608, 52 Stat. 1004, 1010, 1011; 49 U. S. C. 551, 554, 558)

These rules shall become effective upon publication in the FEDERAL REGISTER.

[SEAL] LEONARD W. JURDEN,
Acting Administrator of Civil Aeronautics.

[F. R. Doc. 50–10765; Filed, Nov. 28, 1950; 8:45 a. m.]

TITLE 15—COMMERCE AND FOREIGN TRADE

Chapter III—Bureau of Foreign and Domestic Commerce, Department of Commerce

Subchapter C—Office of International Trade

[5th Gen. Rev. of Export Regs., Amdt. 26]

PART 373—LICENSING POLICIES AND RELATED SPECIAL PROVISIONS

MACHINERY AND PARTS

Section 373.7 *Special provisions for machinery and parts* is amended in the following particulars:

A new paragraph (c) is added to read as follows:

(c) *Pumps, compressors, blowers, exhausters, fans, and parts.* (1) In addition to the other information required by paragraph (a) of this section, applications for licenses to export pumps, other than vacuum pumps (Schedule B Nos. 735500 through 736990) must include the following information:

(i) Designed working pressure in pounds per square inch, gauge reading;

(ii) Designed working temperature in degrees Fahrenheit;

(iii) Whether fabricated of or lined with any of the corrosion-resistant materials, as defined in the "General Notes to Appendix A" (Part 399 of this chapter).

Applications for licenses to export parts for such pumps must set forth the specific information described above for each pump for which the parts are intended.

(2) In addition to the other information required by paragraph (a) of this section, applications for licenses to export compressors, blowers, exhausters, or fans (classified within Schedule B Nos. 713500 or 759200 through 775098) must include the following information:

(i) Designed working pressure in pounds per square inch, gauge reading;

(ii) Intake capacity in cubic feet per minute;

(iii) Delivery pressure in pounds per square inch, gauge reading, for ejector compressors, centrifugal and mixed flow types of compressors, rotary blowers, and exhausters;

(iv) Whether fabricated of or lined with any of the corrosion-resistant materials, as defined in the "General Notes to Appendix A" (Part 399 of this chapter).

Applications for licenses to export parts for such compressors, blowers, exhausters, or fans must set forth the specific information described above for each compressor, blower, exhauster, or fan for which the parts are intended.

(Sec. 3, 63 Stat. 7; 50 U. S. C. App. Sup. 2023. E. O. 9630, Sept. 27, 1945, 10 F. R. 12245, 3 CFR, 1945 Supp.; E. O. 9919, Jan. 3, 1948, 13 F. R. 59, 3 CFR, 1948 Supp.)

This amendment shall become effective as of November 24, 1950.

LORING K. MACY,
Deputy Director, Office of International Trade.

[F. R. Doc. 50–10793; Filed, Nov. 28, 1950; 8:50 a. m.]

[5th Gen. Rev. of Export Regs., Amdt. P. L. 27]

PART 399—POSITIVE LIST OF COMMODITIES AND RELATED MATTERS

MISCELLANEOUS AMENDMENTS

Section 399.1 *Appendix A—Positive List of Commodities* is amended in the following particulars:

1. A footnote reference 1 and the following related footnote are added to the Positive List with respect to the heading entitled "Raw cotton, except linters (averaging approximately 510 to 520 pounds per running bale)".

[1] Schedule B Nos. 300205–300308 include all raw cotton corresponding to the commodity descriptions therein, including reginned and rebaled cotton where staple lengths can be determined. Where the staple length of reginned or rebaled cotton, or the major portion thereof, cannot be determined, such cotton should be reported under Schedule B Nos. 300303–300304. Reginned and rebaled cotton should be so described on the license application, in appropriate terms such as "reginned, rebaled, pickery, salvage, loose", etc.

2. The following commodities are added to the Positive List:

Dept. of Commerce Schedule B No.	Commodity	Unit	Processing code and related commodity group	GLV dollar value limits	Validated license required
	Wool, Unmanufactured:				
360903	Carpet wools	Lb.	TEXT	250	RO
360905	Clothing wool (worsted type)	Lb.	TEXT	250	RO
360907	Combing wool (woolen type)	Lb.	TEXT	250	RO
360911	Hair, Angora goat (mohair), cashmere goat, Alpaca, and other like hair.	Lb.	TEXT	250	RO
	Brass and bronze manufactures:				
646500	Plumbers' brass goods (specify by name)	Lb.	NONF	100	RO
646900	Hardware, brass and bronze, n. e. s. (specify by name)	Lb.	NONF	100	RO

3. The following commodities are changed from R to RO commodities. Accordingly, the entry therefor on the Positive List is amended to read as follows:

Dept. of Commerce Schedule B No.	Commodity	Unit	Processing code and related commodity group	GLV dollar value limits	Validated license required
647998	Brass and bronze manufactures: Brass and bronze manufactures, n. e. s.: All other brass and bronze manufactures [1]	.....	NONF	300	RO

[1] In addition to the above entry, brass and bronze blanks, brass and bronze circles and brass and bronze manufactures for munitions components, n. e. s., Schedule B No. 647998, are presently listed separately on the Positive List as RO commodities.

Shipments of any commodities removed from general license to Country Group R or Country Group O destinations, or whose GLV dollar-value limits were reduced, as a result of changes set forth in Parts 2 and 3 of this amendment, which were on dock, on lighter, laden aboard an exporting carrier, or in transit to a port of exit pursuant to actual orders for export prior to the effective date of this amendment, may be exported under the previous general license provisions, up to and including December 15, 1950. Any such shipment not laden aboard the exporting carrier on or before December 15, 1950, requires a validated license. This saving clause is not applicable to any such shipments to Subgroup A destinations, Hong Kong and Macao.

(Sec. 3, 63 Stat. 7; 50 U. S. C. App. Sup. 2023. E. O. 9630, Sept. 27, 1945, 10 F. R. 12245, 3 CFR, 1945 Supp.; E. O. 9919, Jan. 3, 1948, 13 F. R. 59, 3 CFR, 1948 Supp.)

This amendment shall become effective as of November 24, 1950.

LORING K. MACY,
Deputy Director,
Office of International Trade.

[F. R. Doc. 50-10794; Filed, Nov. 28, 1950; 8:50 a. m.]

[5th Gen. Rev. of Export Regs., Amdt. P. L. 28]

PART 399—POSITIVE LIST OF COMMODITIES AND RELATED MATTERS

MISCELLANEOUS AMENDMENTS

Section 399.1 *Appendix A—Positive List of Commodities* is amended in the following particulars:

1. The following commodities are added to the Positive List:

Dept. of Commerce Schedule B No.	Commodity	Unit	Processing code and related commodity group	GLV dollar value limits	Validated license required
	Engines, turbines, and parts, n. e. s.:				
	Steam engines, boilers, and accessories:				
713500	Ejector compressors, under four stages, and parts, fabricated of or lined with any corrosion-resistant materials as defined in the "General Notes to Appendix A."	.....	GIEQ	None	RO
713500	Ejector compressors, under four stages, and parts, designed for delivery pressure of 2 atmospheres or more.	.....	GIEQ	None	RO
	Other industrial machinery:				
	Air-conditioning and refrigeration equipment, and parts:				
766030	Parts, peculiar to the air-conditioning and refrigeration industry, for foreign assembly or manufacture (Positive List types only).	.....	GIEQ	None	RO
770880	Ejector compressors, four stages and over, and parts, fabricated of or lined with any corrosion-resistant material as defined in the "General Notes to Appendix A."	.....	GIEQ	None	RO
770880	Ejector compressors, four stages and over, and parts, designed for delivery pressure of 2 atmospheres or more.	.....	GIEQ	None	RO

2. The five revised entries listed below are substituted for the following entries on the Positive List for Schedule B No. 764100: high-speed blowers or compressors for wind tunnels (8,000 r. p. m. or over, or with MACH No. 0.07 or over); rotary blowers, positive displacement type; and turbo-blowers or exhausters having a compression ratio of 2 to 1 or better.

Dept. of Commerce Schedule B No.	Commodity	Unit	Processing code and related commodity group	GLV dollar value limits	Validated license required
	Other industrial machinery:				
	Blowers and ventilating machinery, and parts:				
764100	Axial flow, centrifugal, mixed flow and positive displacement types of compressors, rotary blowers and exhausters, fans, turbo-blowers and exhausters, and parts, fabricated of or lined with any corrosion-resistant materials as defined in the "General Notes to Appendix A".[1]	.....	GIEQ	None	RO
764100	Compressors, blowers, exhausters and fans, and parts, specially designed for wind tunnels.[1]	.....	GIEQ	None	RO
764100	Turbo-blowers and exhausters, and parts, regardless of compression ratio.[1]	.....	GIEQ	None	RO
764100	Axial flow and positive displacement types of compressors, rotary blowers and exhausters, fans, and parts.[1]	.....	GIEQ	None	RO
764100	Centrifugal and mixed flow types of compressors, rotary blowers and exhausters, fans, and parts, designed for delivery pressure of 2 atmospheres or more.[1]	.....	GIEQ	None	RO

[1] The effect of these changes is (1) to add to the Positive List as RO commodities: all turbo-blowers or exhausters having compression ratio of less than 2 to 1; axial flow, and displacement types of compressors; axial flow types of rotary blowers; centrifugal and mixed flow types of compressors and rotary blowers designed for delivery pressure of 2 atmospheres or more; (2) to change from R to RO control, rotary blowers, positive displacement types; (3) to amplify the description and broaden the coverage of rotary blowers to include exhausters, fans, and parts; and (4) to broaden the coverage to include all units of this type fabricated of or lined with any corrosion-resistant materials as defined in the "General Notes to Appendix A".

3. The two revised entries listed below are substituted for the present entry on the Positive List for Schedule B No. 764650:

Dept. of Commerce Schedule B No.	Commodity	Unit	Processing code and related commodity group	GLV dollar value limits	Validated license required
	Other industrial machinery:				
	Air-conditioning and refrigeration equipment, and parts:				
764650	Reciprocating compressors, fabricated of or lined with any corrosion-resistant materials as defined in the "General Notes to Appendix A".[1]	No.....	GIEQ	None	RO
764650	Reciprocating compressors, except those designed for delivery pressure of 150 pounds per square inch, gauge reading, or less, with intake capacity of 190 cubic feet per minute or less.[1]	No.....	GIEQ	None	RO

[1] The effect of this change is (1) to add to the Positive List as RO commodities, compressors designed for delivery pressure between 150 and 300 pounds per square inch, gauge reading; (2) to delete from the Positive List compressors other than reciprocating; and (3) to broaden the coverage to include all units of this type fabricated of or lined with any corrosion-resistant materials as defined in the "General Notes to Appendix A".

4. The three revised entries listed below are substituted for the present entry on the Positive List for Schedule B No. 764710:

Dept. of Commerce Schedule B No.	Commodity	Unit	Processing code and related commodity group	GLV dollar value limits	Validated license required
	Other industrial machinery:				
	Air-conditioning and refrigeration equipment, and parts:				
764710	Centrifugal or mixed flow types of compressors, rotary blowers and exhausters, fans, fabricated of or lined with any corrosion-resistant materials as defined in the "General Notes to Appendix A." [1]	No.	GIEQ	None	RO
764710	Centrifugal or mixed flow types of compressors, rotary blowers and exhausters, fans, designed for delivery pressure of 2 atmospheres or more.[1]	No.	GIEQ	None	RO
764710	Turbo-blowers and exhausters, regardless of compression ratio.[1]	No.	GIEQ	None	RO

[1] The effect of these changes is (1) to add to the Positive List as RO commodities: all turbo-blowers or exhausters having compression ratio of less than 2 to 1; centrifugal and mixed flow types of compressors and rotary blowers designed for delivery pressure of 2 atmospheres or more; and (2) to broaden the coverage to include all units of this type fabricated of or lined with any corrosion-resistant materials as defined in the "General Notes to Appendix A".

5. The entry on the Positive List for Schedule B No. 766050 is revised to read as follows:

Dept. of Commerce Schedule B No.	Commodity	Unit	Processing code and related commodity group	GLV dollar value limits	Validated license required
	Other industrial machinery:				
	Air-conditioning and refrigeration equipment, and parts:				
766050	Replacement parts, peculiar to the air-conditioning and refrigeration industry, for maintenance of existing installations (Positive List types only).[1]	.....	GIEQ	None	RO

[1] The effect of this change is (1) to delete from the Positive List those replacement parts for air-conditioning and refrigeration units not on the Positive List; (2) to change from R to RO control the commodities included in the above revised entry; and (3) to reduce the GLV dollar-value limit for the entries from $1,000 to None.

6. The eight revised entries listed below are substituted for the present entries on the Positive List for air compressors, Schedule B Nos. 770400, 770500, 770610, and 770615:

Dept. of Commerce Schedule B No.	Commodity	Unit	Processing code and related commodity group	GLV dollar value limits	Validated license required
	Other industrial machinery:				
	Air compressors:				
	Stationary, capacity not over 25 cubic feet:				
770400	Reciprocating compressors fabricated of or lined with any corrosion-resistant materials as defined in the "General Notes to Appendix A".[1]	No.	GIEQ	None	RO
770400	Reciprocating compressors, except those designed for delivery pressures of 150 pounds per square inch, gauge reading, or less, with intake capacity of 190 cubic feet per minute or less.[1]	No.	GIEQ	None	RO
	Other industrial machinery—Continued				
	Air compressors—Continued				
	Stationary, capacity over 25 cubic feet:				
770500	Reciprocating compressors fabricated of or lined with any corrosion-resistant materials as defined in the "General Notes to Appendix A".[1]	No.	GEIQ	None	RO
770500	Reciprocating compressors, except those designed for delivery pressures of 150 pounds per square inch, gauge reading, or less, with intake capacity of 190 cubic feet per minute or less.[1]	No.	GEIQ	None	RO
	Portable air compressors, capacity under 60 cubic feet:				
770610	Reciprocating compressors fabricated of or lined with any corrosion-resistant materials as defined in the "General Notes to Appendix A".[1]	No.	GIEQ	None	RO
770610	Reciprocating compressors, except those designed for delivery pressure of 150 pounds per square inch, gauge reading, or less, with intake capacity of 190 cubic feet per minute or less.[1]	No.	GIEQ	None	RO
	Portable air compressors, capacity 60 cubic feet and over:				
770615	Reciprocating compressors fabricated of or lined with any corrosion-resistant materials as defined in the "General Notes to Appendix A".[1]	No.	GIEQ	None	RO
770615	Reciprocating compressors, except those designed for delivery pressure of 150 pounds per square inch, gauge reading, or less, with intake capacity of 190 cubic feet per minute or less.[1]	No.	GIEQ	None	RO

[1] The effect of these changes is (1) to delete from the Positive List compressors other than reciprocating and reciprocating compressors designed for delivery pressure of less than 150 pounds per square inch, gauge reading, with intake capacity of less than 190 cubic feet per minute except those reciprocating compressors fabricated of or lined with any corrosion-resistant materials as defined in the "General Notes to Appendix A"; (2) to add to the Positive List as RO commodities, certain portable reciprocating compressors which are driven by means other than Diesel engines; (3) to change from R to RO control the commodities included in the above revised entries for Schedule B Nos. 770400; and 770500; and (4) to reduce the GLV dollar-value limit for the commodities presently on the Positive List which are included in the above revised entries for Schedule B No. 770400, from $100 to None.

7. The four revised entries listed below are substituted for the present entry on the Positive List for compressors, including pumps and condensers, delivering liquids or gases at 300 pounds per square inch and over, Schedule B No. 775050:

Dept. of Commerce Schedule B No.	Commodity	Unit	Processing code and related commodity group	GLV dollar value limits	Validated license required
	Other industrial machinery:				
	Chemical and pharmaceutical machinery, and parts:				
775050	Reciprocating compressors, axial flow, centrifugal, mixed flow or positive displacement types of compressors, rotary blowers and exhausters, fans, and parts, fabricated of or lined with any corrosion-resistant materials as defined in the "General Notes to Appendix A." [1]	.....	GIEQ	None	RO
775080	Reciprocating compressors, except those designed for delivery pressure of 150 pounds per square inch, gauge reading, or less, with intake capacity of 190 cubic feet per minute or less.[1]	.....	GIEQ	None	RO
775050	Axial flow and positive displacement types of compressors, rotary blowers and exhausters, fans, and parts.[1]	.....	GIEQ	None	RO
775050	Centrifugal and mixed flow types of compressors, rotary blowers and exhausters, fans, and parts, designed for delivery pressure of 2 atmospheres or more.[1]	.....	GIEQ	None	RO

[1] The effect of these changes is (1) to add to the Positive List as RO commodities, reciprocating compressors designed for delivery pressure between 150 and 300 pounds per square inch, gauge reading; centrifugal and mixed flow types of compressors, rotary blowers and exhausters, fans, and parts, designed for delivery pressure of less than 300 pounds per square inch, gauge reading, and not less than 2 atmospheres; axial flow and positive displacement types of compressors, rotary blowers and exhausters, fans, and parts, of less than 300 pounds per square inch, gauge reading; (2) to broaden the coverage to include all units of this type fabricated of or lined with any corrosion-resistant materials as defined in the "General Notes to Appendix A"; and (3) to reduce the GLV dollar-value limit for the commodities presently on the Positive List which are included in these revised entries from $100 to None, and to change the processing code for such commodities from GIEQ 2 to GIEQ.

8. The four revised entries listed below are substituted for the present entries on the Positive List for compressors delivering liquids or gases at 300 pounds per square inch or over, and gas compressors, delivering liquids or gases at 300 pounds per square inch or over, Schedule B No. 775098:

Dept. of Commerce Schedule B No.	Commodity	Unit	Processing code and related commodity group	GLV dollar value limits	Validated license required
	Other industrial machinery:				
	Industrial machinery, and parts, n. e. s.:				
775098	Reciprocating compressors, axial flow, centrifugal, mixed flow or positive displacement types of compressors, rotary blowers and exhausters, fabn, and parts, fabricated of or lined with any corrosion-resistant materials as defined in the "General Notes to Appendix A".[1]	.....	GIEQ	None	RO
775098	Reciprocating compressors, except those designed for delivery pressure of 150 pounds per square inch, gauge reading, or less, with intake capacity of 190 cubic feet per minute or less.[1]	.....	GIEQ	None	RO
775098	Axial flow and positive displacement types of compressors, rotary blowers and exhausters, fans, and parts.[1]	.....	GIEQ	None	RO
775098	Centrifugal and mixed flow types of compressors, rotary blowers and exhausters, fans, and parts, designed for delivery pressure of 2 atmospheres or more.[1]	.....	GIEQ	None	RO

[1] The effect of these changes is (1) to add to the Positive List as RO commodities, reciprocating compressors designed for delivery pressure between 150 and 300 pounds per square inch, gauge reading; centrifugal and mixed flow types of compressors, rotary blowers and exhausters, fans, and parts, designed for delivery pressure of less than 300 pounds per square inch, gauge reading, and not less than 2 atmospheres; axial flow and positive displacement types of compressors, rotary blowers and exhausters, fans, and parts, of less than 300 pounds per square inch, gauge reading; (2) to broaden the coverage to include all units of this type fabricated of, or lined with any corrosion-resistant materials as defined in the "General Notes to Appendix A"; and (3) to reduce the GLV dollar-value limits for the commodities presently on the Positive List which are included in the above revised entries from $100 to None.

Shipments of the commodities removed from general license to Country Group R or Country Group O destinations, or whose GLV dollar-value limits were reduced, as a result of changes set forth in Parts 1 through 8 of this amendment which were on dock, on lighter, laden aboard an exporting carrier, or in transit to a port of exit pursuant to actual orders for export prior to the effective date of this amendment, may be exported under the previous general license provisions up to and including December 15, 1950. Any such shipment not laden aboard the exporting carrier on or before December 15, 1950, requires a validated license for export. This saving clause is not applicable to any such shipments to Subgroup A destinations, Hong Kong, and Macao.

(Sec. 3, 63 Stat. 7; 50 U. S. C. App. Sup. 2023. E. O. 9630, Sept. 27, 1945, 10 F. R. 12245, 3 CFR, 1945 Supp.; E. O. 9919, Jan. 3, 1948, 13 F. R. 59, 3 CFR, 1948 Supp.)

This amendment shall become effective as of November 24, 1950.

LORING K. MACY,
Deputy Director,
Office of International Trade.

[F. R. Doc. 50-10795; Filed, Nov. 28, 1950; 8:50 a. m.]

TITLE 24—HOUSING AND HOUSING CREDIT

Chapter VIII—Office of Housing Expediter

[Controlled Housing Rent Reg., Amdt. 311]

[Controlled Rooms in Rooming Houses and Other Establishments Rent Reg., Amdt. 307]

PART 825—RENT REGULATIONS UNDER THE HOUSING AND RENT ACT OF 1947, AS AMENDED

CALIFORNIA AND OHIO

Amendment 311 to the Controlled Housing Rent Regulation (§§ 825.1 to 825.12) and Amendment 307 to the Rent Regulation for Controlled Rooms in Rooming Houses and Other Establishments (§§ 825.81 to 825.92). Said regulations are amended in the following respects:

1. Schedule A, Item 27c, is amended to read as follows:

(27c) [Revoked and decontrolled.]

This decontrols (1) all unincorporated localities in Kern County, California, in the Kern, California, Defense-Rental Area, based on a resolution submitted in accordance with section 204 (j) (3) of the Housing and Rent Act of 1947, as amended, and (2) the remainder of said Defense-Rental Area, on the Housing Expediter's own initiative in accordance with section 204 (c) of said act. Said Defense-Rental Area, immediately prior to this amendment, consisted of Kern County, California, except the City of Bakersfield.

2. Schedule A, Item 30, is amended to describe the counties in the Defense-Rental Area as follows:

Los Angeles County, except (1) Catalina Township, (2) the Cities of Arcadia, Alhambra, Bell, Beverly Hills, Burbank, Claremont, Compton, Covina, Culver City, El Monte, El Segundo, Gardena, Glendale, Hermosa Beach, Huntington Park, Inglewood, La Verne, Long Beach, Lynwood, Manhattan Beach, Maywood, Monrovia, Montebello, Monterey Park, Pasadena, Pomona, Redondo Beach, San Fernando, San Marino, Santa Monica, Sierra Madre, Signal Hill, South Gate, South Pasadena and Whittier, and (3) all unincorporated localities.

This decontrols the City of San Marino in Los Angeles County, California, a portion of the Los Angeles, California, Defense-Rental Area.

3. Schedule A, Item 35a, is amended to describe the counties in the Defense-Rental Area as follows:

Sacramento County, except the Cities of Folsom, North Sacramento and Sacramento; San Joaquin County; and Yolo County except all unincorporated localities.

This decontrols the City of Sacramento in Sacramento County, California, a portion of the Sacramento, California, Defense-Rental Area.

4. Schedule A, Item 38, is amended to describe the counties in the Defense-Rental Area as follows:

San Francisco County; San Mateo County, except the Cities of Menlo Park, Millbrae and San Bruno and the Town of Atherton; Marin County, except the Cities of Belvedere and Sausalito and the Judicial Townships of Bolinas, Nicasio, Point Reyes, San Antonio, and Tomales; and Sonoma County, except (i) the Cities of Healdsburg and Santa Rosa, (ii) the Judicial Townships of Redwood and Sonoma (including the City of Sonoma) and (iii) that portion of Analy Judicial Township lying west of the Monte Rio-Valley Ford Highway and lying between Redwood Judicial Township on the north and the northern line of Marin County on the south.

This decontrols the City of Millbrae in San Mateo County, California, a portion of the San Francisco Bay, California, Defense-Rental Area.

5. Schedule A, Item 40a, is amended to describe the counties in the Defense-Rental Area as follows:

Ventura County, except the Cities of San Buenaventura and Santa Paula.

This decontrols the City of San Buenaventura in Ventura County, California, a portion of the Ventura, California, Defense-Rental Area.

6. Schedule A, Item 41, is amended to read as follows:

(41) [Revoked and decontrolled.]

This decontrols (1) all unincorporated localities in Kings County, California, a portion of the Tulare-Kings, California, Defense-Rental Area, based on a resolution submitted in accordance with section 204 (j) (3) of the Housing and Rent Act of 1947, as amended, and (2) the remainder of said Defense-Rental Area on the Housing Expediter's own initiative in accordance with section 204 (c) of said act.

7. Schedule A, Item 228, is amended to describe the counties in the Defense-Rental Area as follows:

Cuyahoga County, except the Cities of Bedford, Berea, Shaker Heights, and University Heights, and the Villages of Bay, Beachwood, Bentleyville, Brecksville, Chagrin Falls, Gates Mills, Highland Heights, Hunting Valley, Independence, Lyndhurst, Mayfield Heights, Moreland Hills, North Olmsted, North Royalton, Orange, Pepper Pike, Seven Hills, Strongsville, Valley View, Warrensville Heights, Westlake and West View; and in Lake County those parts of Kirtland Township included within the corporate limits of the Villages of Waite Hill and Willoughby, and Willoughby Township, except the Village of Wickliffe.

Lake County other than Willoughby Township and those parts of Kirtland Township included within the corporate limits of the Villages of Waite Hill and Willoughby, except the Village of Mentor.

This decontrols the Village of Warrensville Heights in Cuyahoga County, Ohio, a portion of the Cleveland, Ohio, Defense-Rental Area.

All decontrols effected by this amendment, except Items 1 and 6 thereof, are based on resolutions submitted in accordance with section 204 (j) (3) of the

Housing and Rent Act of 1947, as amended.

(Sec. 204, 61 Stat. 197, as amended; 50 U. S. C. App. Sup., 1894)

Issued this 24th day of November 1950.

Effective November 24, 1950.

TIGHE E. WOODS,
Housing Expediter.

[F. R. Doc. 50-10798; Filed, Nov. 28, 1950; 8:51 a. m.]

TITLE 39—POSTAL SERVICE

Chapter I—Post Office Department

PART 1—ESTABLISHMENT AND ORGANIZATION OF THE POST OFFICE DEPARTMENT

MISCELLANEOUS AMENDMENTS

In Part 1, make the following changes:

a. In § 1.9 amend paragraph (j) (1), as amended (15 F. R. 4686), by the addition of the following: "Authority is hereby delegated to the Comptroller, Bureau of Accounts, and to such employee or employees in the Bureau of Accounts as he may designate, to countersign, in the name of the Comptroller, Bureau of Accounts, all checks or warrants withdrawing funds from symbols 47001 and 48050. Nothing herein shall be applicable to funds withdrawn by postmasters, which funds are accounted for through their financial accounts."

b. In § 1.12, as amended (15 F. R. 4689), amend paragraph (a) by the addition of the following: "Authority is hereby delegated to the Assistant Postmaster General in charge of the Bureau of Finance, and to such employee or employees of the Bureau of Finance as he may designate, to sign, on behalf of and in the name of the Postmaster General, all checks or warrants withdrawing funds from symbols 47001 and 48050, which checks or warrants shall be countersigned by the Comptroller, Bureau of Accounts, or in his name by such employee or employees as may be designated by the Comptroller, Bureau of Accounts. Nothing herein shall be applicable to funds withdrawn by postmasters, which funds are accounted for through their financial accounts."

(R. S. 161, 396, secs. 304, 309, 42 Stat. 24, 25, 64 Stat. 460; Reorg. Plan No. 3 of 1949; 5 U. S. C. 22, 133z-15, 369, 39 U. S. C. 794-794e)

[SEAL] J. M. DONALDSON,
Postmaster General.

[F. R. Doc. 50-10776; Filed, Nov. 28, 1950; 8:47 a. m.]

PART 34—CLASSIFICATION AND RATES OF POSTAGE

PARCELS ADDRESSED TO CERTAIN A. P. O.'S

In Part 34, make the following changes:

1. Amend § 34.95 caption to read:

§ 34.95 *Parcels addressed to certain A. P. O.'s.*

2. Amend the material immediately following the section caption, preceding paragraph (a) to read as follows: "The following conditions are applicable to parcels addressed to A. P. O.'s 124, 125, 147, and 179, c/o Postmaster, New York, N. Y."

(R. S. 161, 396, secs. 304, 309, 42 Stat. 24, 25, 5 U. S. C. 22, 369)

[SEAL] J. M. DONALDSON,
Postmaster General.

[F. R. Doc. 50-10770; Filed, Nov. 28, 1950; 8:46 a. m.]

PART 127—INTERNATIONAL POSTAL SERVICE: POSTAGE RATES, SERVICE AVAILABLE, AND INSTRUCTIONS FOR MAILING

MISCELLANEOUS AMENDMENTS

a. In § 127.19 *Special delivery (Exprès) service* (39 CFR 127.19; 15 F. R. 324, 1104, 2337, 3526) make the following changes:

1. Amend paragraph (a) by inserting "India" between "Hungary" and "Ireland."

2. Amend paragraph (b) to read as follows:

(b) The special-delivery service applies to all Postal Union (regular) mail articles (ordinary and registered) addressed for delivery in the countries shown in the preceding list, except that in the case of Canada the special-delivery service applies only to letters or articles prepaid at the letter rate (ordinary and registered), and to India it applies only to unregistered letters, post cards, and printed matter (exclusive of printed matter for the blind). The special-delivery service does not apply to international parcel post.

b. In § 127.85 *Export declarations* (39 CFR 127.85) amend paragraph (c) to read as follows:

(c) Only a single copy of the shipper's export declaration is required for mail shipments. A single export declaration may include any number of packages mailed by one sender the same day to one addressee. Export declarations need not be notarized.

c. In § 127.272 *Guatemala* (39 CFR 127.272) amend paragraph (b) (6) by deleting subdivision (v) (g).

d. In § 127.278 *India* (39 CFR 127.278) amend paragraph (a) (4) to read as follows:

(4) *Special delivery.* Fee, 20 cents. Service applicable only to unregistered letters, post cards, and printed matter (exclusive of printed matter for the blind). (See § 127.19.)

(R. S. 161, 396, secs. 304, 309, 42 Stat. 24, 25; 5 U. S. C. 22, 369 and the terms of postal conventions and agreements entered into pursuant to R. S. 398, 48 Stat. 943; 5 U. S. C. 372)

[SEAL] J. M. DONALDSON,
Postmaster General.

[F. R. Doc. 50-10768; Filed, Nov. 28, 1950; 8:46 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 690]

ALASKA

WITHDRAWING PUBLIC LANDS FOR USE OF THE DEPARTMENT OF THE AIR FORCE FOR MILITARY PURPOSES; REVOKING EXECUTIVE ORDER NO. 8325 OF JANUARY 22, 1940, AS AMENDED, AND PUBLIC LAND ORDER NO. 139 OF JUNE 12, 1943, AS AMENDED

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

1. Subject to valid existing rights, the following-described public lands are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, and reserved for the use of the Department of the Air Force for military purposes:

FAIRBANKS MERIDIAN

T. 1 N., R. 1 E.,
Sec. 32, E½NW¼ and SE¼.
T. 1 S., R. 1 E.,
Sec. 4, lots 3, 4, S½NW¼ and SW¼;
Sec. 5, lots 1, 2, 5, 6, 7, S½NE¼, S½NW¼, N½SW¼, and SE¼;
Sec. 6, lots 6, 7, 8, E½SW¼, W½SE¼, NE¼SE¼;
Sec. 9, N½NW¼.

The areas described aggregate 1,468.60 acres.

It is intended that the lands described above shall be returned to the administration of the Department of the Interior when they are no longer needed for the purpose for which they are reserved.

2. Executive Order No. 8325 of January 22, 1940, as amended, and Public Land Order No. 139 of June 12, 1943, as amended, withdrawing the above-described lands for the use of the War Department for military purposes, are hereby revoked.

OSCAR L. CHAPMAN,
Secretary of the Interior.

NOVEMBER 22, 1950.

[F. R. Doc. 50-10762; Filed, Nov. 28, 1950; 8:45 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Production and Marketing Administration

[7 CFR, Part 53]

SLAUGHTER CATTLE

NOTICE OF PROPOSED REVISION OF OFFICIAL U. S. STANDARDS

Notice is hereby given in accordance with section 4 of the Administrative Procedure Act (5 U. S. C. 1001) that the Secretary of Agriculture, pursuant to sections 203 and 205 of the Agricultural Marketing Act of 1946 (7 U. S. C. 1622 and 1624) and the items for marketing farm products and market inspection of farm products recurring in the annual appropriation act for the Department of Agriculture and currently found in the Department of Agriculture Appropriation Act, 1951 (Chapter VI, Pub. Law 759, 81st Congress, 7 U. S. C. Supp. 414) is considering the revision of the official United States standards for slaughter cattle to conform with the revised carcass beef standards which are to become effective December 28, 1950. It is proposed to issue the revised slaughter cattle standards to appear in 7 CFR Part 53, Subpart C, reading as follows:

SUBPART C—LIVE ANIMAL STANDARDS

§ 53.201 *Cattle.* The official standards for live cattle developed by the United States Department of Agriculture provide for segregation first according to use—slaughter, feeder and stocker—then as to class which is determined by sex condition, and then as to grade which is determined by the apparent relative excellence and desirability of the animal for its particular use.

§ 53.202 *Slaughter cattle classes.* The classes of slaughter cattle are steers, heifers, cows, bulls and stags. Definitions of the respective classes are as follows:

(a) *Bull.* A bull is an uncastrated male bovine.

(b) *Steer.* A steer is a male bovine castrated when young and prior to developing the secondary physical characteristics of a bull.

(c) *Stag.* A stag is a male bovine castrated after it has developed or begun to develop the secondary physical characteristics of a bull.

(d) *Cow.* A cow is a female bovine that has developed through reproduction or with age, relatively prominent hips, a large middle, and other physical characteristics typical of mature females.

(e) *Heifer.* A heifer is an immature female bovine that has not developed the physical characteristics typical of cows.

§ 53.203 *Slaughter cattle grades*—(a) *Grade factors.* The specific grade of a slaughter animal is determined by an evaluation in terms of factors which influence carcass excellence—conformation, finish, quality and maturity.

(1) Conformation refers to the general body proportions of the animal and to the ratio of meat to bone. While primarily determined by the inherent muscular and skeletal system, it is also influenced by degree of fatness. Excellent conformation in slaughter cattle is denoted by a compact, wide topped, square rumped, and full quartered individual that is thickly fleshed. Fullness and thickness should be especially evident in the portions of the body producing the more desirable cuts of meat—loin, ribs, and rounds.

(2) Finish refers to the fatness of the animal. The quality, quantity and distribution of finish of the slaughter animal are very closely associated with the palatability and quality of the meat which it will produce. Thus finish becomes the most important single factor affecting the grade of slaughter cattle. External finish is evidenced by fullness and the apparent thickness of the fat covering over the back, loin, rump, ribs, and rounds. Also, fat deposits giving fullness to the brisket, rear flanks and cod or udder, while varying decidedly with the breeding of the animal, are useful indicators of internal finish. A high degree of desirable finish is evidenced by a thick, firm, smooth layer of fat which is uniformly distributed over the body.

(3) Quality in the live slaughter animal refers to the refinement of hair, hide and bone and to the smoothness and symmetry of the body. Quality is also closely associated with carcass yield and the proportion of meat to bone. A high degree of quality in slaughter cattle is denoted by smoothness of fleshing, relatively small bones, neat joints, neatly laid in shoulders and hips, refined hair and thin pliable hide.

(4) The degree of maturity of slaughter cattle is appraised on the basis of the physical characteristics indicating age. Youthfulness and fatness of the slaughter animal are each credited with having a desirable effect on the palatability of meat. Therefore, within certain limits, the standards for slaughter cattle allow an increase in finish to compensate for advancing degrees of maturity.

(b) *General principles.* (1) The determination of the carcass grade that the live animal will produce requires the exercising of well regulated judgment. Each animal graded presents a different combination of the grade-determining factors. It is not unusual to find an animal of one grade that has some of the characteristics associated with another grade or grades. Therefore, a composite evaluation of the total inherent physical characteristics of the animal is essential for accuracy in determining grade.

(2) Since evidences of maturity in the beef carcass vary among animals of the same approximate age, only general age limitations can be used for descriptive standards for slaughter cattle. Approximate maximum age limitations for steer, heifer and cow grades follow: Prime—36 months; Choice—42 months; and Good—48 months. There are no age limitations for the Commercial, Utility, Cutter or Canner grades.

(3) The designation of slaughter cattle grades is usually made by classes. Since the same standard is applied to carcasses from steers, heifers and cows without class identification, these three classes are also combined in the slaughter cattle grade descriptions. However, bulls and stags are always identified as to class in both carcass and slaughter cattle grading, since meat from these classes is never interchangeable with meat carrying the same grade name from steers, heifers and cows.

(4) The descriptions of the physical characteristics of the grades of slaughter cattle in §§ 53.204, 53.205, and 53.206 represent the lower limit of each grade. No attempt is made to describe the numerous combinations of grade factors which may meet the minimum requirements for a particular grade. Descriptions are limited largely to animals considered as typical of the lower limits of the grade.

§ 53.204 *Specifications for official United States standards for grades of slaughter steers, heifers, and cows*—(a) *Prime.* Only steers and heifers are eligible for the Prime grade. Cattle possessing the minimum qualifications for Prime grade are definitely superior in conformation, quality and finish. However, individual animals may differ somewhat in appearance because of possible variations in the degree of excellence of the individual grade factors. In conformation, Prime cattle tend to be low set, compact, thickly fleshed and short of neck and body. They are wide over the back and loin with the width carried out squarely into the rump. The shoulders and hips are neatly laid in and smooth. The twist is deep and full and the rounds thick and plump. There is a pronounced fullness or bulging over the crops, loin, and rump which contributes to a full, smooth, well-rounded appearance. The fat covering is firm. Steers and heifers over 30 months of age have a very thick covering of fat over the crops, back, ribs, loin and rump. The brisket, rear flanks and cod or udder are very full and distended. Although the finish is usually evenly distributed and smooth, some cattle may have rolls of fat over the ribs, and patches around the tailhead. Steers and heifers 18 to 30 months of age have a thick fat covering over the back, ribs, loin and rump. The brisket, rear flanks and cod or udder have the appearance of being filled and distended with fat. The fat covering tends to be smooth with only slight indications of patchiness. Steers and heifers under 18 months of age may have only a moderately thick but smooth covering of fat which extends over the back, ribs, loin and rump. The brisket, rear flank and cod or udder show a marked fullness. Prime cattle exhibit evidences of high quality. The bones

tend to be proportionately small, joints smooth, the hide moderately thin and pliable, and the body trim, smooth and symmetrical. However, some cattle may show slight evidences of coarseness such as heavy bone, thick hide, and uneven distribution of fat.

(b) *Choice.* Cattle possessing the minimum qualifications for Choice grade may differ considerably in appearance because of the many possible combinations of varying degrees of excellence of the grade factors. In conformation, Choice cattle tend to be moderately low-set and compact. They are moderately thick in natural fleshing and are moderately wide over the back and loin. The shoulders and hips are moderately neat and smoothly laid in with only a slight tendency toward prominence in older cattle. The twist and rounds are of moderate depth and plumpness. There is a fullness or bulge distinctly evident over the crops, loin and rump. The distribution of fat may be slightly uneven, as evidenced by ties, rolls of fat over the loin edge and ribs, and patchiness around the tailhead. Cattle over 30 months of age have a thick covering of fat over the crops, back, ribs, loin and rump. The brisket, rear flank and cod or udder are well filled and distended. Cattle 18 to 30 months of age carry a moderately thick fat covering over the crops, back, loin, rump and down over the ribs. The brisket, rear flank and cod or udder show a marked fullness. Cattle under 18 months of age carry a slightly thick fat covering over the top. The brisket, rear flanks, and cod or udder appear moderately full. Choice cattle usually have a moderately refined appearance but some coarseness may be evident in older animals.

(c) *Good.* Cattle possessing minimum qualifications for Good grade may differ somewhat in appearance because of the numerous possible combinations of varying degrees of excellence of the grade factors. In conformation, Good cattle tend to be slightly low set and compact. They are slightly thick in natural fleshing and slightly wide over the back and loin. The shoulders and hips are usually moderately neat and smoothly laid in but may appear slightly prominent in older cattle. The twist and rounds are usually moderately deep but may appear slightly flat with very little evidence of plumpness. There is usually a very slight fullness evident over the crops, loin and rump. The distribution of fat may be somewhat uneven, particularly in older cattle, as evidenced by ties, rolls of fat over the loin edge and ribs, and patchiness about the tailhead. Cattle over 30 months of age carry a slightly thick covering of fat and the brisket, rear flanks and cod or udder show a marked fullness. Good cattle 18 to 30 months of age carry a slightly thin fat covering with some fullness evident in the crops, brisket, flanks and cod or udder. Cattle under 18 months of age may have somewhat limited finish which is largely restricted to the back, loin, and upper rib. The brisket, rear flanks, and cod or udder are slightly full. Good cattle are usually moderately smooth, and slightly refined in appearance. Some coarseness may be evident in the relatively older cattle of the Good grade.

(d) *Commercial.* Cattle possessing the minimum qualifications for Commercial grade may be highly variable in appearance because of the wide range in the possible combinations of age, conformation, finish and quality. The Commercial grade includes all ages of steers, heifers, and cows. Young cattle in this grade tend to be slightly rangy, upstanding, thin fleshed, narrow through the crops, back and loin, somewhat prominent at the hips and shallow in the twist and quarter. The loin, rump, and rounds appear flat with no evidence of fullness. Such cattle may show the heavy bone, prominent hips and shoulders associated with coarseness or they may show the small bones, tight hide and angularity denoting over-refinement. Cattle which range in age from 30 to 48 months carry a slightly thin covering of fat which is in evidence over the back, loin and ribs. The brisket, rear flanks, and cod or udder appear only slightly full. Cattle under 30 months of age carry only a thin covering of fat which is largely restricted to the back, loin, and upper rib. Fully mature cattle appear slightly rangy, upstanding, and somewhat thin fleshed. They appear deep through the fore-rib and moderately wide over the back and loin. The hips and shoulders are prominent, and the quarters thin and shallow with no apparent bulge or fullness. Cattle considered as having just reached full maturity carry a slightly thick fat covering over the back, ribs, loin, and rump which increases progressively with increasing age. Considerable patchiness about the tailhead may be evident. The crops, brisket, flanks and cod or udder appear slightly full. Mature Commercial cattle tend to be rather coarse and rough with prominent shoulders and hips, slightly coarse bone, and moderately thick, heavy hides.

(e) *Utility.* Cattle possessing the minimum requirements of the Utility grade may vary greatly in appearance because of the numerous possible combinations of grade factors and the wide range in age of animals. In conformation, cattle of Utility grade tend to be rangy, upstanding, angular and thinly fleshed. They are usually narrow through the crops with a slightly sunken or hollowed-out appearance of the loin, rump and rounds. Shoulders and hips are decidedly prominent. Depth through the fore-rib is much greater than through the rear flank with a resulting low proportion of hindquarter. Mature cattle carry a slightly thick fat covering which may be restricted to the back, loin, and rump. The crops of these cattle are very thin, and the brisket, rear flanks and cod or udder show only very slight fullness. Progressively less finish is apparent in younger cattle ranging down to a very thin covering of fat for those under 30 months of age. Utility cattle tend to be of slightly low quality. The bones and joints are usually proportionately large and the hide either thick or tight and inelastic.

(f) *Cutter.* Cattle possessing minimum qualifications for Cutter grade may vary slightly in appearance because of age and varying combinations of grade factors. They tend to be decidedly inferior in conformation and quality and carry a very small amount of finish. Cutter cattle are very angular and rough in conformation. The fleshing is very thin, the hips and shoulders are very prominent, and the loin and rounds usually present a very sunken or hollowed-out appearance. Fully mature cattle carry only a very thin fat covering while young immature cattle show no indications of any fat covering. Cutter cattle are usually of low quality, appearing quite rough, coarse and unsymmetrical.

(g) *Canner.* Cattle of the Canner grade are normally those of advanced age and so extremely thin as to appear emaciated. The typical Canner animal appears extremely angular, long and thin of neck, extremely narrow and shallow bodied. Shoulders and hips are extremely prominent. Cattle of this grade are very thin fleshed and the outline of the bony framework is very evident. The loin, rump, and rounds present an extremely sunken and hollowed-out appearance. The general appearance denotes low quality. The relative proportion of meat to bone is quite low, joints appear large and the body is extremely angular and unsymmetrical.

§ 53.205 *Specifications for official United States standards for grades of slaughter bulls*—(a) *Choice.* Choice grade represents a very select segment of the class and is composed primarily of bulls that have not reached full maturity. Bulls possessing minimum qualifications for the Choice grade tend to be lowset, compact, blocky individuals that are very wide topped and very thickly fleshed. The neck, shoulders and rounds show pronounced thickness, yet they present a well-balanced, symmetrical, smooth appearance. While Choice bulls yield a moderately high proportion of loins, ribs and rounds, the development of the forequarters definitely exceeds that of the hindquarters. Choice bulls have a firm, relatively thick covering of fat which is fairly uniform and smooth. The brisket, rear flank, and twist appear full and plump. The appearance is neat and trim though some coarseness about the head and shoulders may be evident. The hide is pliable and of medium thickness. The bones and joints are moderately refined.

(b) *Good.* Good grade bulls include a wide range of ages and numerous combinations of the grade factors. In conformation, bulls meeting minimum qualifications for the Good grade tend to be moderately blocky and compact. They are thickly fleshed with short, thick necks, moderately wide backs and loins, and moderately thick rounds. Young bulls of this grade have only a slightly thick covering of fat. Older bulls carry at least a moderately thick fat covering with noticeable fullness in the brisket, rear flanks and twist. Bulls of this grade show only moderate refinement. They usually appear somewhat coarse in the shoulders and heavy of bone and have slightly thick hides.

(c) *Commercial.* Bulls possessing minimum qualifications for Commercial grade are somewhat angular and rangy. They usually lack width and thickness over the top but appear rather thick through the neck, shoulders, and rounds. Yearling bulls have a very thin fat covering and older bulls appear slightly thin. The brisket and rear flanks appear only slightly full. Bulls of the Commercial grade are usually of rather low quality. They are usually coarse boned, prominent in the shoulders, and lacking generally in body symmetry.

(d) *Utility.* Bulls possessing minimum qualifications for Utility grade are usually inferior in conformation and quality and very deficient in finish. Bulls of this grade are upstanding, rangy, narrow topped, and very shallow of twist and round. They are thinly fleshed but appear slightly thick through the shoulders and rounds. Young bulls of this grade are practically devoid of finish, while older bulls have a very thin covering of fat. Exterior fats are confined principally to the back and the region about the tailhead. There is little or no evidence of fat deposits in the brisket or rear flank. Utility bulls are very coarse and rough in appearance, being especially prominent in the shoulders and hips, and lacking decidedly in trimness and body symmetry.

(e) *Cutter.* Bulls possessing minimum qualifications for Cutter grade are extremely inferior in conformation and quality and practically devoid of finish. They tend to be very upstanding, rangy and angular, thinly fleshed, narrow and shallow bodied. Shouders and hips are very prominent and the loin, rump and round present a rather sunken or hollowed-out appearance. The brisket is usually very wrinkled with no evidence of fullness.

(f) *Canner.* Typical Canner grade bulls are very angular and rangy and so extremely thin as to appear emaciated. The muscular portions of the body present a sunken or hollowed-out appearance and the outline of the bony framework is very prominent and visible. Bulls of this grade possess an extremely low proportion of meat to bone.

§ 53.206 *Specifications for official United States standards for grades of slaughter stags*—(a) *Choice.* Stags possessing minimum qualifications for Choice grade tend to be lowset, compact, wide, and deep of body. They are thickly fleshed with pronounced thickness of the neck, shoulders and rounds. Although yielding a relatively high proportion of ribs, loins and rounds, the forequarters are decidedly deeper and thicker and show more development than the hindquarters. Choice stags usually show evidences of not being fully mature and carry a firm relatively thick covering of fat. The brisket, flanks and cod tend to be full and distended. Stags of this grade are usually smooth in their finish but are of only moderate quality. They show some coarseness about the head and neck, slight prominence of the shoulders, fairly large bones and joints, and moderately thick but pliable hides.

(b) *Good.* Stags possessing minimum qualifications for Good grade tend to be moderately compact and thick in appearance. The neck is usually short and very thick and the shoulders wide, somewhat prominent and thickly fleshed. The back, loin, and rump are only moderately wide and full while the rounds appear thick and plump. Stags of this grade usually are much deeper and heavier through the forequarters than in the hindquarters. Relatively young stags have a slightly thick fat covering, while older stags have at least a moderately thick finish. The fat covering is fairly smooth and extends evenly over the crops, back and loin but may be slightly thin over the lower rib, rounds and shoulders. The brisket, flanks and cods appear moderately full. Stags of this grade appear rather coarse and lacking generally in refinement.

(c) *Commercial.* Stags possessing minimum qualifications for Commercial grade are usually upstanding, rangy and narrow. They are very thick through the neck and shoulders. They may be slightly thinly fleshed and the back, loin and rump may appear slightly thin and lacking in fullness. The rounds are moderately thick but shallow and lacking in plumpness. Relatively young stags have a thin covering of fat while older stags have a slightly thick covering and usually show some fullness in the brisket and cod. Stags of this grade are usually rough with prominent shoulders and heavy forequarters, and are very unsymmetrical in appearance.

(d) *Utility.* Stags possessing minimum qualifications for Utility grade are very upstanding, long and shallow of body, and very narrow and uneven over their top. The neck and shoulders are moderately thick, while the back, loin and rump have a thin, depressed or hollowed-out appearance. The depth of body is much greater through the fore rib than through the rear flank with a resulting low proportion of hindquarter. The fat covering of Utility stags is thin and confined mostly to the back and loin, with the lower part of the shoulders, ribs and rounds being practically devoid of finish. The quantity of finish may range from very thin for very young stags to only slightly thick for old mature stags. Utility stags are decidedly rough and coarse in appearance. Coarseness is very evident in the head, neck, shoulders, hips, and heavy bone.

(e) *Cutter.* Stags possessing minimum qualifications for the Cutter grade are inferior in conformation and quality, and very deficient in finish. They appear very angular and very narrow throughout. They are very thinly fleshed and carry only a very thin to extremely thin covering of fat. The fleshy portions of the body have a sunken or hollowed-out appearance and the shoulders and hips are very prominent. The proportion of ribs, loins and rounds from Cutter stag carcasses is relatively low.

(f) *Canner.* Typical Canner grade stags are extremely inferior in conformation and quality and practically devoid of finish. In conformation, they appear extremely angular, rangy, narrow and shallow. They are extremely thin fleshed, and the outline of the bony framework of the animal's body is evident. Loins and rounds appear very sunken and hollowed-out. The relative proportion of meat to bone is extremely low, joints and bones appear large, and the body is very unsymmetrical.

Present Subpart B of Part 53, Title 7, Code of Federal Regulations, would be redesignated as "Carcass Standards".

Any interested person who wishes to submit written data, views, or arguments concerning the proposed revision may do so by filing them with the Director of the Livestock Branch, Production and Marketing Administration, U. S. Department of Agriculture, Washington 25, D. C., within 30 days after publication of this notice in the FEDERAL REGISTER.

Done at Washington, D. C. this 22d day of November 1950.

[SEAL] CHARLES F. BRANNAN,
Secretary of Agriculture.

[F. R. Doc. 50-10786; Filed, Nov. 28, 1950; 8:48 a. m.]

[7 CFR, Part 959]

IRISH POTATOES IN THE COUNTIES OF CROOK, DESCHUTES, JEFFERSON, KLAMATH, AND LAKE IN OREGON, AND MODOC AND SISKIYOU IN CALIFORNIA

NOTICE OF PROPOSED BUDGET AND RATE OF ASSESSMENT

Notice is hereby given that the Secretary of Agriculture is considering the approval of the budget of expenses and rate of assessment hereinafter set forth, which were recommended by the Oregon-California Potato Committee, established pursuant to Marketing Agreement No. 114 and Order No. 59 (7 CFR Part 959) regulating the handling of Irish potatoes grown in the counties of Crook, Deschutes, Jefferson, Klamath, and Lake in the State of Oregon, and Modoc and Siskiyou in the State of California, effective under the Agricultural Marketing Agreement Act of 1937, as amended (48 Stat. 31, as amended; 7 U. S. C. 601 et seq.).

Consideration will be given to any data, views, or arguments pertaining thereto which are filed in triplicate with the Director, Fruit and Vegetable Branch, Production and Marketing Administration, United States Department of Agriculture, Washington 25, D. C., not later than 15 days following publication of this notice in the FEDERAL REGISTER. The proposals are as follows:

§ 959.203 *Budget of expenses and rate of assessment.* (a) The expenses necessary to be incurred by the Oregon-California Potato Committee, established pursuant to Marketing Agreement No. 114 and Order No. 59, to enable such committee to perform its functions pursuant to provisions of the aforesaid marketing agreement and order and regulations duly issued thereunder, during the fiscal year ending June 30, 1951, will amount to $13,500.00.

(b) The rate of assessment to be paid by each handler who first ships potatoes shall be one-fourth of one cent per hun-

dredweight of potatoes handled by him as the first handler thereof during said fiscal year.

(c) Terms used in this section shall have the same meaning as when used in Marketing Agreement No. 114 and Order No. 59, as amended (7 U. S. C. 601 et seq.).

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. and Sup. 608c)

Done at Washington, D. C., this 24th day of November 1950.

[SEAL] M. W. BAKER,
Acting Director,
Fruit and Vegetable Branch.

[F. R. Doc. 50-10815; Filed, Nov. 28, 1950; 8:54 a. m.]

DEPARTMENT OF LABOR

Wage and Hour Division

[29 CFR, Part 689]

MINIMUM WAGE RATE IN SUGAR MANUFACTURING INDUSTRY IN PUERTO RICO

NOTICE OF PROPOSED DECISION

On March 17, 1950, pursuant to section 5 (a) of the Fair Labor Standards Act of 1938, as amended, hereinafter called the act, the Administrator of the Wage and Hour Division, United States Department of Labor, by Administrative Order No. 395, appointed Special Industry Committee No. 7 for Puerto Rico (hereinafter called the "Committee") and directed the Committee to investigate conditions in a number of industries in Puerto Rico specified and defined in the order, including the sugar manufacturing industry in Puerto Rico (hereinafter called the "Industry"), and to recommend minimum wage rates for employees engaged in commerce or in the production of goods for commerce in such industries.

For purposes of investigating conditions in and recommending a minimum wage rate for the sugar manufacturing industry, the Committee included three disinterested persons representing the public, a like number representing employers, and a like number representing employees in the sugar manufacturing industry, and was composed of residents of Puerto Rico and of the United States outside of Puerto Rico.

After investigating economic and competitive conditions in the sugar manufacturing industry, the Committee filed with the Administrator a report containing its recommendation for a minimum wage rate of 55 cents an hour to be paid to employees in the Industry who are engaged in commerce or in the production of goods for commerce.

Pursuant to notice published in the FEDERAL REGISTER on August 23, 1950, and circulated to all interested persons, a public hearing upon the Committee's recommendations was held before Hearing Examiner Clifford P. Grant, as presiding officer, in Washington, D. C. on September 20, 1950, at which all interested parties were given an opportunity to be heard. After the hearing was closed the record of the hearing was certified to the Administrator by the presiding officer.

Upon reviewing all the evidence in this proceeding and after giving consideration to the provisions of the act, particularly sections 5 and 8 thereof, I, as Acting Administrator, have concluded that the recommendation of the Committee for a minimum wage rate in the sugar manufacturing industry in Puerto Rico, as defined, was made in accordance with law, is supported by the evidence adduced at the hearing and, taking into consideration the same factors as are required to be considered by the Committee, will carry out the purposes of sections 5 and 8 of the act.

I have set forth my decision in a document entitled "Findings and Opinion of the Acting Administrator in the Matter of the Recommendation of Special Industry Committee No. 7 for Puerto Rico, of a Minimum Wage Rate for the Sugar Manufacturing Industry in Puerto Rico," a copy of which may be had upon request addressed to the Wage and Hour Division, United States Department of Labor, Washington 25, D. C.

Accordingly, notice is hereby given, pursuant to the Administrative Procedure Act (60 Stat. 237; 5 U. S. C. 1001) and the rules of practice governing this proceeding (15 F. R. 5636), that I propose to approve the Committee's recommendation of a minimum wage rate for the sugar manufacturing industry in Puerto Rico and to amend the wage order for the sugar manufacturing industry in Puerto Rico to read as set forth below, to carry such recommendation into effect. Interested parties may submit written exceptions within 15 days from publication of this notice in the FEDERAL REGISTER. Exceptions should be addressed to the Administrator of the Wage and Hour Division, United States Department of Labor, Washington 25, D. C. They should be submitted in quadruplicate, and should include supporting reasons for any exceptions.

Sec.
689.1 Approval of recommendation of Industry Committee.
689.2 Wage rate.
689.3 Notices of order.
689.4 Definition of the sugar manufacturing industry in Puerto Rico.

AUTHORITY: §§ 689.1 to 689.4 issued under sec. 8, 63 Stat. 915; 29 U. S. C. 208. Interpret or apply sec. 5, 63 Stat. 911; 29 U. S. C. 205.

§ 689.1 *Approval of recommendation of Industry Committee.* The Committee's recommendation is hereby approved.

§ 689.2 *Wage rate.* Wages at a rate of not less than 55 cents per hour shall be paid under section 6 of the Fair Labor Standards Act of 1938, as amended, by every employer to each of his employees in the sugar manufacturing industry in Puerto Rico who is engaged in commerce or in the production of goods for commerce.

§ 689.3 *Notices of order.* Every employer employing any employees so engaged in commerce or in the production of goods for commerce in the sugar manufacturing industry in Puerto Rico shall post and keep posted in a conspicuous place in each department of his establishment where such employees are working such notices of this order as shall be prescribed, from time to time, by the Wage and Hour Division of the United States Department of Labor and shall give such other notice as the Division may prescribe.

§ 689.4 *Definition of the sugar manufacturing industry in Puerto Rico.* The sugar manufacturing industry in Puerto Rico, to which this part shall apply, is hereby defined as follows:

The production of raw sugar, cane juice, molasses and refined sugar, and incidental by-products and all railroad transportation activities carried on by a producer of any of these products (or by any firm owned or controlled by, or owning and controlling such producer, or by any firm owned or controlled by the parent company of such producer), where the railroad transportation activities are in whole or in part used for the production or shipment of the products of the industry, and any transportation activities by truck or other vehicle performed by a producer of the products of the industry in connection with the production or shipment of such products: *Provided, however,* That the industry shall not include any activity covered by the wage orders for the shipping industry or the railroad, railway express and property motor transport industry in Puerto Rico.

Signed at Washington, D. C., this 24th day of November 1950.

F. GRANVILLE GRIMES, JR.,
Acting Administrator,
Wage and Hour Division.

[F. R. Doc. 50-10797; Filed, Nov. 28, 1950; 8:51 a. m.]

NOTICES

DEPARTMENT OF LABOR

Wage and Hour Division

LEARNER EMPLOYMENT CERTIFICATES

ISSUANCE TO VARIOUS INDUSTRIES

Notice is hereby given that pursuant to section 14 of the Fair Labor Standards Act of 1938, as amended (52 Stat. 1068, as amended; 29 U. S. C. and Sup. 214), and Part 522 issued thereunder (29 CFR Part 522), special certificates authorizing the employment of learners at hourly wage rates lower than the minimum wage rate applicable under section 6 of the act have been issued to the firms listed below. The employment of learners under these certificates is limited to the terms and conditions therein contained and is subject to the provisions of Part 522. The effective and expiration dates, occupations, wage rates, number or proportion of learners, and learning period for certificates is-

sued under the general learner regulations (§§ 522.1 to 522.14) are as indicated below; conditions provided in certificates issued under special industry regulations are as established in those regulations.

Single Pants, Shirts and Allied Garments, Women's Apparel, Sportswear and Other Odd Outerwear, Rainwear, Robes and Leather and Sheep-Lined Garments Divisions of the Apparel Industry, Learner Regulations (29 CFR 522.160 to 522.166; as amended September 25, 1950 (15 F. R. 5701; 6326)).

Appomattox Garment Co., Inc., Appomattox, Va., effective 11-17-50 to 11-16-51; 10 percent normal labor turnover (infants' and children's outerwear).

Associated Garment Co., Pana, Ill., effective 11-20-50 to 11-19-51; 10 percent normal labor turnover (dresses).

Associated Garment Co., Pana, Ill., effective 11-20-50 to 5-19-51; 10 learners for expansion purposes only (dresses).

Bannercraft Pants Co., Inc., 1234 Carpenter Street, Philadelphia 47, Pa., effective 11-17-50 to 11-16-51; 10 percent normal labor turnover (trousers).

Bessemer Manufacturing Co., 1601 Carolina Avenue, Bessemer, Ala., effective 11-20-50 to 11-19-51; 10 percent normal labor turnover (men's and boys' pajamas).

Blue Bell, Inc., Elkton, Va., effective 11-15-50 to 5-14-51; 15 learners for expansion purposes (dungarees).

Burlington Manufacturing Co., Chanute, Kansas, effective 11-15-50 to 11-14-51; 10 percent normal labor turnover (overalls and overalls jackets).

Cluett, Peabody & Co., Inc., Virginia, Minn., effective 11-17-50 to 11-16-51; 10 percent normal labor turnover (white shirts).

Cluett, Peabody & Co., Inc., 2022 Murphy Avenue, SW., Atlanta, Ga., effective 11-15-50 to 11-14-51; 10 percent normal labor turnover (white shirts).

Cluett, Peabody & Co., Inc., Gilbert, Minn., effective 11-17-50 to 11-16-51; 10 percent normal labor turnover (white shirts).

Consumers Textile & Manufacturing Corp., Jacksonville, Ala., effective 11-14-50 to 5-13-51; 20 learners for expansion purposes (washable service apparel).

Dale Garment Co., 506 Main Street and Loft Building, Lynchburg, Va., effective 11-17-50 to 11-16-51; 10 percent normal labor turnover (children's cotton and corduroy overalls and boxer pants).

Davenshire, Inc., 825 West Fourth Street, Davenport, Iowa, effective 11-16-50 to 11-15-51; 10 percent normal labor turnover (women's slacks).

W. H. Dean Co., Montvale, N. J., effective 11-15-50 to 11-14-51; 10 percent normal labor turnover (rainwear).

Duryea Sportswear Inc., 218-220 Main Street, Duryea, Pa., effective 11-17-50 to 11-16-51; 10 percent normal labor turnover (ladies' street dresses).

Eloesser-Heynemann Co., 1161 Mission Street, San Francisco, Calif., effective 11-18-50 to 11-17-51; 10 percent normal labor turnover (men's work clothing).

Emil of California, 224 South Hill Street, Los Angeles 14, Calif., effective 11-18-50 to 11-17-51; 10 percent normal labor turnover (skirts and dresses).

Fletcher Brothers Co., Inc., 436 South Liberty Street, Winston-Salem, N. C., effective 11-17-50 to 11-16-51; 10 percent normal labor turnover (overalls).

Florence Manufacturing Co., Florence, S. C., effective 11-17-50 to 11-16-51; 10 percent normal labor turnover (dresses).

Albert Given Manufacturing Co., 1301 West Chicago Avenue, East Chicago, Ind., effective 11-17-50 to 11-16-51; 10 percent normal labor turnover (trousers).

Hebron Pants Factory, Hebron, Md., effective 11-16-50 to 11-15-51; 10 percent normal labor turnover (cotton work pants).

Jackson Garment Co., Jackson, Tenn., effective 11-17-50 to 11-16-51; 10 percent normal labor turnover (dresses).

Jayson York Inc., East Street and Pennsylvania Railroad, York, Pa., effective 11-18-50 to 11-17-51; 10 percent normal labor turnover (men's shirts).

Kahn Manufacturing Co., Inc., St. Louis and Royal Streets, Mobile, Ala., effective 11-16-50 to 5-15-51; 55 learners for expansion purposes (pants, overalls, suits).

Kaley Shirts, Biscoe, N. C., effective 11-20-50 to 11-19-51; 10 percent normal labor turnover (uniform and dress shirts).

Key Work Clothes of Missouri, Nevada, Mo., effective 11-20-50 to 11-19-51; 10 percent normal labor turnover (cotton work pants).

L. & H. Shirt Co., Cochran, Ga., effective 11-18-50 to 11-17-51; 10 percent normal labor turnover (boys' dress and sport shirts).

The H. D. Lee Co., Inc., 600 East State Street, Trenton, N. J., effective 11-18-50 to 11-17-51; 10 percent normal labor turnover (men's work clothing).

The H. D. Lee Co., Inc., 200 Third North, Minneapolis, Minn., effective 11-18-50 to 11-17-51; 10 percent normal labor turnover (men's work clothing).

The H. D. Lee Co., Inc., 405 East Madison, South Bend, Ind., effective 11-18-50 to 11-17-51; 10 percent normal labor turnover (men's work clothing).

The H. D. Lee Co., Inc., 117 West Twentieth Street, Kansas City, Mo., effective 11-17-50 to 11-16-51; 10 percent normal labor turnover (overalls, coveralls, etc.).

Lingerie, Inc., Lenoir Road, Morganton, N. C., effective 11-16-50 to 11-15-51; 10 percent normal labor turnover (lingerie).

Little Gem's, Inc., 844 West Adams Street, Chicago, Ill., effective 11-17-50 to 11-16-51; 10 percent normal labor turnover (little girls' party dresses).

Lustberg, Nast & Co., Inc., Lebanon, Pa., effective 11-17-50 to 11-16-51; 10 percent normal labor turnover (sport coats and jackets).

The Mack Shirt Corp., 412 East Sixth Street, Cincinnati, Ohio, effective 11-16-50 to 11-15-51; 10 percent normal labor turnover (shirts).

Maiden Form Brassiere Co., Inc., Main Street and Monticello Avenue, Clarksburg, W. Va., effective 11-15-50 to 11-14-51; 10 percent normal labor turnover (brassieres).

Maiden Form Brassiere Co., Inc., 2311 Adams Avenue, Huntington, W. Va., effective 11-15-50 to 11-14-51; 10 percent normal labor turnover (brassieres).

Maiden Form Brassiere Co., Inc., 2311 Adams Avenue, Huntington, W. Va., effective 11-15-50 to 5-14-51; 15 learners for expansion purposes (brassieres).

Maiden Form Brassiere Co., Inc., Straley Avenue and Second Street, Princeton, W. Va., effective 11-15-50 to 11-14-51; 10 percent normal labor turnover (brassieres).

Maiden Form Brassiere Co., Inc., Straley Avenue and Second Street, Princeton, W. Va., effective 11-15-50 to 5-14-51; 10 learners for expansion purposes (brassieres).

Marine Garment Co., Sandoval, Ill., effective 11-17-50 to 11-16-51; 10 percent normal labor turnover (ladies' slips and flannel sleeping garments).

Middlesex Co., Inc., 284 State Street, Perth Amboy, N. J., effective 11-18-50 to 11-17-51; 10 percent normal labor turnover (men's and boys' shirts).

Muscatine Manufacturing Corp., 416 East Third Street, Muscatine, Iowa, effective 11-20-50 to 11-19-51; 10 percent normal labor turnover (overalls and dungarees).

Oberman & Co., Fayetteville, Ark., effective 11-16-50 to 11-15-51; 10 percent normal labor turnover (men's and boys' single pants and shirts).

Oberman & Co., Chamois, Mo., effective 11-16-50 to 11-15-51; 10 percent normal labor turnover (men's and boys' single pants).

Oberman & Co., Morrilton, Ark., effective 11-16-50 to 11-15-51; 10 percent normal labor turnover (men's and boys' single pants).

Oberman & Co., Harrison, Ark., effective 11-16-50 to 11-15-51; 10 percent normal labor turnover (men's and boys' single pants).

Osgood & Sons, Inc., 349 East North Street, Decatur, Ill., effective 11-15-50 to 11-14-51; 10 percent normal labor turnover (cotton dresses and housecoats).

Osgood & Sons, Inc., 349 East North Street, Decatur, Ill., effective 11-15-50 to 5-14-51; 10 learners for expansion purposes (cotton dresses and housecoats).

Publix Shirt Corp., Fredericksburg, Pa., effective 11-20-50 to 11-19-51; 10 percent normal labor turnover (coats and jackets).

Publix Shirt Corp., Gallitzin, Pa., effective 11-18-50 to 11-17-51; 10 percent normal labor turnover (cotton dress shirts).

Publix Shirt Corp., Hazleton, Pa., effective 11-18-50 to 11-17-51; 10 percent normal labor turnover (shirts).

Publix Shirt Corp., Myerstown, Pa., effective 11-20-50 to 11-19-51; 10 percent normal labor turnover (cotton dress shirts).

Publix Shirt Corp., Donaldson, Pa., effective 11-16-50 to 11-15-51; 10 percent normal labor turnover (shirts).

Publix Shirt Corp., Huntingdon, Tenn., effective 11-16-50 to 11-15-51; 10 percent normal labor turnover (shirts).

Pramco, Inc., Walnut and Second Street, Puxsutawney, Pa., effective 11-17-50 to 11-16-51; 10 percent normal labor turnover (ladies blouses).

R. Q. L. Shirt Co., 526 East Broad Street, Lansdale, Pa., effective 11-16-50 to 11-15-51; 10 percent normal labor turnover (shirts).

Reliance Manufacturing Co., "Defiance" Factory, Bedford, Ind., effective 11-16-50 to 11-15-51; 10 percent normal labor turnover (shirts and pants).

Reliance Manufacturing Co., "Central" Factory, Columbus, Ind., effective 11-17-50 to 11-16-51; 10 percent normal labor turnover (men's and boys' jackets).

Reliance Manufacturing Co., "Iowan" Factory, Anamosa, Iowa, effective 11-17-50 to 11-16-51; 10 percent normal labor turnover (men's cotton work pants).

Reliance Manufacturing Co., "Sunflower" Factory, Cherryvale, Kansas, effective 11-17-50 to 11-16-51; 10 percent normal labor turnover (boys' slacks, men's work pants).

Reliance Manufacturing Co., "Capitol" Factory, Mitchell, Ind., effective 11-17-50 to 11-16-51; 10 percent normal labor turnover (children's playsuits; men's and boys' dungarees, boys' vests).

Reliance Manufacturing Co., "Keystone" Factory, Tyrone, Pa., effective 11-17-50 to 11-16-51; 10 percent normal labor turnover (men's and boys' shirts).

Reliance Manufacturing Co., Mountaineer Factory, 622 Tenth Street, Huntington, W. Va., effective 11-15-50 to 11-14-51; 10 percent normal labor turnover (women's dresses and sportswear).

Reliance Manufacturing Co., Blue Ridge Factory, 629 Tenth Street, Huntington, W. Va., effective 11-15-50 to 11-14-51; 10 percent normal labor turnover (women's cotton dresses).

Reliance Manufacturing Co., Magnolia Factory, Laurel, Miss., effective 11-17-50 to 11-16-51; 10 percent normal labor turnover (men's sport shirts).

Reliance Manufacturing Co., Magnolia Factory, Laurel, Miss., effective 11-17-50 to 5-16-51; 75 learners for expansion purposes (men's sport shirts).

Renee of Hollywood, 743 Santee Street, Los Angeles, Calif., effective 11-18-50 to 11-17-51; 10 percent normal labor turnover (corsets and allied garments).

Salant & Salant Inc., South First Street, Union City, Tenn., effective 11-14-50 to 11-

13-51; 10 percent normal labor turnover (cotton work shirts).

Shane Manufacturing Co., Inc., 2015 West Maryland Street, Evansville 7, Ind., effective 11-18-50 to 11-15-51; 10 percent normal labor turnover (denim overalls).

The Shirtcraft Co., Inc., Lurgan Avenue, Shippensburg, Pa., effective 11-16-50 to 11-15-51; 10 percent normal labor turnover (shirts).

Somerset Shirt & Pajama Co., 133 East Fairview Street, Somerset, Pa., effective 11-16-50 to 11-15-51; 10 percent normal labor turnover (men's and boys' nightwear).

Southland Manufacturing Co., Inc., Branch Factory No. 2, Benson, N. C., effective 11-16-50 to 11-15-51; 10 percent normal labor turnover (men's and boys' shirts and sportswear).

Steinfeld Manufacturing Co., Lyon Block Building, Albany, N. Y., effective 11-21-50 to 11-20-51; 10 percent normal labor turnover (ladies' blouses).

Style Specialists, Inc., Pottsville, Pa., effective 11-16-50 to 11-15-51; 10 percent normal labor turnover (robes).

Tyson Shirt Co., 620 Corson Street, Norristown, Pa., effective 11-16-50 to 11-15-51; 10 percent normal labor turnover (shirts).

The Vanta Corp., Montezuma, Ga., effective 11-20-50 to 11-19-51; 10 percent normal labor turnover (sleepers, diapers, pants and shirts).

The Vanta Corp., Montezuma, Ga., effective 11-20-50 to 5-19-51; 10 learners for expansion purposes (sleepers, diapers, pants and shirts).

Vidalia Garment Co., Vidalia, Ga., effective 11-18-50 to 5-17-51; 60 learners for expansion purposes (sport shirts) (supplemental certificate).

Woods Manufacturing Co., 202 Garrison Avenue, Fort Smith, Ark., effective 11-14-50 to 11-13-51; 10 percent normal labor turnover (trousers).

Hosiery Learner Regulations (29 CFR 522.40 to 522.51; as revised January 25, 1950 (15 F. R. 283).)

Charleston Hosiery Processing Co., Cleveland, Tenn., effective 11-20-50 to 11-19-51; 5 percent normal labor turnover.

Fayetteville Knitting Mills, Fayetteville, N. C., effective 11-17-50 to 7-16-51; seven learners for expansion purposes.

Lorimer Hosiery Mills, Inc., Burlington, N. C., effective 11-20-50 to 7-19-51; 24 learners for expansion purposes.

Thomasville Hosiery Mills, Carmalt Street, Thomasville, N. C., effective 11-17-50 to 11-16-51; 5 percent normal labor turnover.

C. A. Wanner, Inc., Fleetwood, Pa., effective 11-20-50 to 11-19-51; five learners.

Independent Telephone Learner Regulations (29 CFR 522.82 to 522.93; as amended January 25, 1950 (15 F. R. 398).)

Atchison County Telephone Co., Tarkio, Mo., effective 11-17-50 to 11-16-51.

Electra Telephone Co., Electra, Tex., effective 11-17-50 to 11-16-51.

Freeport Telegraph & Telephone Co., Freeport, Pa., effective 11-17-50 to 11-16-51.

Iowa-Illinois Telephone Co., New London, Iowa, effective 11-17-50 to 11-16-51.

La Porte City Farmers Mutual Telephone Co., La Porte City, Iowa, effective 11-17-50 to 11-16-51.

Cigar Learner Regulations (29 CFR 522.201 to 522.211; as amended January 25, 1950 (15 F. R. 400)).

Jose Escalante & Co., 1018 Ponyfarre Street, New Orleans, La., effective 11-17-50 to 11-16-51; 10 percent learners, cigar machine operators, 320 hours, 60 cents per hour; machine stripping, 160 hours, 60 cents per hour; hand stripping, 160 hours, 60 cents per hour; packing, cigars retailing for more than 6 cents, 320 hours, 60 cents per hour; packing, cigars retailing for 6 cents or less, 160 hours, 60 cents per hour.

I. Lewis Cigar Manufacturing Co., Second and Washington Streets, Steelton, Pa., 10 percent learners, effective 11-17-50 to 11-16-51; cigar machine operating, 320 hours, 60 cents per hour; machine stripping, 160 hours, 60 cents per hour; machine packing, cigars retailing at 6 cents and below, 160 hours, 60 cents per hour; machine packing, cigars retailing at more than 6 cents, 320 hours, 60 cents per hour.

Pennstate Cigar Corp., Philadelphia 34, Pa., 10 percent learners, effective 11-20-50 to 11-19-51; machine stripping, 160 hours, 60 cents per hour; machine operating, 320 hours, 60 cents per hour; machine packing, cigars retailing 6 cents or less, 160 hours, 60 cents per hour.

John H. Swisher & Sons, Inc., Waycross, Ga., 10 percent learners, effective 11-17-50 to 11-16-51; machine operator, 320 hours, 60 cents per hour; machine stripping, 160 hours, 60 cents per hour; machine packing, cigars retailing over 6 cents, 320 hours, 60 cents per hour; machine packing, cigars retailing 6 cents or less, 160 hours, 60 cents per hour.

Glove Learner Regulations (29 CFR 522.220 to 522.231; as amended October 26, 1950 (15 F. R. 6888)).

Aris Fabric Corp., Fonda, N. Y., effective 11-17-50 to 5-16-51; 10 percent normal labor turnover.

Buckeye Glove Co., 1511 Hoag Street, Toledo, Ohio, effective 11-13-50 to 5-13-51; 10 learners.

The Glove Corp., Alexandria, Ind., effective 11-16-50 to 5-15-51; five learners for expansion purposes (supplemental certificate).

Saranac Glove Co., Littleton, N. H., effective 11-17-50 to 5-16-51; five learners for expansion purposes.

Knitted Wear Learner Regulations (29 CFR 522.68 to 522.79; as amended January 25, 1950 (15 F. R. 398).)

Cluett, Peabody & Co., Inc., Eveloth, Minn., effective 11-13-50 to 11-12-51; 5 percent normal labor turnover.

Indian River Fabrics, Inc., Cobb County, Marietta, Ga., effective 11-16-50 to 5-15-51; 46 learners.

Lehigh Underwear Co., Coopersburg, Pa., effective 11-20-50 to 11-19-51; four learners.

McCormick Underwear Co., McCormick, S. C., effective 11-20-50 to 11-19-51; four learners.

Reliance Manufacturing Co., Michigan City, Ind., effective 11-15-50 to 11-14-51; 5 percent normal labor turnover.

Saluda Corp., Saluda, S. C., effective 11-17-50 to 11-16-51; 5 percent normal labor turnover.

Regulations Applicable to the Employment of Learners (29 CFR 522.1 to 522.14).

Boston Statuary Products Corp., Cambridge, Mass., effective 11-15-50 to 5-14-51; two learners; hand and spray painters, 320 hours, for the first 160 hours, 60 cents an hour and for the remaining 160 hours 65 cents an hour (religious statues).

Fallen's Electric, Ennis, Tex., effective 11-17-50 to 5-16-51; five learners; assemblers, 480 hours; rewinders, 480 hours; machinist, 480 hours, 60 cents for the first 240 hours and 65 cents for the next 240 hours (rebuilding of automobile generators and armatures).

Hardie-Arnita Gifts, Beverly Hills, Calif., effective 11-17-50 to 5-16-51; two learners; pottery makers, excluding helpers, floor hands, and clean-up laborers, 160 hours, 60 cents (ceramic giftware).

H. Harwood & Sons, Inc., Natick, Mass., effective 11-20-50 to 5-19-51; five learners; hand sewers, 480 hours, 60 cents per hour for the first 320 hours and 65 cents per hour for the remaining 160 hours (base balls, soft balls).

Hirschl & Bendheim, Washington, Mo., effective 11-20-50 to 5-19-51; three learners; turning and sanding, 160 hours, 65 cents (corn cob pipes).

J & C Bedspread Co., Inc., Ellijay, Ga., effective 11-17-50 to 5-16-51, 10 percent normal labor turnover; chenille machine operators, 320 hours, 55 cents for the first 160 hours and not less than 65 cents for the remaining 160 hours (chenille bedspreads and rugs).

J. L. Paper Box Co., Inc., 67 Mechanic Street, Attleboro, Mass., effective 11-17-50 to 5-16-51; five learners; hand covering and hand lining of fancy jewelry boxes, 240 hours, 60 cents (set-up paper boxes).

Harris Langenberg Hat Co., Mascoutah, Ill., effective 11-20-50 to 11-19-51; 10 learners; machine operating, 240 hours, 65 cents (straw work hats and work caps).

Harris Langenberg Hat Co., Berger, Mo., effective 11-16-50 to 11-15-51; 10 percent normal labor turnover; machine operating, 240 hours, 65 cents (work caps).

The Pfaltzgraff Pottery Co., York, Pa., effective 11-17-50 to 5-16-51; 10 percent normal labor turnover; pottery maker, 320 hours, 60 cents (pottery).

Philadelphia Vest Shop, 1421 Wallace Street, Philadelphia, Pa., effective 11-17-50 to 11-16-51; 7 percent normal labor turnover; machine operating (except cutting), 480 hours; pressers, 480 hours; head sewers, 480 hours, 60 cents for the first 240 hours and not less than 65 cents for the remaining 240 hours (men's vests).

Pickard Inc., Corona Avenue, Antioch, Ill., effective 11-15-50 to 5-14-51; four learners; inspectors, finishers and assemblers, decorators, 320 hours, 65 cents (chinaware).

The Henry Prasse Co., South Euclid, Ohio, effective 11-20-50 to 5-19-51; four learners; machine operators, 160 hours, 65 cents (fruit and vegetable baskets).

The Siebler Tailoring Co., 424 East Fourth Street, Cincinnati 2, Ohio, effective 11-15-50 to 11-14-51; 7 percent normal labor turnover; machine operators (except cutting), pressers, hand sewers, 240 hours, 65 cents (men's suits and topcoats; ladies' suits and skirts; military uniform).

Irving A. Tannenbaum, Philadelphia 34, Pa., effective 11-17-50 to 5-16-51; five learners; machine operators, fixers, tenders and jobs immediately incidental thereto and menders, 240 hours, 60 cents (nylon yarn).

Westinghouse Electric Corp., Bowling Green, Ky., effective 11-16-50 to 5-15-51; 300 learners; basic hand and machine plant production operations in the making of lamp bulbs, excluding custodial maintenance, packing, carding, stock or shipping employees or in any other similar non-production jobs, 480 hours, 60 cents for the first 160 hours, 65 cents for the second 160 hours and not less than 70 cents for the remaining 160 hours (photofinish lamps).

The following special learner certificates were issued in the shoe industry. These certificates authorize the employment of learners in any occupations except custodial, maintenance, supervisory, and office and clerical occupations. The learning period is 480 hours at not less than 65 cents an hour for the first 240 hours and not less than 70 cents an hour for the next 240 hours, except as otherwise indicated in parenthesis.

Bachman Shoes, Inc., Wood and Wilson Streets, Middletown, Pa., effective 11-20-50 to 10-15-51; 10 learners.

Milton Shoe Manufacturing Co., Inc., 700 Hepburn Street, Milton, Pa., effective

11-15-50 to 10-15-51; 10 percent normal labor turnover, except that a maximum of 35 learners may be employed from November 15, 1950, to May 14, 1951.

Norwich Shoe Co., Inc., 6-10 Pair Street, Norwich, N. Y., effective 11-20-50 to 10-15-51; 10 percent normal labor turnover.

Each certificate has been issued upon the employer's representation that employment of learners at subminimum rates is necessary in order to prevent curtailment of opportunities for employment, and that experienced workers for the learner occupations are not available. The certificates may be cancelled in the manner provided in the regulations and as indicated in the certificates. Any person aggrieved by the issuance of any of these certificates may seek a review or reconsideration thereof within fifteen days after publication of this notice in the FEDERAL REGISTER pursuant to the provisions of Part 522.

Signed at Washington, D. C., this 22d day of November 1950.

ISABEL FERGUSON,
Authorized Representative of the Administrator.

[F. R. Doc. 50-10766; Filed, Nov. 28, 1950; 8:45 a. m.]

POST OFFICE DEPARTMENT

KOREA

RESUMPTION OF AIR MAIL SERVICE

Effective at once, air mail service, limited to ordinary (unregistered) letters, post cards, and air-letter sheets, is resumed to the Republic of Korea.

Air parcel service and all service by surface means (both regular mails and parcel post) remain suspended.

The notice "Suspension of mail service to Korea" (15 F. R. 4522), is modified accordingly.

(R. S. 161, 396, 398, secs. 304, 309, 42 Stat. 24, 25, 48 Stat. 943; 5 U. S. C. 22, 369, 372)

[SEAL] J. M. DONALDSON,
Postmaster General.

[F. R. Doc. 50-10769; Filed, Nov. 28, 1950; 8:46 a. m.]

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

ARIZONA

SMALL TRACT CLASSIFICATION ORDER NO. 28, AMENDED

NOVEMBER 21, 1950.

1. Pursuant to the authority delegated to me by the Director, Bureau of Land Management, by Order No. 319, dated July 19, 1948 (43 CFR 50.451 (b) (3), 13 F. R. 4278), I hereby amend Arizona Small Tract Classification Order No. 23 as hereinafter indicated:

2. Paragraph 8 (a) of the original order, approved November 8, 1950, is hereby amended as follows: The two tracts of land situated in the SE¼SW¼-NE¼ of Section 35 and covered by small tract applications Phoenix serial Nos. 084116 and 084282, and the two tracts situated in the NE¼NW¼SE¼ of Section 35, covered by small tract applications Phoenix serial Nos. 084115 and 084277, shall be amended so that the tracts will extend longitudinally east and west rather than north and south, as presently filed. The applicants concerned will be granted a reasonable period of time, in no event less than 30 days from date of their receipt of notice to amend their applications in accordance with this order, failing in which their applications will be rejected.

3. Paragraph 10 of said order is amended as follows: Leases issued hereunder for home and cabin site purposes will contain an option to purchase clause, at the appraised value of $50 per 5-acre tract or fraction thereof, application for which may be filed at or after the expiration of one year from the date of issuance of the lease: *Provided*, That improvements appropriate to the purpose for which the lease is issued and which meet with the approval of the Regional Administrator shall have been constructed upon the land prior to filing of the application to purchase.

4. This order shall become effective upon the date it is approved. All other terms and provisions of the original Order No. 23, approved November 8, 1950, shall remain in full force and effect, and shall be applicable in all respects.

E. R. SMITH,
Regional Administrator.

[F. R. Doc. 50-10763; Filed, Nov. 28, 1950; 8:45 a. m.]

Geological Survey

COLUMBIA RIVER, WASHINGTON

POWER SITE CANCELLATION NO. 106 AFFECTING POWER SITE CLASSIFICATION NO. 349

Correction

In F. R. Document 50-10462 appearing in the issue for Tuesday, November 21, 1950, on page 7956, the final headnotes should appear as set forth above.

Office of the Secretary

[Order 2509, Amdt. 11]

UNDER SECRETARY AND ASSISTANT SECRETARIES

DELEGATIONS OF AUTHORITY WITH RESPECT TO CONTRACTS

NOVEMBER 22, 1950.

Section 1 of Order No. 2509, as amended, is further amended by adding at the end thereof a new paragraph reading as follows:

SEC. 1. *Under Secretary and Assistant Secretaries.* * * *

(e) Notwithstanding the limitations contained in subdivision (2) of paragraph (a) and in subdivision (3) of paragraph (b) of this section, the Under Secretary or an Assistant Secretary (as to matters within the scope of his assignment) may authorize officers or employees of the Department to sign on behalf of the United States contracts the provisions of which have been approved by the Under Secretary or the Assistant Secretary.

(Sec. 2, Reorg. Plan No. 3 of 1950, 15 F. R. 3174)

OSCAR L. CHAPMAN,
Secretary of the Interior.

[F. R. Doc. 50-10764; Filed, Nov. 28, 1950; 8:45 a. m.]

CIVIL AERONAUTICS BOARD

[Docket No. SA-223]*

ACCIDENT OCCURRING NEAR BUTTE, MONT.

NOTICE OF HEARING

In the matter of investigation of accident involving aircraft of United States Registry NC-93040, which occurred near Butte, Montana, on November 7, 1950.

Notice is hereby given, pursuant to the Civil Aeronautics Act of 1938, as amended, particularly section 702 of said act, in the above-entitled proceeding that hearing is hereby assigned to be held on Thursday, November 30, 1950, at 9:00 a. m., local time, in Parlor E, Olympic Hotel, Fourth Avenue and Seneca Street, Seattle, Washington.

Dated at Washington, D. C., November 20, 1950.

[SEAL] ROBERT W. CHRISP,
Presiding Officer.

[F. R. Doc. 50-10790; Filed, Nov. 28, 1950; 8:48 a. m.]

FEDERAL POWER COMMISSION

[Docket No. G-1535]

CENTRAL WEST UTILITY CO.

NOTICE OF APPLICATION

NOVEMBER 21, 1950.

Take notice that on November 13, 1950, The Central West Utility Company (Applicant), a Kansas corporation with its principal place of business in Kansas City, Missouri, filed an application pursuant to section 7 of the Natural Gas Act for (1) an order under section 7 (a) of the act directing Cities Service Gas Company to establish a physical connection of its natural gas transportation facilities with Applicant's proposed pipeline as hereinafter described, and to sell natural gas to Applicant; and (2) that the Commission issue a certificate of public convenience and necessity authorizing the construction and operation by the Applicant of the aforementioned proposed pipeline facilities; or, in the alternative, that the Commission dismiss that phase of The Central West Utility Company's application for such certificate for want of jurisdiction.

Applicant proposes to construct and operate a transmission pipeline 12 inches in diameter, extending approximately 30 miles from a point on its distribution system in Clay County, Missouri, to a point of connection with the transmission pipeline facilities of the Cities Serv-

ice Gas Company near Kansas City, Missouri.

Applicant is presently engaged in the distribution of gas in Clay and Clinton Counties, Missouri. The application recites that the Company obtains its supply of natural gas from Panhandle Eastern Pipe Line Company but that such supply has been barely adequate in recent years and is insufficient to meet anticipated normal increases in demand for natural gas service in the territory which it serves.

Applicant asserts that due to its inability to obtain additional supplies of natural gas from Panhandle Eastern Pipe Line Company, it seeks to obtain additional gas from the Cities Service Gas Company in order to meet its expanding market requirements. Its present peak day demand in Clay County is approximately 7 million cubic feet per day, which it estimates will increase within a period of five years to approximately 15 million cubic feet per day on a firm basis, exclusive of potential increased market demands on an interruptible basis for industrial use.

The estimated over-all capital cost of the proposed facilities is estimated to be approximately $1,000,000 and the financing of the said project will be by the issuance and sale of bonds in an amount equal to approximately 70 percent of the estimated cost and the balance from the company's working capital funds.

The application is on file with the Commission for public inspection. Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) before the 11th day of December 1950.

[SEAL] J. H. GUTRIDE,
Acting Secretary.

[F. R. Doc. 50-10767; Filed, Nov. 28, 1950; 8:45 a. m.]

FEDERAL SECURITY AGENCY

SURPLUS PROPERTY DISPOSAL

NOTE: Federal Security Agency Order 17 (F. R. Doc. 49-7722, 14 F. R. 5852) has been superseded by Federal Security Agency Order 16-2, Amdt. 1 (F. R. Doc. 50-10664, 15 F. R. 8094).

INTERSTATE COMMERCE COMMISSION

[4th Sec. Application 25599]

NEWSPRINT PAPER FROM TEXAS PORTS TO SHREVEPORT, LA.

APPLICATION FOR RELIEF

NOVEMBER 24, 1950.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: H. N. Roberts, Agent, for International-Great Northern Railroad Company and Texas and Pacific Railway Company.

Commodities involved: Newsprint paper, carloads (import traffic).

From: Galveston, Houston and Texas City, Texas.

To: Shreveport, La.

Grounds for relief: Competition with rail carriers. Circuitous routes.

Schedules filed containing proposed rates; Ira D. Dodge's tariff I. C. C. 697, Supp. 134.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission, Division 2.

[SEAL] W. P. BARTEL,
Secretary.

[F. R. Doc. 50-10771; Filed, Nov. 28, 1950; 8:46 a. m.]

[4th Sec. Application 25600]

CAST IRON PIPE BETWEEN SOUTHERN POINTS

APPLICATION FOR RELIEF

NOVEMBER 24, 1950.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: R. E. Boyle, Jr., Agent, for carriers parties to Agent C. A. Spaninger's tariff I. C. C. No. 1191.

Commodities involved: Cast iron pipe and related articles, carloads.

From: Producing points in Alabama, Georgia, North Carolina, Tennessee and Virginia.

To: Points in southern territory including certain points in Virginia and West Virginia.

Grounds for relief: Circuitous routes. Competition with motor carriers.

Schedules filed containing proposed rates; C. A. Spaninger's tariff I. C. C. No. 1191.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission, Division 2.

[SEAL] W. P. BARTEL,
Secretary.

[F. R. Doc. 50-10772; Filed, Nov. 28, 1950; 8:46 a. m.]

[4th Sec. Application 25601]

MAGAZINES FROM DAYTON, OHIO, TO EAST

APPLICATION FOR RELIEF

NOVEMBER 24, 1950.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: L. C. Schuldt, Agent, for carriers parties to his tariff I. C. C. No. 3758, pursuant to fourth-section order No. 9800.

Commodities involved: Magazines or periodicals, also magazine parts or sections thereof and newspaper supplements, carloads.

From: Dayton, Ohio.

To: Baltimore, Md., Boston, Mass., Harrisburg, Pa., New York, N. Y., Philadelphia, Pa., Washington, D. C., and other eastern cities.

Grounds for relief: Circuitous routes.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission, Division 2.

[SEAL] W. P. BARTEL,
Secretary.

[F. R. Doc. 50-10773; Filed, Nov. 28, 1950; 8:46 a. m.]

[4th Sec. Application 25602]

BENZOL FROM MINNEQUA, COLO., TO EAST ST. LOUIS, ILL., AND ST. LOUIS, MO.

APPLICATION FOR RELIEF

NOVEMBER 24, 1950.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul

provision of section 4 (1) of the Interstate Commerce Act.

Filed by: L. E. Kipp, Agent, for carriers parties to his tariff I. C. C. No. A-3646.

Commodities involved: Benzol (benzene), in tank-car loads.

From: Minnequa, Colo.

To: East St. Louis, Ill., and St. Louis, Mo.

Grounds for relief: Circuitous routes. Market competition. To maintain grouping.

Schedules filed containing proposed rates: L. E. Kipp's tariff I. C. C. No. A-3646, Supp. 15.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission, Division 2.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 50-10774; Filed, Nov. 28, 1950; 8:46 a. m.]

[4th Sec. Application 25603]

AGRICULTURAL IMPLEMENTS FROM CENTRAL TERRITORY TO NORTH ATLANTIC PORTS

APPLICATION FOR RELIEF

NOVEMBER 24, 1950.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: L. C. Schuldt, Agent, for carriers parties to his tariff I. C. C. No. 3758.

Commodities involved: Agricultural implements, carloads.

From: Central territory.

To: North Atlantic ports.

Grounds for relief: Competition with rail carriers. To maintain port rate relations.

Schedules filed containing proposed rates: L. C. Schuldt's tariff I. C. C. No. 3758, Supp. 348.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission, Division 2.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 50-10775; Filed, Nov. 28, 1950; 8:46 a. m.]

GENERAL SERVICES ADMINISTRATION

DEPARTMENT OF DEFENSE

DELEGATION OF AUTHORITY WITH RESPECT TO BUILDINGS AND SPACE MANAGEMENT FUNCTIONS UNDER REORGANIZATION PLAN NO. 18 OF 1950

1. Pursuant to authority vested in me as Administrator of General Services by Reorganization Plan No. 18 of 1950, I hereby find that the following types of space now or hereafter leased by the Department of Defense are wholly or predominantly utilized for the special purposes of that Department, and are not generally suitable for the use of the other agencies.

Closed storage	*Building space*
Cold and freezer storage.	Armories.
Depot storage.	Hospitals.
Docks and piers.	Hotels.
Garage space held under service contract.	Housing.
Hangars and other airport operating facilities.	Land (including aircraft and warning stations).
Lumber storage.	Laundries.
Mooring space.	Mess halls.
Oil and gasoline storage.	Post exchanges.
Open storage.	Recreation centers.
Ports of embarkation and debarkation.	Schools.
	Service clubs.
	Testing laboratories.
	Troop detachments.

2. Pursuant to authority vested in me by the aforesaid Plan, authority is hereby delegated to the Secretary of Defense to perform all functions with respect to acquiring space in buildings by lease for use of the Department of Defense, the assignment and reassignment of such space, and the operation, maintenance, and custody thereof:

(a) Situated outside the metropolitan area of the urban centers listed in Appendix A, hereof; or

(b) When such space is required for use incidental to and in conjunction with space of any of the types listed in section 1 hereof; or

(c) Leased for no rental, or for a nominal consideration of One Dollar ($1.00) per annum.

3. The authority contained herein may be redelegated in accordance with section 3 (b) of the aforesaid Reorganization Plan.

4. "Metropolitan area" as used herein includes:

(a) Geographical boundary lines of the named urban centers;

(b) Geographical boundary lines of cities, towns, or villages adjoining (a) above; and

(c) Geographical boundary lines of cities, towns, or villages adjoining (b) above.

5. Delegation of Authority of June 30, 1950, 15 F. R. 4385, is hereby superseded in so far as it relates to the leasing of space, the assignment and reassignment thereof, and the operation, maintenance, and custody of such space by the Department of Defense.

6. This finding of special-purpose space and delegation of authority shall be effective December 1, 1950.

Dated: November 22, 1950.

JESS LARSON, *Administrator.*

APPENDIX A

URBAN CENTERS IN WHICH GENERAL SERVICES ADMINISTRATION WILL BE THE SOLE LEASING AGENCY FOR GENERAL-PURPOSE SPACE UNDER REORGANIZATION PLAN NO. 18 OF 1950

GSA field offices	State	City
Region No. 1 (Boston, Mass.).	Connecticut	Bridgeport.
		Hartford.
		New Haven.
	Massachusetts	Boston.
		Lowell.
		Lynn.
		New Bedford.
		Springfield.
		Worcester.
	New Hampshire	Manchester.
	Rhode Island	Providence.
Region No. 2 (New York, N. Y.).	Delaware	Wilmington.
	New Jersey	Camden.
		Newark.
		Trenton.
	New York	Albany.
		Buffalo.
		New York City.
		Rochester.
		Syracuse.
	Pennsylvania	Allentown.
		Harrisburg.
		Philadelphia.
		Pittsburgh.
		Reading.
		Scranton.
		Wilkes-Barre.
Region No. 3 (Washington, D. C.).	District of Columbia.	Washington.
	Maryland	Baltimore.
	Virginia	Alexandria.
		Arlington.
		Lynchburg.
		Norfolk.
		Richmond.
		Roanoke.
	West Virginia	Huntington.
Region No. 4 (Atlanta, Ga.).	Alabama	Birmingham.
		Montgomery.
		Tuscaloosa.
	Florida	Jacksonville.
		Miami.
	Georgia	Atlanta.
		Columbus.
		Macon.
		Savannah.
	Mississippi	Jackson.
	North Carolina	Charlotte.
		Greensboro.
		Raleigh.
		Winston-Salem.
	South Carolina	Columbia.
		Greenville.
		Spartanburg.
	Tennessee	Chattanooga.
		Knoxville.
		Nashville.
		Memphis.
Region No. 5 (Chicago, Ill.).	Illinois	Aurora.
		Chicago.
		Springfield.
		Waukegan.
	Indiana	Indianapolis.
		South Bend.
	Kentucky	Lexington.
		Louisville.
	Michigan	Detroit.
		Grand Rapids.
		Lansing.

URBAN CENTERS IN WHICH GENERAL SERVICES ADMINISTRATION WILL BE THE SOLE LEASING AGENCY FOR GENERAL-PURPOSE SPACE UNDER REORGANIZATION PLAN NO. 18 OF 1950—continued

GSA field offices	State	City
Region No. 5 (Chicago, Ill.)—Con.	Ohio	Akron.
		Canton.
		Cincinnati.
		Cleveland.
		Columbus.
		Dayton.
		Toledo.
		Youngstown.
	Wisconsin	Madison.
		Milwaukee.
Region No. 6 (Kansas City, Mo.)	Iowa	Council Bluffs.
		Des Moines.
		Sioux City.
	Kansas	Kansas City.
		Topeka.
		Wichita.
	Minnesota	Minneapolis.
		St. Paul.
	Missouri	Kansas City.
		St. Joseph.
		St. Louis.
		Springfield.
	Nebraska	Lincoln.
		Omaha.
	North Dakota	Fargo.
Region No. 7 (Dallas, Tex.).	Arkansas	Little Rock.
	Louisiana	New Orleans.
		Shreveport.
	Oklahoma	Oklahoma City.
	Texas	Austin.
		Beaumont.
		Corpus Christi.
		Dallas.
		El Paso.
		Fort Worth.
		Galveston.
		Houston.
		San Antonio.
		Waco.
Region No. 8 (Denver, Colo.).	Colorado	Denver.
	New Mexico	Albuquerque.
	Utah	Salt Lake City.
Region No. 9 (San Francisco, Calif.).	Arizona	Phoenix.
	California	Fresno.
		Los Angeles.
		Oakland.
		Sacramento.
		San Diego.
		San Francisco.
		Santa Barbara.
Region No. 10 (Seattle, Wash.).	Idaho	Boise.
	Montana	Billings.
		Butte.
		Great Falls.
	Oregon	Portland.
	Washington	Everett.
		Seattle.
		Spokane.
		Tacoma.
		Yakima.

[F. R. Doc. 50-10792; Filed, Nov. 28, 1950; 8:49 a. m.]

SECURITIES AND EXCHANGE COMMISSION

[File No. 54-136]

LONG ISLAND LIGHTING CO. ET AL.

ORDER APPROVING POST-EFFECTIVE AMENDMENT TO PLAN

At a regular session of the Securities and Exchange Commission held at its office in the city of Washington, D. C., on the 20th day of November A. D., 1950.

In the matter of Long Island Lighting Company, Queens Borough Gas and Electric Company, Nassau & Suffolk Lighting Company, File No. 54-136.

Long Island Lighting Company ("Long Island"), a registered holding company, and its subsidiaries, Queens Borough Gas and Electric Company ("Queens"), and Nassau & Suffolk Lighting Company ("Nassau"), having jointly filed, pursuant to section 11 (e) of the Public Utility Holding Company Act of 1935 ("act"), an amended plan for the consolidation of Long Island, Queens, and Nassau and for the recapitalization of the resultant consolidated corporation which is to be called Long Island Lighting Company ("Consolidated Corporation"); and

The Commission having entered its findings and opinion (Holding Company Act Release No. 9473) and order (Holding Company Act Release No. 9510) approving such plan, as amended, subject, among other things, to the reservation of jurisdiction over all aspects of the procedure provided in the amended plan with respect to the election of the initial board of directors of the Consolidated Corporation; and

A post-effective amendment to said plan having been filed with respect to the procedure to be followed for inviting nominations for directors of the Consolidated Corporation; and

The Commission having considered such post-effective amendment to the plan and deeming it appropriate in the public interest and in the interest of investors to approve and permit said post-effective amendment to become effective forthwith;

It is hereby ordered, That said post-effective amendment be, and hereby is, approved and permitted to become effective forthwith.

By the Commission.

[SEAL] NELLYE A THORSEN, *Assistant Secretary.*

[F. R. Doc. 50-10779; Filed, Nov. 28, 1950; 8:47 a. m.]

[File No. 68-147]

RANDOLPH PHILLIPS AND EDWARD R. DOWNING

ORDER FOR ORAL ARGUMENT

At a regular session of the Securities and Exchange Commission, held at its office in the city of Washington, D. C., on the 21st day of November A. D. 1950.

In the matter of Randolph Phillips and Edward R. Downing as a committee for common stockholders of the United Corporation, File No. 68-147.

Randolph Phillips and Edward R. Downing, as a Committee for Common Stockholders of The United Corporation, having filed a declaration and amendments thereto under Rule U-62 of the Public Utility Holding Company Act of 1935 setting forth proxy solicitation material proposed to be sent to common stockholders of United, the Commission having ordered a hearing with respect to the declaration as amended to be held at a date to be set in a subsequent order, the Division of Public Utilities of the Commission having filed a motion that the Commission deny effectiveness to the declaration, and both the Division of Public Utilities and the Committee having requested oral argument on the motion,

The Commission being duly advised and having considered the matter,

It is ordered, That oral argument be held before the Commission in the above matter on December 5, 1950, at 10:00 a. m., at which time all interested parties and participants may appear and will be afforded an opportunity to be heard.

By the Commission.

[SEAL] NELLYE A. THORSEN, *Assistant Secretary.*

[F. R. Doc. 50-10780; Filed, Nov. 28, 1950; 8:47 a. m.]

[File Nos. 69-71, 70-2507]

PENN FUEL GAS, INC., AND JOHN H. WARE, 3D

NOTICE OF FILING AND ORDER FOR HEARING, NOTICE OF TERMINATION OF EXEMPTION

At a regular session of the Securities and Exchange Commission, held at its office in the city of Washington, D. C., on the 22d day of November A. D. 1950.

In the matter of Penn Fuel Gas, Inc. and John H. Ware 3d, File No. 70-2507; in the matter of Penn Fuel Gas. Inc., File No. 69-71.

I. Notice is hereby given that a joint application has been filed with this Commission, pursuant to the Public Utility Holding Company Act of 1935, by Penn Fuel Gas, Inc. ("Penn Fuel") and John H. Ware 3d ("Ware"). Applicants have designated sections 9 (a) and 10 of the act as applicable to the proposed transactions.

All interested persons are referred to said joint application which is on file in the office of this Commission for a statement of the transactions therein proposed, which are summarized as follows:

Penn Fuel proposes to acquire from Ware, who is the owner of all of the common stock of Penn Fuel, all of the common stock and certain debt securities of seven gas utility companies, as follows:

Clearfield Gas & Fuel Company ("Clearfield"): $10,500 5 percent demand note; 170 shares of common stock ($50 par value).

Hamburg Gas & Fuel Company ("Hamburg"): 224 shares of common stock ($50 par value).

Huntingdon Gas Company ("Huntingdon"): $18,750 5½ percent demand note; 240 shares of common stock ($50 par value).

Lock Haven Gas Company ("Lock Haven"): $21,500 5 percent demand note; 370 shares of common stock ($50 par value).

Pen Argyl Gas Company ("Pen Argyl"): 519 shares of common stock ($50 par value).

Renovo Gas & Fuel Company ("Renovo"): $9,500 5 percent demand note; 170 shares of common stock ($50 par value).

Shippensburg Gas Company ("Shippensburg"): $14,750 4½ percent demand note; 180 shares of common stock ($50 par value).

The foregoing companies, all of the common stock of which is now owned by Ware, are sometimes hereinafter referred to as the "Associated Companies".

Penn Fuel also proposes to acquire from Ware, in addition to the securities listed above, certain other debt obligations owned by Ware and owed to him by the following companies in amounts as follows:

Penn Fuel (open account)	$10,000
Present subsidiaries of Penn Fuel (open account)	16,000
Associated Companies (open account)	13,500
Total	39,500

Penn Fuel further proposes to assume the following obligations:

Personal indebtedness of Ware to Fulton National Bank, Lancaster, Pennsylvania	$64,500
Personal indebtedness of Ware to Wilmington Trust Company, Wilmington, Delaware	75,000
Total indebtedness of Ware proposed to be assumed by Penn Fuel	139,500
Indebtedness owed by certain subsidiaries of Penn Fuel to certain banks doing business in Pennsylvania, aggregating	24,550
Indebtedness owed by Associated Companies to certain banks operating in Pennsylvania, aggregating	53,800
Total indebtedness being assumed by Penn Fuel	217,850

In connection with the foregoing transactions, Penn Fuel proposes to issue the following new securities:

New Bank Loan Notes, payable quarterly over a 5-year period, with interest at 4 percent prior to maturity and 6 percent thereafter, which Notes will be issued to Fidelity-Philadelphia Trust Company, The Philadelphia National Bank, Fulton National Bank (Lancaster, Pennsylvania), Wilmington Trust Company, First National Bank (Pittstown, Pennsylvania) and Miners National Bank (Pottsville, Pennsylvania), and will represent a refunding by Penn Fuel of the various obligations previously referred to, including those of other persons or companies proposed to be assumed by Penn Fuel	$352,100
New 5-year note, to be expressly subordinated to the 5-year bank notes referred to above, to be sold on a discount basis for the sum of $200,000 cash, to be non-interest-bearing prior to maturity, to be sold to one or more members of Ware's family, and to be in the principal amount (payable at maturity) of	250,000
Total new securities being issued by Penn Fuel	602,100

It is proposed that Penn Fuel's present indenture, dated June 1, 1945, to Fidelity-Philadelphia Trust Company, as Trustee, under which there are outstanding $780,000 principal amount of Collateral Trust Bonds, all presently owned by Massachusetts Mutual Life Insurance Company, will be modified to the extent necessary to permit the consummation of the foregoing proposals, with the consent of the holder of those bonds.

Proceeds from the new Bank Loan Notes, in the amount of $352,100, are being used to discharge the outstanding indebtedness of Ware and of the subsidiaries as summarized above, and to refund present indebtedness of Penn Fuel, as follows:

Indebtedness of Ware to banks (shown above)	$139,500
Indebtedness owed by operating companies to banks, being assumed by Penn Fuel	78,350
Total assumed indebtedness	217,850
Present Indebtedness of Penn Fuel	134,250
Total	352,100

Proceeds from the sale of the new 5-year subordinated note ($200,000), together with other cash of Penn Fuel, are proposed to be applied as follows:

Advances to subsidiaries for payment of certain trade accounts	$44,650
Trade account creditors of Penn Fuel	15,000
Gas-Oil Products, Inc. and Eastern Gas Company (for gas supplies)	34,456
Payment of certain bank loans of Pen Fuel, its subsidiaries and associated companies	106,050
Total	200,156

It appearing to the Commission that it is appropriate in the public interest and in the interest of investors and consumers that a hearing be held with respect to said application, and that such application shall not be granted except pursuant to further order of the Commission:

It is hereby ordered, Pursuant to the applicable provisions of the act and the rules thereunder that a hearing be held on said joint application on December 5, 1950, at 10:00 a. m., e. s. t., in the offices of the Securities and Exchange Commission, 425 Second Street NW., Washington 25, D. C. On such date the hearing room clerk will advise as to the room in which such hearing will be held. Any person desiring to be heard in connection with this proceeding, or proposing to intervene herein, shall file with the Secretary of the Commission, not later than two days prior to the aforesaid hearing date, a written request relative thereto, as provided by Rule XVII of the Commission's rules of practice.

It is further ordered, That William W. Swift, or any other officer or officers of this Commission designated by it for that purpose, shall preside at such hearing. The officer so designated to preside at such hearing is hereby authorized to exercise all powers granted to the Commission under section 18 (c) of the act and to a hearing officer under the Commission's rules of practice.

The Division of Public Utilities of the Commission having advised the Commission that it has made a preliminary examination of the said joint application, and that, on the basis thereof, the following matters and questions are presented for consideration without prejudice, however, to the specification of additional matters and questions upon further examination:

1. Whether the proposed acquisitions will serve the public interest by tending toward the economical and efficient development of an integrated public utility system.

2. Whether the proposed acquisitions are detrimental to the public interest or the interest of investors or consumers or to the proper functioning of the holding company system concerned, particularly in the light of the high resulting debt ratios of Penn Fuel and the proposed intercorporate holdings.

3. Whether the proposed acquisitions will unduly complicate the capital structure of the holding company system concerned, and specifically, whether the issuance of a subordinated note as part of the proposed transactions, and the incurring of long term indebtedness to pay trade accounts, are consistent with the public interest and the interests of investors and consumers, particularly in the absence of an additional investment of equity capital by those controlling the holding company system.

4. Whether the notes proposed to be issued as consideration for the proposed acquisitions are in amounts reasonable in the light of the ability of Penn Fuel to pay such notes out of earnings.

5. Whether the proposed provision in the loan agreement, under which the holders of 60 percent of the Penn Fuel loan notes may require the removal of any officer or director of Penn Fuel, is consistent with the public interest or the interest of investors or consumers or otherwise inconsistent with the requirements of the act.

6. Whether the consideration for the proposed acquisitions, including the various debts proposed to be assumed, is reasonable and bears a fair relationship to the sums invested in and the earning capacity of the utility assets underlying the securities being acquired.

7. Whether the proposed acquisitions are detrimental to the carrying out of the provisions of section 11 of the act.

8. What terms and conditions, if any, with respect to the proposed transactions should be prescribed in the public interest or for the protection of investors or consumers.

9. Generally, whether the proposed transactions comply with the applicable provisions of the act and of the Commission's rules and regulations and orders thereunder.

It is further ordered, That at said hearing evidence shall be adduced with respect to the foregoing matters and questions.

It is further ordered, That the Secretary of this Commission shall serve notice of the aforesaid hearing and of the other matters herein set forth by mailing a copy of this notice of and order for hearing by registered mail to Penn Fuel Gas, Inc., to John H. Ware 3rd, to the Pennsylvania Public Utilities Commission, and to Fidelity-Philadelphia Trust Company (Philadelphia, Pennsylvania), The Philadelphia National Bank (Philadelphia, Pennsylvania), Fulton National Bank (Lancaster, Pennsylvania), Wilmington Trust Company (Wilmington, Delaware), First National Bank (Pittstown, Pennsylvania) and Miners National Bank (Pottsville, Pennsylvania) not later than 10 days prior to the date hereinbefore fixed as the date of hearing; and that notice of said hearing and of the matters set forth in this notice and order is hereby given to Penn Fuel Gas, Inc. and its subsidiaries, to John H. Ware 3rd, and to all other interested persons, such notice to be given by general release of the Commission distributed to the press and mailed to the mailing list for releases issued under the Public Utility Holding Company Act of 1935, and by publication of this notice and order in the FEDERAL REGISTER not later than 10 days prior to the date hereinbefore fixed for said hearing.

II. Penn Fuel having filed herein with this Commission a statement on Form U-3A-2 in which Penn Fuel claims on behalf of itself as a holding company, and

on behalf of its subsidiary companies as such, exemption from the provisions of the Public Utility Holding Company Act of 1935, pursuant to Rule U-2 of the general rules and regulations promulgated under said act; and

It appearing to the Commission, upon the basis of such statement and upon the basis of information in the files of the Commission regarding Penn Fuel and each of its subsidiaries (including File No. 70-2507), that a substantial question exists as to whether the continued exemption of Penn Fuel, and of its subsidiaries as such, from the requirements of the act applicable to holding companies and their subsidiaries, respectively, may be detrimental to the public interest or the interests of investors or consumers;

Notice is hereby given, pursuant to Rules U-6 and U-2 under said act, that such substantial question exists, and that any exemption which may presently be available to Penn Fuel and its subsidiary companies as such, by reason of the provisions of Rule U-2, shall terminate within thirty days of the date of this notice as provided in Rule U-6, without prejudice, however, to the right of Penn Fuel to file any appropriate application for an order granting it (and its subsidiaries as such) an exemption pursuant to the provisions of any applicable section of the act, and without prejudice to any temporary exemption provided for by any provision of the act if such application is filed in good faith.

By the Commission.

[SEAL] NELLYE A. THORSEN, *Assistant Secretary.*

[F. R. Doc. 50-10777; Filed, Nov. 28, 1950; 8:47 a. m.]

[File No. 70-2517]

SOUTHWESTERN GAS AND ELECTRIC CO.

ORDER PERMITTING DECLARATION TO BECOME EFFECTIVE

At a regular session of the Securities and Exchange Commission, held at its office in the city of Washington, D. C., on the 22d day of November A. D. 1950.

Southwestern Gas and Electric Company ("Southwestern"), a public utility subsidiary of Central and South West Corporation, a registered holding company, having filed a declaration, and amendments thereto, pursuant to sections 6 (a) and 7 of the Public Utility Holding Company Act of 1935 ("act") and Rule U-50 promulgated thereunder, with respect to the following transactions:

Southwestern proposes to issue and sell, pursuant to the competitive bidding requirements of Rule U-50, $6,000,000 principal amount of First Mortgage Bonds, Series D, __% due 1980. The bonds will be issued under and secured by the company's Indenture of Mortgage dated February 1, 1940, as modified by Supplemental Indentures dated December 1, 1943, January 1, 1948, and June 1, 1949, and by a proposed Supplemental Indenture to be dated December 1, 1950. The interest rate per annum on the bonds (to be a multiple of ⅛ of 1 percent) and the price, exclusive of accrued interest, to be received by the company (to be not less than 100 percent nor more than 102.75 percent of the principal amount of said bonds) are to be determined by competitive bidding.

The declaration states that the net proceeds, exclusive of accrued interest, to be received by the company from the sale of the bonds will be used to pay or reimburse the company, in part, for the cost of additions, extensions and improvements made or to be made to the company's facilities.

Southwestern estimates that its fees and expenses in connection with the proposed transactions will amount to $43,000, including service company charges of $7,000, Trustee's fees of $4,500, accountants' fees of $1,500, and fees of $1,500 payable to four local counsel. The fee of independent counsel for underwriters, to be paid by the successful bidders, is stated to be $5,000.

Said declaration having been filed on October 27, 1950, and the last amendment thereto having been filed on November 21, 1950, and notice of said filing having been duly given in the form and manner prescribed by Rule U-23 promulgated pursuant to said act, and the Commission not having received a request for hearing with respect to said declaration, as amended, within the period specified, or otherwise, and not having ordered a hearing thereon; and

It appearing to the Commission that the Corporation Commission of the State of Oklahoma and the Arkansas Public Service Commission have expressly authorized the proposed issuance and sale of the bonds, and that no other State commission has jurisdiction over the proposed transactions; and

The Commission finding with respect to said declaration, as amended, that the applicable requirements of the act and the rules and regulations promulgated thereunder are satisfied, that no adverse findings are necessary and deeming it appropriate in the public interest and in the interest of investors and consumers to permit said declaration, as amended, to become effective, subject to the conditions specified below, and the Commission also deeming it appropriate to grant declarant's request that the ten-day period for inviting bids provided by Rule U-50 be shortened to a period of not less than six days, and that the order herein become effective upon the issuance thereof:

It is ordered, Pursuant to Rule U-23 and the applicable provisions of the act, that the declaration, as amended, be, and the same hereby is, permitted to become effective, subject to the terms and conditions prescribed in Rule U-24 and to the further condition that the proposed issuance and sale of bonds by Southwestern shall not be consummated until the results of competitive bidding, pursuant to Rule U-50, have been made a matter of record in this proceeding and a further order shall have been entered by the Commission in the light of the record so completed, which order may contain such further terms and conditions as may then be deemed appropriate, jurisdiction being reserved for such purpose.

It is further ordered, Pursuant to the request of Southwestern, that the ten-day period for inviting bids, as provided by Rule U-50, be, and the same hereby is, shortened to a period of not less than six days and that this order shall become effective upon its issuance.

By the Commission.

[SEAL] NELLYE A. THORSEN, *Assistant Secretary.*

[F. R. Doc. 50-10778; Filed, Nov. 28, 1950; 8:47 a. m.]

[File No. 812-698]

TONOPAH MINING CO. OF NEVADA AND MINES INC.

NOTICE OF APPLICATION

At a regular session of the Securities and Exchange Commission, held at its office in the city of Washington, D. C., on the 22d day of November A. D. 1950.

Notice is hereby given that The Tonopah Mining Company of Nevada (hereinafter called Tonopah), 1315 Walnut Street, Philadelphia 7, Pennsylvania, an investment company registered under the Investment Company Act of 1940, has filed an application pursuant to section 17 (b) of the act for an order of the Commission exempting from the provisions of section 17 (a) of the act the proposed sale by Tonopah to Mines Incorporated (hereinafter called Mines) of 60 percent of the stock of Tonopah Nicaragua Company (hereinafter called Nicaragua) for the sum of $210,000, of which $75,000 is to be paid in cash and the balance within one year after August 2, 1950.

The agreement of sale executed August 2, 1950, as amended on October 31, 1950, provides that Mines shall have the privilege of inspecting the mining property of Nicaragua, taking samples of ore, and performing surveying and geological work and Tonopah agrees to make available to Mines all information possessed by Tonopah regarding the property. Should Mines fail to complete the purchase then all sums theretofore paid by it under the contract shall be retained by Tonopah as liquidated damages. If Tonopah's counsel is of the opinion that Tonopah and Mines are affiliated persons within the meaning of the Investment Company Act of 1940 the agreement was made subject to the approval of the Commission.

Tonopah has been the owner for thirty-four years and does now own, subject to the above agreement, all of the stock of Nicaragua. The only asset of Nicaragua is the "Rosita" copper-gold-silver property in Nicaragua, Central America, on which some test drilling was done prior to 1919. In October, 1943, Tonopah authorized Frank Cameron, a mining engineer, to offer the property for sale at $330,000, subject to a 10% commission, or $297,000 net to Tonopah. Cameron offered the property to 33 mining companies and other possible interested persons and his authorization expired September 1, 1949, without success.

Negotiations thereafter conducted with Compania Minera la India for an 18

months option with no initial payment and a sales price for the entire property in the range of $250,000–$275,000 never resulted in agreement.

Mines is a Delaware corporation engaged in the exploration business and all of its stock is owned by Frobisher Limited, a mining and exploration company incorporated in Canada. Ventures Limited, a Canadian corporation, owns and controls 54.24 percent of the stock of Frobisher Limited and 13.48 percent of the stock of Tonopah. Since the proposed sale involves the purchase from Tonopah, a registered investment company, of stock of which Tonopah is not the issuer, by an affiliated person (Mines) of an affiliated person (Ventures Limited) of Tonopah, the proposed transaction appears to be prohibited by section 17 (a) of the act. Accordingly, Tonopah requests an order pursuant to section 17 (b) exempting the transaction from the prohibitions of section 17 (a).

For a more detailed statement of the matters of fact and law asserted, all persons are referred to said application which is on file in the offices of the Commission in Washington, D. C.

Notice is further given that an order granting the application, in whole or in part and upon such conditions as the Commission may deem necessary or appropriate, may be issued by the Commission at any time after December 6, 1950, unless prior thereto a hearing upon the application is ordered by the Commission, as provided in Rule N-5 of the rules and regulations promulgated under the act. Any interested person may, not later than December 4, 1950, at 5:30 p. m., submit to the Commission in writing his views or any additional facts bearing upon this application or the desirability of a hearing thereon, or request the Commission in writing that a hearing be held thereon. Any such communication or request should be addressed: Secretary, Securities and Exchange Commission, 425 Second Street NW., Washington 25, D. C., and should state briefly the nature of the interest of the person submitting such information or requesting a hearing, the reasons for such request, and the issues of fact or law raised by the application which he desires to controvert.

By the Commission.

[SEAL] NELLYE A. THORSEN,
Assistant Secretary.

[F. R. Doc. 50-10781; Filed, Nov. 28, 1950; 8:47 a. m.]

DEPARTMENT OF JUSTICE

Office of Alien Property

AUTHORITY: 40 Stat. 411, 55 Stat. 839, Pub. Laws 322, 671, 79th Cong., 60 Stat. 50, 925; 50 U. S. C. and Supp. App. 1, 616; E. O. 9193, July 6, 1942, 3 CFR, Cum. Supp., E. O. 9567, June 8, 1945, 3 CFR, 1945 Supp., E. O. 9788, Oct. 14, 1946, 11 F. R. 11981.

[Vesting Order 15696]

TOKUMON AOKI AND HISAKO KURIYAMA AOKI

In re: Stock and safe deposit lease and contents owned by Tokumon Aoki and Hisako Kuriyama Aoki, also known as Hisa Aoki and as Mrs. Hisako Aoki. D-39-2322-A-1; C-1/2; D-39-2322-D-1/2; F-1.

Under the authority of the Trading With the Enemy Act, as amended, Executive Order 9193, as amended, and Executive Order 9788, and pursuant to law, after investigation, it is hereby found:

1. That Tokumon Aoki and Hisako Kuriyama Aoki, also known as Hisa Aoki and as Mrs. Hisako Aoki, are residents of Japan, and nationals of a designated enemy country (Japan);

2. That the property described as follows:

a. One hundred (100) shares of $10.00 par value preferred stock of the Yosemite Portland Cement Corporation (in dissolution), Merced, California, a corporation organized under the laws of the State of Delaware, evidenced by a certificate numbered P 2170, registered in the name of Tokumon Aoki, presently on deposit in a safe deposit box, numbered 2185, located in the vaults of the California Bank, 863 South San Pedro Street, Los Angeles, California, together with all declared and unpaid dividends thereon, and all liquidating dividends due or to become due thereon,

b. Fifty (50) shares of no par value common stock of the Consolidated Steel Corporation, Ltd., (in dissolution) 5700 South Eastern Avenue, Los Angeles, California, a corporation organized under the laws of the State of California, evidenced by a certificate numbered CO 4207, registered in the name of Tokumon Aoki, presently on deposit in a safe deposit box, numbered 2185, located in the vaults of the California Bank, 863 South San Pedro Street, Los Angeles, California, together with all declared and unpaid dividends thereon, and all liquidating dividends due or to become due thereon,

c. Fifty (50) shares of no par value common stock of Southern Pacific Company, 65 Market Street, San Francisco, California, a corporation organized under the laws of the State of Delaware, evidenced by a certificate numbered NC 2093, registered in the name of Laird & Co., endorsed to J. A. Hogle & Co., and presently in the custody of Nichibei Securities Corporation of Los Angeles, 2727 Curtis Street, Denver 5, Colorado, together with all declared and unpaid dividends thereon,

d. Those certain shares of stock evidenced by the certificates described in Exhibit A, attached hereto and by reference made a part hereof, presently on deposit in a safe deposit box, numbered 2185, located in the vaults of the California Bank, 863 South San Pedro Street, Los Angeles, California, together with all declared and unpaid dividends thereon,

e. All rights and interests created in Tokumon Aoki and Hisako Kuriyama Aoki, also known as Hisa Aoki and Mrs. Hisa Aoki, under and by virtue of a safe deposit box lease agreement by and between Tokumon Aoki and Hisako Kuriyama Aoki, also known as Hisa Aoki and as Mrs. Hisa Aoki, and the California Bank, 863 South San Pedro Street, Los Angeles, California, relating to safe deposit box No. 2185, located in the vaults of said bank, including particularly, but not limited to, the right of access to said safe deposit box, and

f. All property of any nature whatsoever owned by Tokumon Aoki and Hisako Kuriyama Aoki, also known as Hisa Aoki and as Mrs. Hisa Aoki, in the safe deposit box referred to in subparagraph 2 (e) hereof, and any and all rights of said persons evidenced or represented thereby,

is property within the United States owned or controlled by, payable or deliverable to, held on behalf of or on account of, or owing to, or which is evidence of ownership or control by, the aforesaid nationals of a designated enemy country (Japan);

and it is hereby determined:

3. That to the extent that the persons named in subparagraph 1 hereof are not within a designated enemy country, the national interest of the United States requires that such persons be treated as nationals of a designated enemy country (Japan).

All determinations and all action required by law, including appropriate consultation and certification, having been made and taken, and, it being deemed necessary in the national interest,

There is hereby vested in the Attorney General of the United States the property described above, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order 9193, as amended.

Executed at Washington, D. C., on November 15, 1950.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

EXHIBIT A

Issuing corporation	State of incorporation	Number of shares	Type and par value of stock	Certificate No.	Registered in name of—
Columbia Gas & Electric Corp., 120 East 41st St., New York, N. Y.	Delaware	100	No par value common	CN 398380	Tokumon Aoki.
Menasco Manufacturing Co., 805 South San Fernando Blvd., Burbank, Calif.	California	100	$1 par value capital	16589	Do.
Do	do	100	do	16875	Do.
Do	do	50	do	03441	Hisako Aoki.
Do	do	100	do	16577	Mrs. Hisako Aoki.

[F. R. Doc. 50-10799; Filed, Nov. 28, 1950; 8:51 a. m.]

[Vesting Order 15704]

ERNEST LOEFFLER

In re: Safe deposit lease and contents owned by Ernest Loeffler. D-28-418-F-1.

Under the authority of the Trading With the Enemy Act, as amended, Executive Order 9193, as amended, and Executive Order 9788, and pursuant to law, after investigation, it is hereby found:

1. That Ernest Loeffler, whose last known address is Hauptstrasse 73, Endingen, Germany, is a resident of Germany and a national of a designated enemy country (Germany);

2. That the property described as follows:

a. All rights and interests created in Ernest Loeffler under and by virtue of a safe deposit box lease agreement by and between Ernest Loeffler and Corn Exchange Safe Deposit Company, 126 East 86th Street, New York City, relating to safe deposit box No. 257, located in the vaults of the aforesaid company, including particularly, but not limited to, the right of access to said safe deposit box, and

b. All property of any nature whatsoever owned by Ernest Loeffler in the safe deposit box referred to in subparagraph 2a hereof, and any and all rights of said person evidenced or represented thereby,

is property within the United States owned or controlled by, payable or deliverable to, held on behalf of or on account of, or owing to, or which is evidence of ownership or control by, the aforesaid national of a designated enemy country (Germany);

and it is hereby determined:

3. That to the extent that the person named in subparagraph 1 hereof is not within a designated enemy country, the national interest of the United States requires that such person be treated as a national of a designated enemy country (Germany).

All determinations and all action required by law, including appropriate consultation and certification, having been made and taken, and, it being deemed necessary in the national interest,

There is hereby vested in the Attorney General of the United States the property described above, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order 9193, as amended.

Executed at Washington, D. C., on November 15, 1950.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 50-10800; Filed, Nov. 28, 1950; 8:51 a. m.]

[Vesting Order 15725]

ALBERT KRAUSE

In re: Bank account owned by Albert Krause. F-39-4646-E-1.

Under the authority of the Trading With the Enemy Act, as amended, Executive Order 9193, as amended, and Executive Order 9788, and pursuant to law, after investigation, it is hereby found:

1. That Albert Krause, whose last known address is Truk, Nanyo, Japan, is a resident of Japan and a national of a designated enemy country (Japan);

2. That the property described as follows: That certain debt or other obligation of Irving Savings Bank, 115 Chambers Street, New York 7, New York, arising out of a savings account, number 222072, entitled Albert Krause, maintained at the aforesaid bank, and any and all rights to demand, enforce and collect the same,

is property within the United States owned or controlled by, payable or deliverable to, held on behalf of or on account of, or owing to, or which is evidence of ownership or control by, Albert Krause, the aforesaid national of a designated enemy country (Japan);

and it is hereby determined:

3. That to the extent that the person named in subparagraph 1 hereof is not within a designated enemy country, the national interest of the United States requires that such person be treated as a national of a designated enemy country (Japan).

All determinations and all action required by law, including appropriate consultation and certification, having been made and taken, and, it being deemed necessary in the national interest,

There is hereby vested in the Attorney General of the United States the property described above, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order 9193, as amended.

Executed at Washington, D. C., on November 16, 1950.

For the Attorney General.

[SEAL] HAROLD I. BAYNTON,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 50-10802; Filed, Nov. 28, 1950; 8:51 a. m.]

[Vesting Order 15727]

ANNA C. VON DER LIETH

In re: Bank account owned by Anna C. Von Der Lieth. F-28-31013-E-1.

Under the authority of the Trading With the Enemy Act, as amended, Executive Order 9193, as amended, and Executive Order 9788, and pursuant to law, after investigation, it is hereby found:

1. That Anna C. Von Der Lieth, whose last known address is Fiefstucken 5 II, Hamburg 39, Germany, is a resident of Germany and a national of a designated enemy country (Germany);

2. That the property described as follows: That certain debt or other obligation owing to Anna C. Von Der Lieth, by Central Savings Bank, 2100 Broadway, New York 23, New York, arising out of a savings account, number 100,211, entitled Anna C. Von Der Lieth, maintained at the aforesaid bank, and any and all rights to demand, enforce, and collect the same,

is property within the United States owned or controlled by, payable or deliverable to, held on behalf of or on account of, or owing to, or which is evidence of ownership or control by, the aforesaid national of a designated enemy country (Germany);

and it is hereby determined:

3. That to the extent that the person named in subparagraph 1 hereof is not within a designated enemy country, the national interest of the United States requires that such person be treated as a national of a designated enemy country (Germany).

All determinations and all action required by law, including appropriate consultation and certification, having been made and taken, and, it being deemed necessary in the national interest,

There is hereby vested in the Attorney General of the United States the property described above, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order 9193, as amended.

Executed at Washington, D. C., on November 16, 1950.

For the Attorney General.

[SEAL] HAROLD I. BAYNTON,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 50-10803; Filed, Nov. 28, 1950; 8:51 a. m.]

[Vesting Order 15728]

CLARA MORGENROTH AND HEINRICH EHLERS, SR.

In re: Debts owing to Clara Morgenroth and Heinrich Ehlers, Sr. F-28-13160-C-1; F-1; F-28-14114-C-1; F-1.

Under the authority of the Trading With the Enemy Act, as amended, Executive Order 9193, as amended, and Executive Order 9788, and pursuant to law, after investigation, it is hereby found:

1. That Clara Morgenroth and Heinrich Ehlers, Sr., each of whose last known address is Husumerbaum St. Schleswig, in Schleswig-Holstein, Germany, are residents of Germany and nationals of a designated enemy country (Germany);

2. That the property described as follows: All property held by Selma MacLeckie, 712 West 15th Street, Houston, Texas, as Independent Executrix under the Last Will and Testament of Charles Ehlers, deceased, including particularly the funds so held under the residual provisions of said Last Will and Testament, on deposit with the South Texas National Bank, Houston, Texas, and any

and all rights to demand, receive and collect the same,

is property within the United States owned or controlled by, payable or deliverable to, held on behalf of or on account of, or owing to, or which is evidence of ownership or control by Clara Morgenroth and Heinrich Ehlers, Sr., the aforesaid nationals of a designated enemy country (Germany);

and it is hereby determined:

3. That to the extent that the persons named in subparagraph 1 hereof are not within a designated enemy country, the national interest of the United States requires that such persons be treated as nationals of a designated enemy country (Germany).

All determinations and all action required by law, including appropriate consultation and certification, having been made and taken, and, it being deemed necessary in the national interest,

There is hereby vested in the Attorney General of the United States the property described above, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order 9193, as amended.

Executed at Washington, D. C., on November 16, 1950.

For the Attorney General.

[SEAL] HAROLD I. BAYNTON,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 50-10804; Filed, Nov. 28, 1950; 8:51 a. m.]

[Vesting Order 15731]

MERCK, FINCK & CO.

In re: Bank account owned by Merck, Finck & Co. (successors to J. Dreyfus & Co.). F-28-411 and E-4.

Under the authority of the Trading With the Enemy Act, as amended, Executive Order 9193, as amended, and Executive Order 9788, and pursuant to law, after investigation, it is hereby found:

1. That Merck, Finck & Co. (successors to J. Dreyfus & Co.) the last known address of which is Munich, Germany, is a corporation, partnership, association or other business organization, organized under the laws of Germany, and which has or, since the effective date of Executive Order 8389, as amended, has had its principal place of business at Munich, Germany, and is a national of a designated enemy country (Germany);

2. That the property described as follows: That certain debt or other obligation of the Guaranty Trust Company of New York, 140 Broadway, New York, New York, arising out of a Pre-war Dollar Account, entitled "J. Dreyfus & Co., Frankfurt A/M, Germany," maintained with the aforesaid Trust Company, and any and all rights to demand, enforce and collect the same,

is property within the United States owned or controlled by, payable or deliverable to, held on behalf of or on account of, or owing to, or which is evidence of ownership or control by, Merck Finck & Co. (successors to J. Dreyfus & Co.), the aforesaid national of a designated enemy country (Germany);

and it is hereby determined:

3. That to the extent that the person named in subparagraph 1 hereof is not within a designated enemy country, the national interest of the United States requires that such person be treated as a national of a designated enemy country (Germany).

All determinations and all action required by law, including appropriate consultation and certification, having been made and taken, and, it being deemed necessary in the national interest,

There is hereby vested in the Attorney General of the United States the property described above, to be held, used, administered, liquidated, sold or otherwise dealt with in the interest of and for the benefit of the United States.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order 9193, as amended.

Executed at Washington, D. C., on November 16, 1950.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 50-10806; Filed, Nov. 28, 1950; 8:51 a. m.]

[Vesting Order 15154, Amdt.]

FRITZ A. BRUNS AND HENNY BRUNS

In re: Real property, property insurance policies, claims and bonds owned by Fritz A. Bruns and Henny Bruns, also known as Mrs. Fritz A. Bruns. F-28-30897.

Vesting Order 15154, dated October 5, 1950, is hereby amended as follows and not otherwise: By deleting from Exhibit B, attached to said Vesting Order 15154, the Defense Savings Bonds Series E numbers LG592553E and LG592655E, and substituting therefor Defense Savings Bonds Series E numbers L6592553E and L6592655E.

All other provisions of said Vesting Order 15154 and all actions taken by or on behalf of the Attorney General of the United States in reliance thereon, pursuant thereto and under the authority thereof are hereby ratified and confirmed.

Executed at Washington, D. C., on November 20, 1950.

For the Attorney General.

[SEAL] PAUL V. MYRON,
Deputy Director,
Office of Alien Property.

[F. R. Doc. 50-10808; Filed, Nov. 28, 1950; 8:52 a. m.]

[Return Order 803]

AGNES SCHMIDL

Having considered the claim set forth below and having issued a determination allowing the claim, which is incorporated by reference herein and filed herewith,

It is ordered, That the claimed property, described below and in the determination, be returned, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Notice of Intention To Return Published, and Property

Agnes Schmidl, nee Korner, Durnstein on-the-Danube 12, Lower Austria; Claim No. 40914; October 19, 1950 (15 F. R. 7004); $499.00 in the Treasury of the United States.

Appropriate documents and papers effectuating this order will issue.

Executed at Washington, D. C., on November 22, 1950.

For the Attorney General.

[SEAL] HAROLD I. BAYNTON,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 50-10809; Filed, Nov. 28, 1950; 8:52 a. m.]

[Return Order 806]

ANDRE BERNARD NICOLAS

Having considered the claim set forth below and having issued a determination allowing the claim, which is incorporated by reference herein and filed herewith,

It is ordered, That the claimed property, described below and in the determination, be returned, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant and Claim No., Notice of Intention To Return Published, and Property

Andre Bernard Nicolas, a/k/a Andre Bernard Nicholas, Paris, France; Claim No. 42008; October 20, 1950 (15 F. R. 7042); $860.10 in the Treasury of the United States.

Appropriate documents and papers effectuating this order will issue.

Executed at Washington, D. C., on November 22, 1950.

For the Attorney General.

[SEAL] HAROLD I. BAYNTON,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 50-10810; Filed, Nov. 28, 1950; 8:52 a. m.]